POLITY

for UPSC EPFO 2026

BY VYASA IAS



FEATURES

- Coverage of all theories & Concepts
- Coverage of All PYQs of EPFO & ALC
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1. Historical Background

The British came to India in 1608 as traders known as East India Company (EIC), under a charter granted by Queen Elizabeth I in 1600.The EIC in 1765 obtained the 'diwani'- rights over revenue and civil justice of Bengal, Bihar & Orissa. In 1858, in the wake of Sepoy Mutiny 1857 (a major uprising against the rule of the EIC.), granted direct responsibility for the governance of India.

Chronological order of the rule:

- The Company Rule (1773-1858)
- The Crown Rule (1858-1947)

I. THE COMPANY RULE (1773-1858)

1. Regulating Act of 1773: Governor-General, Warren Hastings.

- Marked the **beginning of British control over East India Company's affairs** in India.
- Foundation of Central Administration in India.
- Appointed Lord Warren Hastings as Governor-General of Bengal with a **4-member** Executive Council.
- Set up the **Supreme Court in Calcutta (1774)** - 1 Chief Justice & 3 Judges.
- Prohibition of Private Trade & bribes among Company servants.
- Court of Directors (CoD) required to report on Revenue, Military & Civil Affairs.
- Bombay and Madras presidencies were made subordinate to Bengal's Governor-General.

2. Amending Act of 1781: To rectify the defects of the Regulating Act. It also known as the **Act of Settlement**.

- Exempted the Governor-General and Council from the jurisdiction of Supreme Court (SC).
- Excluded the revenue matters & collection of the revenue from the jurisdiction of SC.
- Reduced conflicts between SC, Governor-General and Judiciary & Executive.
- Laws to be applied **English Law for British subjects** and **Personal Laws of Indians**-Hindu Law & Mohammedan Law.
- Gave legal validity to Company's rules and regulations.

3. Pitt's India Act, 1784: To establish effective British government control over the East India Company's political affairs.

- Established a **Dual System of control** over EIC's territories that managed by-

  Board of Control, political & administrative affairs. It consisted of 6 members (including **Secretary of State and Chancellor of Exchequer**) - appointed by the British Crown. They had the power to Supervise, direct, and control Indian administration.

  Court of Directors, Commercial affairs. They required to submit all dispatches related to civil, military, and revenue matters to the Board of Control.

- Company's territories in India were called **"British possessions in India"**, marked the beginning of centralized administration in India**.**
- Governor-General of Bengal, given authority over Bombay and Madras Presidencies**.**

4. Act of 1786: Governor-General of Bengal, Lord Cornwallis. He placed two demands to accept that post:

i) Power to override the decision of Council in special cases i.e. **Veto Power- Civil Matters**.

ii) He would also be the **Commander-in-chief**.

5. Charter Act of 1793: Continued the framework created by Pitt's India Act, 1784**.**

- Overriding powers are extended to all Governor-Generals & Governors of Presidencies.
- Commander-in-chief **not** to be a member of Governor-General's Council, unless appointed so.

- Extended the **trade monopoly** of EIC with India for another 20 Years. Civil servants forbidden from engaging in private trade**.**
- Board of Control & its staff to be paid out of **Indian Revenues**. Senior officials granted high salaries to reduce corruption.
- Strengthened **British Parliamentary control** over Indian administration.

6. Charter Act of 1813: Governor-General, Lord Minto I

- Abolished trade monopoly of EIC in India, **except for tea** and with China still continued.
- Marked a shift from **pure commercial rule to administrative responsibility**.
- Spread of Western Education, allowed the Christian missionaries for the purpose of enlightening the people.
- Allowed **free trade for British merchants** in India under license.
- British Crown to have sovereignty over Company's territories.

7. Charter Act of 1833: Governor-General of India, William Bentinck

- Final step towards the centralisation in British India, granting full civil & military powers.
- East India Company became an administrative body, holding territories **'in trust for His Majesty, His heirs and successors'.**
- Ended the Company's monopoly on trade with China and in tea.
- The government of the Governor-General came to be known as the **"Government of India,"** and the council as the **"India Council."**
- Transferred legislative powers from Bombay and Madras to the Governor-General of India, with laws termed **"Acts."**
- Empowered the Governor-General to **amend or repeal laws** in British India.

8. Charter Act of 1853: Governor-General of India, Lord Dalhousie

It was a significant constitutional landmark that lying the foundation for the modern Indian legislative system.

- Proposed an **open competition** system for civil servant selection, but faced opposition from the Court of Directors.
  - ✓ Covenanted- Higher services, created by law.
  - ✓ Uncovenanted- Lower services, as per need.
  - ❖ Recruitment shifted from patronage to **merit-based selection**.
  - ❖ First Indian to crack I.C.S, ***Satyendranath Tagore.***
- Established the **Indian Law Commission (1834)** for legal codification, chaired by **Lord Macaulay.**
- Reduced the Board of Directors from **24 to 18**, with 6 nominated by the British Crown.
- The legislative council functioned as a "Mini Parliament", mirroring British procedures.
- Separated legislative and executive functions of the Governor-General's council:
  1+4 +6 new members called "legislative councillors", are added to Councils.
- **4/6** Governor-General Legislative councils are appointed by local govt. of **Madras, Bombay, Bengal and Agra.**
- It was a clear indication that the Company Rule could be terminated at any time the Parliament liked.

II. THE CROWN RULE (1858-1947)

1. Government of India (GoI) Act, 1858: [ACT FOR GOOD GOVT. OF INDIA] – Viceroy, Lord Canning.

Enacted in the **wake of the Revolt of 1857**, also known as the **First War of Independence** or **the sepoy mutiny**.

- Powers transferred to the British Crown.
- It **ended the system of Dual Government**, abolished Board of Control and Court of Directors.
- Established the **Secretary of State for India**, a British Cabinet member accountable to Parliament. Created an advisory Council of 15-members to assist the Secretary, chaired by him.
- Formed the **Secretary of State-in Council**, capable of supervised and being controlled in India and in England.

2. Indian Council Act of 1861: Viceroy, Lord Canning

The British Govt. felt the necessity of seeking the cooperation of the Indians in the administration. Three acts were enacted in 1861, 1892, & 1909. **Act of 1861 is an important landmark in the constitutional and political history of India**.

- Lord Canning, nominated 3 Indians to his legislative council- **The Raja of Benares, The Maharaja of Patiala and Sir Dinkar Rao**.
- Initiated the **process of decentralisation** by restoring the legislative powers to the Bombay & Madras Presidency.
- Establishment of new legislative councils for **Bengal-1862**, **North-Western Provinces-1886** & **Punjab-1897** respectively.
- Introduced the **Portfolio system**, allowing council members to independently manage departments, in 1859.
- Enabled the Viceroy to issue Ordinances **(valid for 6 months)** for emergencies without council consent.

3. Indian Council Act of 1892: Viceroy, Lord Lansdowne

- It responded to demands from the **Indian National Congress (INC)** for greater representation. This act marked a step toward representative governance but with significant restrictions.
- Increased the no. of **non-official members** in both the **Central Legislative Councils (CLCs)** & **Provincial Legislative Councils (PLCs)**
  - ✓ It ensured an official majority was maintained in both Central & Provincial
  - ✓ For the CLCs, the no. was raised to a min. of 10 and max. of 16 members.
- The Act did **not** use the word **'election'** but initiated the principal of representation through an indirect electoral process.
- Non-official members were nominated: **Central Council-** by the Viceroy upon recommendations from the Provincial Legislative Council and Bengal Chamber of Commerce.
  Provincial Council- by the Governor on advice from District Boards, Municipalities, Universities, Trade Associations, Zamindars, and Chambers.
- It increased the functions of legislative councils and gave them the power of discussing the budget but could not vote or propose amendments.
  - ✓ Allowed to ask questions on matter of public interest, within 6 days' notice but they could not ask supplementary questions to the executive.
- The legislative councils had the power to make laws or repeal old ones but only with the express permission of the Governor-General.

4. Indian Council Act of 1909: Viceroy, Lord Minto II

Also known as **Morley-Minto Reforms**. Lord Minto, the viceroy and **Lord Morley, Secretary of State for India**.

- Increased the size of the both Central & Provincial. CLC was raised from **16 to 60** and the no. of members in PLCs was not uniform.
- It retained official majority in the CLC but allowed the PLCs to have non-official majority.
- For the **1st time provided for the association of Indians** with the executive councils of the viceroy & governors.
  - ✓ **Satyendra Prasad Sinha**, first Indian to join the council appointed as the Law Member.
- Introduced a system of **communal representation for Muslims**, where only Muslim voters could elect Muslim representatives.
  - ✓ A deliberate attempt at **'Divide & Rule'**, a major factor in India's eventual partition.
  - ✓ Lord Minto came to be known as the **Father of Communal Electorate**.
- The Act provided for the separate representation of presidency corporations, chambers of commerce, universities & zamindars.

5. GoI Act of 1919: Viceroy, Lord Chelmsford

Also known as **Montagu-Chelmsford Reforms**. Lord Chelmsford, the viceroy and **Montagu, Secretary of State for India**.

On **20th August, 1917** the British Govt. declared for the 1st time its objective – the gradual introduction of responsible Government of India (GoI). The Act enacted and came into force in 1921.

- It relaxed the central control over the provinces by demarcating & separating the central and provincial subjects.
- Divided provincial subjects into two parts- transferred & reserved.
  - ✓ ***Transferred-*** administered by the Governor with the aid of ministers responsible to the legislative council.
  - ✓ ***Reserved-*** administered by the Governor and his executive council without being responsible to the legislative council.
    - ❖ This dual system of governance known as **'dyarchy'-** Greek word **di-arche**.
    - ❖ This experiment was largely unsuccessful.
- Bicameralism and Direct Elections- Indian Legislative Council was replaced by a Bicameral Legislature:

Upper House (Council of State),
Lower House (Legislative Assembly)

- 3 of 6 members of the Viceroy's executive council **except** Commander-in-Chief, were to be Indian.
- Separate electorates for Sikhs, Indian Christians, Anglo-Indians & Europeans.
- Franchise to a limited no. of people on the basis of property, tax, and education.
- New office of the High Commissioner for India in London and transferred him some functions, hitherto performed by the Secretary of State for India.
- *Central Public Service Commission* was set up in **1926** for recruiting civil servants.
- It separated provincial budget from central budget and authorised the PLCs to enact their budgets.
- It provided for the appointment of a statutory commission to inquire into and report on its working after 10 years of its coming into force.

The Simon Commission (1927)

● **Composition:** A **seven-member** statutory commission led by **Sir John Simon**, appointed by the British Government, Composed entirely of British members.

● **Key Proposals (Report submitted in 1930):**

- Abolishment of Dyarchy.
- Expansion of Responsible Government in provinces.
- Creation of a Federation of British India and princely states.
- Maintenance of Communal Electorate.

Communal Award (1932)

● **Proposed** by Prime Minister **Ramsay MacDonald** to ensure minority representation. Separate Electorates for **Muslims, Sikhs, Indian Christians, Anglo Indians, Europeans**, and extended to the depressed classes (**Scheduled Castes**).

● **Gandhi's Opposition:** Mahatma Gandhi **opposed** separate electorates for the depressed classes, leading to a fast in **Yerawada Jail**.

● **Poona Pact:** Agreement between **Congress and Dr. B.R. Ambedkar**. Preserved **Hindu joint electorate & reserved seats for the depressed classes.**

● **Government Acceptance:** The British Government **accepted** the Poona Pact, eliminating separate electorates for the depressed classes, with provisions incorporated into the **Government of India Act, 1935.**

6. Government of India Act, 1935: Viceroy, Lord Willingdon

A second milestone towards a completely responsible government in India. It was a lengthy and detailed document having **321 Sections and 10 Schedules.**

- Aimed to establish an **All-India Federation** with provinces and princely states, **but it failed** due to non-participation from the princely states.
- The Act divided the powers into three lists: **Federal** (59 items), **Provincial** (54 items), and **Concurrent** (36 items), with residual powers assigned to the Viceroy.
- Introduced provincial autonomy and abolished dyarchy in the provinces **but** introduced dyarchy at the centre; autonomous governments **formed in 1937** but were **suspended in 1939**.
- Established **bicameralism** in six provinces, **Bengal, Bombay, Madras, Bihar, Assam and the United Provinces**.
- Introduced **separate electorate** for depressed classes (**Scheduled Castes**), **women**, and **labourers**.
- **Extended franchise to 14%** of the population and created the **Reserve Bank of India**.
- Established **Federal** and **Provincial Public Service Commissions** and a **Federal Court in 1937**.
- Burma was **separated** from India, and two **new provinces**, **Orissa and Sind**, were created.
- Introduced safeguards for minority interests and established **a Federal Railway Authority**. An Auditor General was appointed for financial oversight.

7. Indian Independence Act, 1947: Viceroy, Lord Mountbatten

On **20th February, 1947** the British Prime Minister **Clement Atlee**, declared that the British Rule in India would **end by June 30, 1948**.This announcement was followed by the **agitation by the Muslim League** demanding partition of the country. **On June 3, 1947 Lord Mountbatten**, the viceroy of India, put forth the partition plan, known as **the Mountbatten Plan**. The plan was accepted by the Congress and Muslim League, leading to **India's independence on August 15, 1947**.

- Creation of two independent dominions of India & Pakistan with the right to secede from the British Commonwealth.
- Abolished the office of Viceroy, introduced a Governor-General for each dominion. Constituent Assemblies empowered to create constitutions and repeal British laws, including the Independence Act.
    - ❖ His Majesty's Government in Britain was to have no responsibility with respect to the Government of India or Pakistan.
- Assemblies could legislate until new constitutions were enacted; British acts post-August 15 required dominion approval.
- Abolished the office of the **Secretary of State for India** and transferred his functions **to the Secretary of State** for Commonwealth Affairs.
- It **granted freedom to the Indian princely states** either to join the Dominion of India or Pakistan or to remain Independent.
- Appointment to civil services and reservation of posts by the Secretary of State **ceased**, but the members appointed before 15th Aug, 1947 would continue to all benefits.
- It **dropped** the title of Emperor of India from the Royal titles of the King of England.
- Lord Mountbatten became the **first Governor-General of the new Dominion of India**. He swore in Jawaharlal Nehru as the first Prime Minister of Independent India. The **Constituent Assembly** formed in **1946** became the **parliament of India**.

First Cabinet after Independence

No.	Members	Portfolios
1	Jawaharlal Nehru	Prime Minister; External Affairs and Commonwealth Relations; Scientific Research
2	Sardar Vallabhbhai Patel	Home, Information and Broadcasting; States
3	Dr Rajendra Prasad	Food and Agriculture
4	Maulana Abul Kalam Azad	Education
5	Dr. John Mathai	Railways and Transport
6	R.K. Shanmugham Chetty	Finance
7	Dr. B.R. Ambedkar	Law
8	Jagjivan Ram	Labour
9	Sardar Baldev Singh	Defence
10	Rajkumari Amrit Kaur	Health
11	C.H. Bhabha	Commerce
12	Rafi Ahmed Kidwai	Communication
13	Dr. Shyama Prasad Mukherjee	Industries and Supplies
14	V.N. Gadgil	Works, Mines, and Power

2. Making of the Indian Constitution

BASIC CONCEPTS RELATED TO CONSTITUTION

Hierarchy of Laws in India-

- **Law:** Rules governing behaviour, either written or unwritten; enacted by legislative bodies with legal force. Example: Citizenship Amendment Act.
- **Ordinance:** Temporary law issued by the President or Governor when the legislature is not in session; requires legislative approval. Example: COVID-19 lockdown ordinance.
- **Bylaws:** Regulations made by local authorities; subordinate to central/state laws. Example: Municipal construction regulations.
- **Constitution:** Supreme law outlining government structure and powers; foundation of the legal system. Example: Constitution of India.
- **Rules:** Detailed instructions issued by the executive to implement laws; subordinate to laws and bylaws. Example: Passport application rules.
- **Regulations:** Specific and technical guidelines issued by regulatory bodies. Example: SEBI regulations for listed companies.
- **Rule of Law:** As defined by British jurist A.V. Dicey, it asserts that law governs a nation, ensuring that no individual or institution, including the government, is above it.
  Key Elements include-
  - **Supremacy of Law:** Law is the highest authority.
  - **Equality Before the Law:** All individuals are subject to the same laws.
  - **Accountability:** Government actions must be legally justified.
  - **Legal Certainty:** Laws must be clear, public, and stable.
  - The Supreme Court of India recognizes the **'Rule of Law'** as a **'Basic Structure'** of the Constitution, making it impervious to amendments.

- **Constitutionalism:** Constitutionalism refers to **limited government**. It means **government power is restricted by a constitution**. The constitution is **supreme**, and all authorities function **within its limits**. Emphasis is on **rule of law**, not rule of men .A constitution **may exist without constitutionalism**, but constitutionalism **cannot exist without a constitution**.



Constitution vs Constitutionalism:

Constitution	Constitutionalism
A legal document	A political philosophy
Describes structure of government	Limits government power
Can exist in authoritarian regimes	Exists only in democratic systems
May or may not protect rights	Ensures protection of rights

Types of Constitution:

i. **Written Constitution:** A formal document outlining government structure and citizen rights. Example: U.S. Constitution.
ii. **Unwritten Constitution:** Composed of various sources like statutes and traditions, not in a single document. Example: United Kingdom Constitution.
iii. **Flexible Constitution:** Can be easily amended like regular laws. Example: British Constitution.
iv. **Rigid Constitution:** Requires a complex process for amendments. Example: U.S. Constitution.
v. **Federal Constitution:** Divides powers between central and regional governments. Examples: U.S., Germany.
vi. **Unitary Constitution:** Centralizes power in one government. Example: United Kingdom.
vii. **Presidential Constitution:** Separates executive and legislative branches; the President is both head of state and government. Example: United States.
viii. **Parliamentary Constitution:** Executive comes from the legislature; the Prime Minister leads. Examples: U.K., India.
ix. **Monarchical Constitution:** Recognizes a monarch, either with limited powers (constitutional) or significant powers (absolute). Examples: U.K., Sweden.
x. **Republican Constitution:** Establishes a republic without a monarchy; the head of state is elected. Examples: U.S., France.
xi. **Theocratic Constitution:** Based on religious laws and principles. Example: Iran.
xii. **Secular Constitution:** Separates religion from government laws. Example: Indian Constitution.

1. Background

- The Constitution of India was framed after a **long freedom struggle** against British rule.
- It reflects India's **historical experiences, aspirations, and democratic ideals**.
- Influenced by **Indian nationalist leaders** and **constitutions of other countries**.

2. Demand for a Constituent Assembly

- First raised by **M.N. Roy (1934)**.
- Accepted by the **Indian National Congress in 1935**.
- **Jawaharlal Nehru**, representing the INC **1938**, stated that the constitution must be created by a Constituent Assembly elected through **an adult franchise**.
- **The Cripps Proposal** suggested drafting an independent Constitution post-World War II, but it was rejected by the Muslim League, which sought the division of India into two autonomous states.
- British Government accepted the demand in the **August Offer (1940)** and **Cabinet Mission Plan (1946)**.

3. Composition of the Constituent Assembly

- Formed under the **Cabinet Mission Plan, 1946**.
- Members were **indirectly elected** by Provincial Legislative Assemblies.
- Total members initially: **389**
    - British Indian Provinces: 292
    - Princely States: 93
    - Chief Commissioner's Provinces: 4

4. Composition after Partition

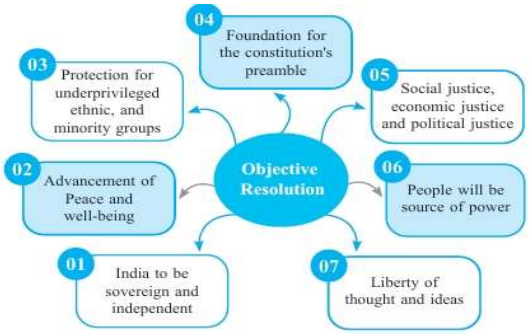
- After Partition (1947), strength reduced to **299 members**.
- India's Constituent Assembly: **284 members actually signed the Constitution**.

5. First Meeting of Constituent Assembly

- Held on **9 December 1946**.
- **Dr. Sachchidananda Sinha** was the temporary President.
- **Dr. Rajendra Prasad** later elected as President.

6. Objectives Resolution

- Moved by **Jawaharlal Nehru** on **13 December 1946**.
- Laid down the **philosophy and guiding principles** of the Constitution-
    - ✓ Sovereignty
    - ✓ Justice
    - ✓ Liberty
    - ✓ Equality
- Later became the **Preamble** of the Constitution.



7. Important Committees of Constituent Assembly

Total **22 committees** were formed. Important committees:

- **Drafting Committee** – Dr. B.R. Ambedkar (Chairman)
- **Union Powers Committee** – Jawaharlal Nehru
- **Fundamental Rights Committee** – J.B. Kripalani
- **States Committee** – Jawaharlal Nehru
- **Minorities Committee** – H.C. Mookherjee

Role of the Constituent Assembly

- It acted as:
    - Constitution-making body
    - Legislative body (till first elections)
- Adopted:
    - National Flag
    - National Anthem
    - National Song
- Elected:
    - ➢ First President of India (Dr. Rajendra Prasad)

Criticism of the Constituent Assembly

- Not directly elected on the basis of universal adult franchise.
- Dominated by Congress members.
- Alleged lack of representation of Muslims.
- Time Consuming, **Naziruddin Ahmed**, a member of Constituent Assembly- coined a new name for the **Drafting Committee as Drifting Committee**, to show his contempt.

8. Role of Dr. B.R. Ambedkar

- Known as the **Chief Architect of the Indian Constitution**.
- Chairman of the **Drafting Committee**.
- Played a key role in:
    - Fundamental Rights
    - Social justice
    - Abolition of untouchability

9. Time Taken

- Constituent Assembly took **2 years, 11 months, and 18 days**.
- Total sittings: **11 sessions (165 days)**.

10. Adoption and Enforcement

- Constitution adopted on **26 November 1949**.
- Came into force on **26 January 1950** (celebrated as **Republic Day**).

11. Nature of the Constitution

- **Lengthiest written constitution** in the world.
- Blend of **rigidity and flexibility**.
- Establishes:
    - Sovereign, Socialist, Secular, Democratic Republic
    - Parliamentary form of government
    - Federal structure with unitary bias

12. Significance

- Provides a **framework for governance**.
- Ensures **justice, liberty, equality, and fraternity**.
- Protects **Fundamental Rights** and promotes **social reform**.

3. Salient Features of the Constitution

The Indian Constitution is unique in its contents and spirit. The term **'Constitution'**, refers to a set of principles outlining the organisation and functioning of the government, as well as the relationship between the government and the people regarding their rights and duties. It should be noted at the outset that a number of original features of the Constitution have undergone a substantial change, on account of several amendments, particularly **7th, 42nd, 44th, 73rd, 74th, 97th and 101st**. *The 42nd Amendment Act (1976)*, known as **'Mini-Constitution'**.
However, in the *Kesavananda Bharati Case (1973)*, the SC ruled that the constituent power of Parliament under **Article 368** does not enable it to alter the **'basic structure'** of the Constitution.

Salient Features:

1. Lengthiest Written Constitution

- Indian Constitution is the **lengthiest written constitution** in the world.
- Originally contained:
  - **395 Articles**
  - **22 Parts**
  - **8 Schedules**
- Length due to:
  - Geographical vastness and diversity
  - Single Constitution for Union and States
  - Incorporation of administrative details
  - Influence of Government of India Act, 1935

2. Drawn from Various Sources

- Constitution has borrowed features from **many countries**.
- However, provisions were **adapted to Indian conditions**.

Sources of the Indian Constitution

- **Govt. of India Act, 1935:** Federal scheme, Governor's office, Judiciary, Public Service Commission, Emergency Provisions and Administrative details.
- **UK**: Parliamentary system, Rule of Law, Single Citizenship, Cabinet System, Parliamentary privileges, Bicameralism, and prerogative writs.
- **USA**: Fundamental Rights, Judicial Review, Independent Judiciary, Impeachment of President, Removal of Supreme Court and High Court judges and post of Vice-president.
- **Ireland**: Directive Principles of State Policy, Method of election of President and Nomination of Members to Rajya Sabha.
- **Canada**: Federal system with strong Centre, vesting Residuary powers to the centre, Appointment of State Governors by the Centre and Advisory Jurisdiction of the Supreme Court.
- **Australia**: Concurrent List, Joint sitting of both the Houses of Parliament.
- **Germany (Weimar Constitution):** Suspension of Fundamental Rights during Emergency.
- **USSR:** Fundamental Duties and the ideal of Justice (Social, Economic and Political) in the Preamble.
- **French:** Republic and the Ideals of Liberty, Equality and Fraternity in the Preamble.
- **South African:** Procedure for Amendment of the Constitution and election of members of Rajya Sabha.
- **Japanese:** The Procedure Established by Law.

3. Blend of Rigidity and Flexibility

- Constitution is **neither too rigid nor too flexible**.
- Three types of amendments:
  - By simple majority of Parliament
  - By special majority of Parliament
  - By special majority + ratification by States
- Ensures stability with adaptability.

4. Federal System with Unitary Bias

- India has a **federal system** with a **strong Centre**.
- Features of federalism:
  - Dual polity (Union and States)
  - Division of powers (Union, State, Concurrent Lists)
  - Written Constitution
  - Supremacy of Constitution
- Unitary features:
  - Single Constitution
  - Strong Centre
  - Emergency provisions
- Hence called **"quasi-federal"** (K.C. Wheare).

5. Parliamentary Form of Government

- Adopted from the British system.
- Features:
  - Executive is responsible to the legislature
  - President is nominal head
  - Real power lies with Council of Ministers
- Ensures cooperation between executive and legislature.

6. Synthesis of Parliamentary Sovereignty and Judicial Supremacy

- Parliament is **not supreme** (unlike UK).
- Judiciary can:
  - Declare laws unconstitutional
- However:
  - Parliament can amend the Constitution
- Balance achieved through **Judicial Review** and **Amendment power**.

7. Integrated and Independent Judiciary

- Single unified judicial system:
  - Supreme Court
  - High Courts
  - Subordinate courts
- Judiciary is independent:
  - Security of tenure
  - Fixed service conditions
  - Power of judicial review

8. Fundamentl Rights

The FRs are not absolute and subject to reasonable restrictions, it can also be suspended during the operation of a National Emergency except the rights guaranteed by Article 20-21.

- Enshrined in **Part III** of the Constitution.
- Aim to ensure:
  - Political democracy
  - Protection of individual liberty
- Rights are:
  - Justiciable
  - Enforceable by courts
- Borrowed largely from the US Constitution.
- Promotes **political democracy** through six rights:

  ✓ **Right to Equality** (Articles 14-18)

- ✓ **Right to Freedom** (Articles 19-22)
- ✓ **Right against Exploitation** (Articles 23-24)
- ✓ **Right to Freedom of Religion** (Articles 25-28)
- ✓ **Cultural and Educational Rights** (Articles 29-30)
- ✓ **Right to Constitutional Remedies** (Article 32)

9. Directive Principles of State Policy (DPSPs)

According to Dr. B.R Ambedkar, the DPSPs is a **novel feature** of the Indian Constitution. In the **Minerva Mills Case (1980)**, The SC held that 'the Indian Constitution is founded on the bedrock of the balance between the Fundamental Rights & the Directive Principles'.

- Contained in **Part IV** (Article 36-51)
- Non-justiciable in nature.
- Aim to establish:
  - Social and economic democracy.
  - Welfare State
- Act as guidelines to the State in policy making.

10. Fundamental Duties

- Added by the **42nd Constitutional Amendment Act, 1976**.
- Contained in **Part IVA** (Article-51A)
- Inspired by the **Russian Constitution**.
- Promote:
  - Civic consciousness
  - National unity

11. Secular State

- India is a **secular state**, not uphold any particular religion as the official religion.
- The Preamble secures to all citizens of India liberty of belief, faith and worship.
- Equal respect and protection to all religions. The state shall not deny to any person equality before law or equal protection of the law (Article-14).
- Word "secular" added by **42nd Amendment Act, 1976**.

12. Universal Adult Franchise

- Every citizen above **18 years** has the right to vote.
- Introduced from the beginning.
- Promotes political equality and democracy.

13. Single Citizenship

- Indian Constitution provides for **single citizenship**.
- Unlike the USA (dual citizenship).
- Promotes national unity and integrity.

4. Emergency Provisions

- Emergency provisions borrowed from **German Constitution**.
- Types:
  - National Emergency (Article-352)
  - State Emergency (President's Rule in state- Article 356 or, centre- Article 365)
  - Financial Emergency (Article-360)
- Enables Centre to deal with extraordinary situations.

15. Three-Tier Government

- Originally two-tier (Union and States).
- **73rd and 74th Constitutional Amendments (1992)** added:
  - Panchayati Raj Institutions
  - Urban Local Bodies
- Strengthened grassroots democracy.

16. Independent Constitutional Bodies

- Constitution provides for independent bodies:
  - Election Commission
  - UPSC
  - CAG
- Ensure impartial functioning of democracy.

17. Cooperative Societies (New Feature)

- **97th Constitutional Amendment Act, 2011**:
  - Added Part IX-B
- Promotes democratic functioning of cooperatives.

Criticism of the Constitution:-

A Borrowed Constitution- The critics opined that the Indian Constitution contains nothing new and original. They describe it as a 'borrowed Constitution' or 'a bag of borrowings' or a 'hotch-potch Constitution' or a 'patchwork' of several documents of the world Constitution.

A Carbon Copy of the 1935 Act- 75% from GoI Act 1935, lacks originality. **Sir Ivor Jennings**, a British Constitutionalist, said that "the Constitution derives directly from the GoI Act 1935 from which, in fact, many of its provisions are copied almost textually". Very few provisions claimed to be original.

Un-Indian or Anti-Indian- According to the critics, the Indian Constitution is 'un-Indian' or 'anti-Indian' because it does not reflect the political traditions and the spirit of India. **K. Hanumanthaiya**, a member of the Constituent Assembly, commented: "We wanted the music of Veena or Sitar, but here we have the music of an English band. That was because our Constitution-makers were educated that way.

An Un-Gandhian Constitution- According to the critics, the Indian Constitution is un-Gandhian because it does not contain the philosophy and ideals of Mahatma Gandhi, the Father of the Indian Nation. **T. Prakasam**, another member of the Constituent Assembly, attributed this lapse to Ambedkar's non-participation in the Gandhian movement and the antagonism towards the Gandhian ideas.

Elephantine Size- The critics stated that the Indian Constitution is too bulky and too detailed and contains some unnecessary elements. **H. V Kamath**, a member of the Constituent Assembly, commented: "The emblem and the crest that we have selected for our assembly is an elephant. It is perhaps in consonance with that our constitution too is the bulkiest that the world has produced".

Paradise of the Lawyers- According to the critics, the Indian Constitution is too legalistic and very complicated. They opined that the legal language and phraseology adopted in the constitution makes it a complex document. The same **Sir Ivor Jennings** called it a "lawyer's paradise".

4. Preamble of the Constitution

PREAMBLE

"**We, THE PEOPLE OF INDIA,** having solemnly resolved to constitute India into a **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC** and to secure to all its citizens:

JUSTICE, Social, Economic and Political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity; and to promote among them all;

FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation;

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION".

It is **an introductory statement** in a document that explains the document's philosophy & objectives. The preamble basically gives idea about the source of the Constitution, nature of Indian state, objectives and date of its adoption. It is not enforceable or justiciable.

COMPONENTS OF PREAMBLE

Source of Authority - People of India

Nature of Indian State- Sovereign, Socialist, Secular, Democratic, Republic.

Objectives- Justice, Liberty, Equality, Fraternity.

Adoption- 26 November 1949.

Philosophy- Gandhi's idea of Swaraj (Self-reliance, Justice, Tolerance).

IDEALS- Nature of the country.

Sovereign: It is represented by people, we choose the representative through election. Neither dependency nor dominion of any other nations, but an independent state.

Socialist: It holds faith in mixed economy where both govt. and private sectors co-exist side by side. The socialist added in the Preamble by 42nd Amendment, 1976.**'Democratic Socialism'**, aims to end poverty, ignorance, disease & inequality of opportunity. **The New Economic Policy (1991)**, diluted the socialist credentials of India.

Secular: *"Sarva Dharma Sambhava"*, it also added later. We protect every religion, it separates the power of the state and religion. Article 25-28 guaranteeing the F.R to freedom of religion.

Democratic: It is a system i.e. **Electoral**. That means the supreme power lies with the people, who WE, THE PEOPLE OF INDIA are. India is a democratic country. Democratic embrace political & social and economic democracy. **India has direct democracy and Switzerland has Indirect**. Indirect democracy known as **'representative democracy'**- parliamentary and presidential.

Forms of Democracy:

- *Direct Democracy*: Citizens exercise power directly (e.g., Switzerland using Referendums, Initiatives, Recalls, and Plebiscites).
  - Initiative: Citizen-proposed statutes sent to the legislature or put on the ballot.
  - Recall: Voters can remove public officials before term ends.
  - Referendum: Voters accept or reject a legislation.
  - Plebiscite: Direct vote on significant issues for establishing political conditions. Indirect Democracy: Elected representatives govern (parliamentary and presidential systems).
- *Indian Democracy*: A representative parliamentary democracy with an accountable executive. Features include universal adult franchise, periodic elections, and rule of law, independent judiciary, and non-discrimination.
- *Supreme Court Insight (1997)*: The Constitution aims for an egalitarian social order, ensuring justice in India's social and economic democracy.

Republic: In this the head of the state is always elected directly or indirectly for a fixed period. Republic indicates that India has an elected head called, the President (Nominal Head). Absence of any privileged class & discrimination to any citizen.

- ***ASPIRATION-*** Objectives of Preamble.

Justice: It is the provision of Fundamental Rights. It comprises three important elements- social, economic, and political.

i. Social Justice- Ensures **equal treatment of all citizens without distinction** based on caste, colour, race, religion, or gender. No privileges for any group; aims to uplift backward classes (SC, ST and OBC) and women. It mentioned in **DPSPs**. The concept of DPSP taken from **Irish Constituency or Russian Revolution, 1917**.
Social Justice + Economic Justice = **Distributive Justice**

ii. Economic Justice- **Eliminates discrimination based on economic factors**. Focuses on reducing inequalities in wealth, income, and property. It also mentioned in **DPSPs**.

iii. Political Justice- Guarantees equal political rights and access to all political offices. **Ensures every citizen has an equitable voice in government.** It mentioned in **Fundamental Rights**.

Liberty: Liberty means **absence of restraints** on the activities of individuals. It means freedom for the people to choose political views, behaviour in society and their way of life in limited manner or the development of individual personalities. The liberty conceived by the Preamble or F.Rs is **not absolute but qualified**. The ideals of liberty, equality, and fraternity in the Preamble are **inspired by the French Revolution (1789-99).**

Equality: Equality signifies the **absence of special privileges and ensures equal opportunities for all individuals**, **free from discrimination**. The Preamble guarantees **equality of status and opportunitie**s across three dimensions- Civic, political, and economic.

a) Civic Equality: Ensures equality before the law (Article 14), prohibits discrimination (Article 15), provides equal opportunity in public employment (Article 16), abolishes untouchability (Article 17), and eliminates titles (Article 18).

b) Political Equality: Guarantees inclusion in electoral rolls (Article 325) and mandates elections based on adult suffrage (Article 326).

c) Economic Equality: Secures equal rights to livelihood and equal pay for equal work (Article 39), promoting a fair and just society in India.

Fraternity: Dr B. R. Ambedkar defines fraternity as the sentiment of shared brotherhood and sisterhood among all Indians".

- Preamble declares that the Fraternity has to ensure the dignity of individuals and the unity and integrity of the Nation by **Single Citizenship, Fundamental Rights, DPSPs, and Fundamental Duties**.
- **Fundamental Duties (Article 51A)**: Every citizen must promote harmony and common brotherhood, transcending religious, linguistic, regional, or sectional diversities.
- National Integration: **"Unity and integrity"** addresses both psychological and territorial aspects, with **Article 1** declaring India as a **'Union of States'** to combat communalism, regionalism, casteism, linguism, and secessionism. The term **"integrity"** was /5added by the **42nd Constitutional Amendment in 1976**.

According to K. M. Munshi, a member of the Drafting Committee of the Constituent Assembly, the phrase 'dignity of the individual' signifies that the Constitution not only ensures material betterment and maintain a democratic set-up, but that is also recognises that the personality of every individual is sacred.

SIGNIFICANCE OF THE PREAMBLE :

- ✓ "It is the summary and philosophy of the Indian Constitution and key to the mind of the Constitution makers". Supreme Court
- ✓ **"Identity card of the Constitution"** – N.A. Palkhivala
- ✓ **"Horoscope of our sovereign Indian democratic republic"** – K.M. Munshi
- ✓ **"Key note to the Constitution"** – Sir Ernest Barker
- ✓ **"Guiding light for judicial interpretation"** – Justice Sikri in the Kesavananda Bharati case.

SUPREME COURT CASES RELATED TO THE PREAMBLE

Case	Opinion of the Supreme Court (SC)
Berubari Union Case (1960)	The Preamble shows the general purpose behind several provisions of the Constitution. If terms used in articles are ambiguous, some assistance from the preamble could be taken for interpretation. SC held that the Preamble is not a part of the Constitution.
Golak Nath vs. State of Punjab (1967)	Justice Hidayatullah asserted that the Preamble contains enduring principles essential for government functioning, making it the eternal and unalterable essence of the Constitution.
Kesavananda Bharati Case (1973)	SC: The Preamble is a part of the Constitution. (Reversed its opinion as given in the Berubari Union (1960).) The Preamble can be amended, subject to the condition that it should not destroy the 'Basic Structure' of the Constitution.
LIC of India Case (1995)	SC again held that the Preamble is an integral part of the Constitution.

- The Preamble is neither a source of power to legislature nor a prohibition upon.
- Preamble can be amended under Article-368.
- PREAMBLE- PRAEMBULUS (Latin Word, means to go before Introduction).
- Preamble considered as the soul of Constitution.

5. Union and its Territory

Name and Territory of the Union	Article 1(1): describes, • "India, that is Bharat, shall be a Union of States." • India is described as a Union, not a Federation. Article 1 (2): The territory of India consist of- 1. Territories of the States 2. Union Territories **3.** Territories that may be acquired.
Why India is called a "Union"	• The word **Union** implies: ○ Indian federation is **not the result of an agreement** among states ○ States **do not have the right to secede** • Borrowed from the **Canadian Constitution** • Emphasizes **indestructibility of the Union** **Dr. B.R. Ambedkar**: *"The Union is not the result of an agreement by the states."*
Indestructible Union & Destructible States	• The **Union of India cannot be broken** • States can be: ○ Created ○ Merged ○ Divided ○ Renamed • Ensures **unity and integrity of the nation** *India is an indestructible Union of destructible States.*
States of India	• States have: Elected governments Constitutional status • Currently: ○ **28 States** • Powers distributed between Centre and States via: ○ Union List ○ State List ○ Concurrent List
Union Territories (UTs)	• UTs are **directly administered by the Centre** • President acts through: ○ **Administrator / Lieutenant Governor** **UTs with Legislatures** • Delhi → **Article 239AA**

	• Puducherry • Jammu & Kashmir *Parliament can make laws on **any subject** for UTs.*
Acquisition of Foreign Territory	• India can acquire territory by: ○ Conquest ○ Cession ○ Accession ○ Plebiscite Example: • **Pondicherry (Puducherry)** acquired from France • Requires: ○ **International treaty** ○ **Constitutional amendment** (Article 368)
Article 2 – Admission or Establishment of New States	• Parliament may: ○ Admit new states into the Union ○ Establish new states Applies to: • Foreign territories becoming states of India Example: Sikkim (1975)
Article 3 – Formation of New States & Alteration of Areas	Parliament can: 1. Form new states 2. Increase/decrease area of states 3. Alter boundaries of states 4. Change names of states Procedure: • President refers bill to concerned State Legislature • State legislature gives opinion only • Opinion is not binding Important: • **Simple majority** required • Not a constitutional amendment under Article 368
Article 4: Laws for Reorganization	Article- 4: • Declares that laws made under Article 2 and 3 are not to be considered amendments of the Constitution under Article 368. • This means such laws can be passed by a simple majority and by the ordinary legislative process.

EXCHANGE OF TERRITORIES

- **Parliament's Power:** Under Article 3, Parliament can reduce a state's area but cannot cede territory to a foreign nation, as ruled by the Supreme Court in 1960 regarding Berubari Union.
- **Territorial Cession:** Territory can only be ceded to foreign states via a constitutional amendment (e.g., 100th Amendment Act, 2015 dealt with the transfer of enclaves between India and Bangladesh). As a sovereign state, India has acquired various foreign territories such as Dadra and Nagar Haveli, Goa, Daman and Diu, Puducherry, and Sikkim since the commencement of the Constitution
- Transferring territory requires a constitutional amendment under Article 368, enacted through the 9th Constitutional Amendment Act of 1960 for Berubari.
- **Boundary Disputes:** In 1969, the Supreme Court stated that resolving boundary disputes does not need a constitutional amendment and can be done via executive action.
- **Exchange with Bangladesh**
    - **Radcliffe Commission (1947):** Demarcated boundaries at independence, neglecting small enclaves.
    - **Enclaves:** Known as Chitmahals, these areas were discussed during the Bagge award of 1950 and the Nehru-Noon Agreement of 1958.
    - **Enclave Details:** 111 Indian enclaves in Bangladesh; 51 Bangladeshi enclaves in India.

CHANGE OF NAMES OF STATES AND UNION TERRITORIES

All name changes were executed under Article 3 of the Constitution by Parliament. It includes-

- Uttar Pradesh (United Provinces, 1950), Tamil Nadu (Formerly Madras,1969)
- Karnataka: Formerly Mysore, renamed in 1973,
- Lakshadweep: Formerly Laccadive, Minicoy, and Amindivi Islands,
- National Capital Territory of Delhi: Redesignated in 1992 under the 69th Constitutional Amendment Act,
- Uttarakhand: Formerly Uttaranchal, renamed in 2006,
- Puducherry: Formerly Pondicherry, renamed in 2006,
- Odisha: Formerly Orissa, renamed in 2011.

VARIOUS COMMISSIONS IN THE REORGANISATION OF STATES AND UTs

- **DHAR Commission (Dec 1948):** Recommended state reorganisation based on administrative convenience, not language.
- **JVP Committee (Dec 1948 - Apr 1949):** Formally rejected language as the basis for state reorganisation; members included Jawaharlal Nehru, Vallahbhai Patel and Pattabhi Sitaramayya. In October 1953, the Government of India was forced to create the first linguistic state, known as Andhra State, by separating the Telugu-speaking areas from the Madras state.
- **Fazl Ali Commission (Dec 1953 - Sept 1955):** Accepted language as a basis but rejected 'one language-one state' theory. Its recommendations led to the States Reorganisation Act (1956), creating 14 states and 6 UTs on Nov 1, 1956. Members of commission: Fazl Ali(Chairman), K.M. Panikkar and H.N. Kunzru.

COMPARISON BETWEEN STATES AND UNION TERRITORIES

States	Union Territories (UTs)
• The relationship with the centre is Federal. • Power distribution with the centre. • Have autonomy. • Uniformity in their administrative set-up. • The Governor is the constitutional head of state. • Parliament cannot make laws on the subjects of state lists in relation to states except under extraordinary circumstances.	• Relationships are Unitary. • Under the direct control and administration of the centre. • They do not have autonomy. • There is no uniformity in their administrative setup. • Executive head (agent of the president): Administrator, Lt. Governor, Chief Commissioner. • Parliament can make law on any subject of the three lists in relation to union territories.

- States and UTs are listed under the **First Schedule** of the Constitution.

- **28 States of India-**

S.No	State	Capital	S.No	State	Capital
1	Andhra Pradesh	Amaravati	15	Maharashtra	Mumbai
2	Arunachal Pradesh	Itanagar	16	Manipur	Imphal
3	Assam	Dispur	17	Meghalaya	Shillong
4	Bihar	Patna	18	Mizoram	Aizawl
5	Chhattisgarh	Raipur	19	Nagaland	Kohima
6	Goa	Panaji	20	Odisha	Bhubaneswar
7	Gujarat	Gandhinagar	21	Punjab	Chandigarh
8	Haryana	Chandigarh	22	Rajasthan	Jaipur
9	Himachal Pradesh	Shimla	23	Sikkim	Gangtok
10	Jharkhand	Ranchi	24	Tamil Nadu	Chennai
11	Karnataka	Bengaluru	25	Telangana	Hyderabad
12	Kerala	Thiruvananthapuram	26	Tripura	Agartala
13	Madhya Pradesh	Bhopal	27	Uttar Pradesh	Lucknow
14	Mizoram	Aizawl	28	West Bengal	Kolkata

- **8 Union Territories (UTs)-**

S.No	Union Territory	Capital	Administrative Head
1	**Andaman & Nicobar Islands**	Port Blair (Sri Vijaya Puram)	Lieutenant Governor
2	**Chandigarh**	Chandigarh	Administrator
3	**Dadra & Nagar Haveli and Daman & Diu**	Daman	Administrator
4	**Delhi (NCT)**	New Delhi	Lieutenant Governor
5	**Jammu & Kashmir**	Srinagar (S) / Jammu (W)	Lieutenant Governor
6	**Ladakh**	Leh	Lieutenant Governor
7	**Lakshadweep**	Kavaratti	Administrator
8	**Puducherry**	Puducherry	Lieutenant Governor

6. Citizenship (Part II: Article 5-11)

CONSTITUTIONAL PROVISIONS RELATED TO CITIZENSHIP

- **Articles 5 to 11:** Located in Part II of the Constitution, these provisions identify those who became citizens of India at its commencement on January 26, 1950. They do not contain permanent or detailed rules on citizenship.
    - Article 5: Citizenship at the time of the Constitution's commencement. People who were born in India or have been residing in India for 5 years immediately before the commencement of the constitution.
    - Article 6: Citizenship of those who migrated from Pakistan to India and either of his/her parents or grandparents were born in undivided India.
    - Article 7: Citizenship of those who migrated to Pakistan and later returned to India and had been a resident for six months.
    - Article 8: Citizenship for Persons of Indian Origin residing abroad.
    - Article 9: Termination of citizenship upon voluntary acceptance of another country's citizenship.
    - Article 10: Continuance of citizenship rights unless Parliament enacts a law.
    - Article 11: Parliament's authority to regulate citizenship through laws.
- **Parliament's Power:** Parliament is empowered to legislate on matters related to citizenship.

The Citizenship Act, 1955: Governs acquisition (5 ways) and loss of Indian citizenship (3 ways) post-Constitution commencement. This has been amended many times subsequently in 1957, 1960, 1985, 1986, 1992, 2003, 2005, 2015 and 2019. Initially included Commonwealth citizenship, removed by the Citizenship (Amendment) Act, 2003.

ACQUISITION OF CITIZENSHIP (CITIZENSHIP ACT, 1955)

Since the Constitution only dealt with citizenship at the start, the **Citizenship Act of 1955** provides five ways to acquire it:

1. **By Birth:**

- Born in India:
    - (Jan 26, 1950 - July 1, 1987): Automatic citizenship, regardless of parents' nationality.
    - (Post-Jul 1, 1987): Citizenship if at least one parent is an Indian citizen.
    - (Post-Dec 3, 2004): Citizenship if both parents are citizens or one is a citizen and the other is not an illegal migrant.

- Exclusions: Children of foreign diplomats and enemy aliens cannot acquire citizenship by birth.

2. **By Descent:**

- Born Outside India:
    - (Jan 26, 1950 - Dec 10, 1992): Citizenship if the father was an Indian citizen.
    - (Post-Dec 10, 1992): Citizenship if either parent is an Indian citizen.
    - (Post-Dec 3, 2004): Birth must be registered at an Indian consulate within one year or with Central Government permission afterward.

3. **By Registration:** For Persons of Indian Origin (PIO), spouses of citizens, or minor children (usually requires 7 years of residence).
4. **By Naturalization:** For foreigners (not illegal migrants) who have resided in India for 12 years (11 years + 1 year immediately preceding application) and know a language in the 8th Schedule.
5. **By Incorporation of Territory:** If a new territory becomes part of India (e.g., Pondicherry in 1962), the Government specifies who shall be citizens.

LOSS OF CITIZENSHIP

The 1955 Act prescribes three ways a person may lose their citizenship:

- **Renunciation:** A voluntary act where a person of full age and capacity declares they no longer wish to be an Indian citizen.
- **Termination:** Automatic loss of Indian citizenship if a person voluntarily acquires the citizenship of another country (Single Citizenship principle).
- **Deprivation:** Compulsory termination by the Central Government on grounds like:
    - Obtaining citizenship by **fraud**.
    - Showing **disloyalty** to the Constitution.
    - Unlawfully trading with an **enemy** during war.
    - Resident outside India for **7 years continuously**.

SINGLE CITIZENSHIP

Despite being a federal country like the USA, India provides for **Single Citizenship** to promote fraternity and national unity. There is **no separate** "State Citizenship." The Indian Constitution establishes single citizenship like Canada, meaning all citizens are Indian citizens, regardless of their state of residence.

Exceptions: Under **Article 16**, Parliament can prescribe residence as a condition for certain jobs in a state. Also, Tribal areas (6th Schedule) protect the rights of locals against outsiders.

Allegiance: Citizens owe allegiance only to the Union, with no separate state citizenship.

Eligibility for President:

- India: Both citizens by birth and naturalised citizens can hold the office of President.
- USA: Only citizens by birth are eligible for the office of President.

Tribunal Empowerment:

- The Ministry of Home Affairs (MHA) has amended the Foreigners (Tribunals) Order, 1964.
- District Magistrates in all States and Union Territories can now establish tribunals (quasi-judicial bodies) to determine if individuals residing illegally in India are classified as foreigners.
- Certain Offices require Indian citizenship: Judges of Supreme Court, President of India, VP of India, Governor, MLAs/MPs, Attorney General of India, and Advocate General of India.

LOSS OF CITIZENSHIP

The Citizenship Act (1955) prescribes three ways, whether acquired under the Act or prior to it under the Constitution.

1. Renunciation of Citizenship (Section 8)

- Process: A citizen of full age can declare renunciation, which is registered by the authorities.
- Effect: Citizenship ceases upon registration; the process can be withheld during wartime.
- Minor Children: Children of the renouncing citizen also lose citizenship but can reclaim it upon turning 18 within one year.

2. Termination of Citizenship (Section 9)

- Automatic Loss: Voluntarily acquiring another country's citizenship results in automatic loss of Indian citizenship.
- Exception: This does not apply during wartime.

3. Deprivation of Citizenship (Section 10): Citizenship can be revoked by the government if:

- Fraud: Acquired through deceit.
- Disloyalty: Demonstrated disloyalty to the Constitution.
- Unlawful Trade: Engaged with enemies during wartime.
- Criminal Record: Imprisoned for at least two years within five years of gaining citizenship.
- Continuous Residence: Resided outside India for seven years, with exceptions for students, government employees, international organisation members, or those registered to retain citizenship at consulates.

CITIZENSHIP AMENDMENT ACT, 2019

Definition of Illegal Migrants: A foreigner entering India without valid documents or overstaying is deemed an illegal migrant.

Prohibition: Illegal migrants cannot acquire Indian citizenship.

Citizenship for (Persecuted Migrants)-

Exemptions: Hindus, Sikhs, Buddhists, Jains, Parsis, and Christians from Afghanistan, Bangladesh, and Pakistan entering before December 31, 2014, are exempt.

Reduced Requirement: Citizenship requirement for these groups is 5 years instead of 11 years.

Exclusions -

Tribal Areas: Exemptions do not apply to tribal areas of Assam, Meghalaya, Mizoram, and Tripura (Sixth Schedule).

Inner Line Areas: Also exempt are regions under the Bengal Eastern Frontier Regulation, 1873 (e.g., Arunachal Pradesh, Mizoram, Manipur, and Nagaland).

7. Fundamental Rights (Part-III: Article 12-35)

The Fundamental Rights are enshrined in **Part III** of the Constitution from **Article 12 to 35**. These are fundamental for all round (material, intellectual, moral and spiritual) development. These were inspired by the Constitution of the USA (**Bill of Rights**). It is rightly described as the ***Magna Carta* of India**.

▪ Key Features of Fundamental Rights-

- **Amendable:** Can be amended by Parliament via constitutional amendments, without altering the **"basic structure"** of the Constitution.
- **Qualified:** Rights are **not absolute** and are subject to reasonable restrictions.
- **Protection against State and Individuals:** Protection against arbitrary state action, with some extending protection against private individuals.
- **Positive and Negative Rights:** Some rights limit state authority (negative), while others provide individual privileges (positive).
- **Democratic:** Promote political democracy by limiting executive tyranny and arbitrary legislative laws.
- **Justiciable:** Enforceable through courts if violated.
- **Claims against state:** Rights are claims by the citizens against the state and not vice versa.
- They **can be suspended** during the operation of **a National Emergency** except for the rights guaranteed by Articles 20 and 21.
    - The **6 fundamental rights guaranteed by Article 19 are automatically suspended** only on the grounds of external aggression and not on the grounds of armed rebellion.

Constitutional Provisions with Respect to Fundamental Rights-

Originally there were seven, but the **Right to Property (Art. 31)** was deleted by the **44th Amendment Act (1978)** and made a legal right under **Article 300-A**.

Category	Articles	Key Essence
Right to Equality	14 – 18	Equality before law; abolition of untouchability/titles.
Right to Freedom	19 – 22	Protection of 6 rights (speech, assembly, etc.); Right to life.
Right against Exploitation	23 – 24	Prohibition of forced labor and child labor.
Right to Freedom of Religion	25 – 28	Freedom of conscience, practice, and management.
Cultural & Educational Rights	29 – 30	Protection of interests/institutions of minorities.
Right to Constitutional Remedies	32	Right to move SC for enforcement (the "Soul" of the Constitution).

Definition of State and Laws Inconsistent with Fundamental Rights-

Definition of State (Article12)	Laws Inconsistent with Fundamental Rights (Article 13)
• As per **Article 12**, the term **State** includes Government and parliament; Government and legislature of states; All local authorities i.e. municipalities, panchayat, district boards, improvement trust etc.; All other authorities, that is, statutory or non-statutory authorities like LIC, ONGC, etc. • According to the **Supreme Court**, even a **private body** or an agency working as **an instrument of the state** falls within the meaning of state under Article 12.	• **Article 13**: All laws that are inconsistent with or in derogation of any of the fundamental rights shall be void (expressively provides for **the doctrine of judicial review**). • **Term 'law' in Article 13**: Permanent laws enacted by the centre and state; temporary ordinance by the President; Statutory instruments of delegated legislation (executive legislation) like order; custom or usage having the force of law. • **Article 13(4)** states that nothing in this article shall apply to any amendment of this constitution made under Article 368. (**24th constitutional amendment, 1971**). o However, in the **Kesavananda Bharati case (1973)**, the SC held that a Constitutional amendment can be challenged on the ground if it violates a fundamental right that forms a part of the 'basic structure' of the Constitution and hence, can be declared as void.

RIGHT TO EQUALITY: ARTICLE 14-18

1. Equality before Law & Equal Protection of the Laws

Article 14: The state shall not deny to any person **"equality before the law"** or the **"equal protection of the laws"** within the territory of India.

- **Equality Before Law (British Origin)**
  - Absence of any special privileges in favour of any person,
  - Equal subjection of all persons to ordinary law of land administered by ordinary law courts,
  - No person is above the law.
- **Equal Protection of Law (American Origin)**
  - Equality of treatment under equal circumstances, both in privileges conferred and liabilities imposed by the laws,
  - Similar application of the same laws to all persons who are similarly situated,
  - Like should be treated alike without any discrimination.
- The Supreme Court held that where equals and unequals are treated differently, Article 14 does not apply.
- **Article 14 forbids class legislation, but it permits reasonable classification of persons, objects and transactions by the law** (should not be arbitrary, artificial or evasive). A Legislation which confers on the executive or administrative authority an unguided and uncontrolled discretionary power in the matter of application of law violates Article 14 of the Constitution.
- **Rule of Law (by A V Dicey) (Basic feature of the Constitution):** The concept of 'Equality before Law' is an element of the Rule of Law.
- **Rule of Law has 3 fundamental principles:** The first and the second elements are applicable to the Indian System (the Constitution is the source of the individual rights).
  - Absence of arbitrary power - applicable to the Indian System.
  - Equality before the law - applicable to the Indian System.
  - Primacy of individual rights - Not applicable, as the constitution is the source of individual rights.

Exceptions to Equality:

- **Art 361:** The President of India and Governor enjoy few immunities.
- **Art 361-A:** No person is liable for any civil or criminal proceedings in any court in respect of publication in the newspaper (or by radio/television) of a substantially true report of any proceedings of Parliament or the state legislature.
- **Art 105:** Parliamentary privilege of members of Parliament.

- **Art 194:** Privileges of members of the state legislature in the legislature or any committee thereof.
- **Art 31-C:** SC held that where "Art 31-C comes in, Art 14 goes out".
  - It provides that the laws made by the state for implementing the directive principles contained in clause (b) or clause (c) of Article 39 cannot be challenged on the grounds that they are violated of Article 14.
- Foreign sovereigns and diplomats enjoy immunity from criminal and civil proceedings.
- The UNO and its agencies enjoy diplomatic immunity.

2. Prohibition of Discrimination on Certain Grounds

- **Article 15(1):** The state shall **not** discriminate against any citizen **on grounds only of religion, race, caste, sex or place of birth**. The word **'only'** connotes that discrimination on other grounds is not prohibited.
- **Art 15(2):** No citizen shall on the grounds only of **religion, race, caste, sex, place of birth, or any of them,** be subject to any disability, liability restriction or condition with regard to -
  - Access to shops, public restaurant, hotels, and place of entertainment or,
  - The use of wells, tanks, bathing ghats, roads and places of public resorts maintained wholly or partly out of state funds or dedicated to the use of the general public.
- This provision prohibits discrimination **both by the State and private individuals**, while the former provision prohibits discrimination only by the State.
- **Art 15(3) and 15(4):** Foundational bricks of reservation system in the country.
- **Four exceptions to this general rule of non-discrimination:**
  - The State is permitted to make any **special provision for women and children**.
  - For the **advancement of** any socially and educationally backward classes or for SCs and STs.
  - For the **advancement of** any socially and educationally backward classes of citizens or for SCs and STs regarding their admission to educational institutions, including private educational institutions, whether aided or unaided by the state **except** minority educational institutions.
  - For the **advancement of** any economically weaker section **(EWS)** of citizens.
- **Reservation for OBCs in Educational Institutions:**
  - **Exception in Article 15 (5):** The **93rd Amendment Act (2005)** enacted Central Educational Institutions (reservation in admission) Act, 2006, providing quota **for 27% reservation** for the OBCs in all central higher educational institutions including the IITs and the IIM.
  - **The Supreme Court** upheld the validity and directed the central government to exclude the **'creamy layer'** among the OBCs while implementing the law.
- **Reservation for EWS in Educational Institutions:**
  - **Exception in Article 15 (6)** was added by the **103rd Amendment Act of 2019**. **10% reservation** to EWS in admission to educational institutions was introduced.
  - EWS's who are not covered under any of the existing schemes of reservations for SCs, STs and OBCs.

➢ **The eligibility criteria laid down in this regard is as follows:**

I. Persons whose family has gross annual income below 8 lakh are to be identified as EWS's for the benefit of reservation.

II. Persons whose family owns or possesses any of the following assets are to be excluded from being identified as EWSs, irrespective of the family income:
   - 5 acres of Agricultural land and above,
   - Residential flat of 1000 sq.ft. and above,
   - Residential plot of 100 sq.yards and above in notified municipalities,
   - Residential plot of 200 sq.yards and above in areas other than the notified municipalities.

III. The Property held by a family in different locations, places, cities would be clubbed while applying the land or property holding test to determine EWS status.

IV. Family for this purpose would include the person who seeks benefit of reservation, his/her parents and siblings below the age of 18 years as also his/her spouse and children below the age of 18 years.

3. Equality of Opportunity in Public Employment

Article 16: Equality of opportunity for all citizens in matters of **public employment** or **appointment** to any office under the state.

- **No citizen can be discriminated** against or be ineligible for any employment or office under the state on grounds **of only religion, race, caste, sex, descent, place of birth or residence.**
- **Four exceptions to this general rule of Equality of opportunity:**
  - Parliament can prescribe **residence as a condition** for certain employment or appointment in a State or UT or local authority or other authority (presently only in Andhra Pradesh and Telangana).
  - State can provide for **reservation of appointments or posts in favour of any backward class** that is not adequately represented in state services
  - A law can provide that the incumbent of an office related to a religious or denominational institution or a member of its governing body **should belong to the particular religion or denomination**.
  - State is **permitted to make a provision for the reservation of upto 10% of appointment** of post in favour of any citizen belonging to EWS.
- **Indra Sawhney Judgement: SC in Indra Sawhney (1992), examined the scope of Article 16(4):**
  - It upheld the constitutional validity of **27% reservation for the OBCs** with certain conditions.
  - Advanced sections among the OBCs (the creamy layer) should be excluded from the list of beneficiaries of reservation.
  - **Rejected** the additional reservation of **10% for poorer sections**.
  - Total reserved quota **should not exceed 50%** except in some extraordinary situations.
  - **No reservation in promotions**; reservation should be confined to initial appointments only.
  - **'Carry Forward Rule'** in case of backlog vacancies is valid - should not violate the 50% rule.
  - A permanent statutory body should be established to examine inclusion-exclusion purposes.

• **1953:** The First Backward Classes Commission was formed under the chairmanship of **Kaka Kalelkar**. • **1979:** Under Article 340, Second Backward Classes Commission under the chairmanship of **B.P. Mandal** to **investigate** the conditions of the **SEBCs** (Socially and Educationally Backward Classes) and suggest measures for their advancement. o About 52% of India's population is Socially + educationally backward (**excluding SCs and STs**) o Reservation of **27% government jobs for the OBCs**-total reservation **would be 50%**. • **1990: V.P. Singh** Govt. declared a reservation of **27%** in government jobs for the OBCs. • **1991: Narasimha Rao** Govt. introduced two changes: o Preference to **the poorer sections** among the OBCs in the **27% quota** (economic criteria) o Reservation of another **10% in jobs** for poorer sections among the higher castes.	• **NCBC (National Commission Backward Classes)** was established by **an Act in 1993**. It was accorded constitutional status by the 102nd CAA (2018) by inserting a **new Article 338-B** in the constitution. • **Justice Rohini Commission:** The Commission**, formed in 2017 under Article 340** of the Indian Constitution, was tasked with **investigating the unequal distribution of reservation benefits among OBCs**. Its objectives include developing a scientific approach for sub-categorization within OBCs, identifying and classifying castes in the Central List, and reviewing the list to address errors, repetitions, and inconsistencies. In 2020, its mandate expanded to correcting ambiguities and transcription issues.

4. Abolition of Untouchability

Article 17: It abolishes **'untouchability'** and forbids its practice in any form.

- **The Untouchability (Offences) Act, 1955** was amended in 1976 and **renamed** as **"Protection of Civil Rights Act, 1955"**. The phrase "Untouchability" is not defined either in the Constitution or in the act.
- **Mysore High Court:** The subject matter of Article 17 is not untouchability in the literal or grammatical sense but the 'practice as it had developed historically in the country'.
- Exception: Does not cover the **social boycott** of a few individuals or their exclusion from religious services etc.
- The Supreme Court, in **the People's Union For Democratic Rights case (1982)**, held that the right under Article 17 is available **against private individuals**, and it is the **constitutional obligation of the state to take necessary action** to ensure that this right is not violated.

5. Abolition of Titles

Article 18: It abolishes titles and makes four provisions in that regard:

- It prohibits the state from conferring any title **(except a military or academic distinction)** on anybody, **whether a citizen or a foreigner.**

- It prohibits a citizen of India from accepting any title from any foreign state.
- Foreigners holding any office of profit or trust under the state cannot accept any title from any foreign state **without the consent of the President.**
- No citizen or foreigner holding any office of profit or trust under the State is to accept any present, emolument/ office from/under any foreign State **without the consent of the president.**
- **The Supreme Court in the Balaji Raghavan Case (1996)** upheld the constitutional validity of the National Awards–Bharat Ratna, Padma Vibhushan, Padma Bhushan and Padma Shri.
  - SC ruled that these awards do not amount to 'titles' within the meaning of **Article 18, which prohibits only hereditary titles of nobility** - Maharaja, Raj or Rai Bahadur, Rai Saheb, Dewan Bahadur etc.
- They **should not be used as suffixes or prefixes** to the names of awardees. Otherwise, they should forfeit the awards.

In 1996, The SC upheld the constitutional validity of the National Awards- Bharat Ratna, Padma Vibhushan, Padma Bhushan and Padma Sri. It ruled that these awards do not amount to 'titles' within the meaning of Article 18 that prohibits only hereditary titles of nobility. These National Awards were instituted in 1954. **The Janata Party Govt. headed by Morarji Desai discontinued them in 1977**, but they were again **revived in 1980 by the Indira Gandhi Govt**.

RIGHT TO FREEDOM: ARTICLE 19-22

1. Protection of Six Rights

Article 19(1): Guarantees to all citizens the **six rights**.

- Originally, the Constitution provided for **seven Fundamental Rights under Article 19**. The right to property was **deleted** from the list by the **44th Amendment Act, 1978**. It is made a legal right under Article 300-A in Part XII of the Constitution. So, at present, there are only six Fundamental Rights under Article 19.
- The Supreme Court has ruled that a fundamental right under **Articles 19 and 21 can be enforced** even against private parties other than the State or its instrumentalities.
- States **can impose reasonable restrictions** on these 6 rights solely on the grounds mentioned in **Article 19(2)** itself and not on other grounds.

Article 19(2): The State can impose reasonable restrictions on the following grounds:

- Friendly relations with foreign states (1st CAA, 1951)
- Incitement to an offence (1st CAA, 1951)
- Public order (1st CAA, 1951)
- Sovereignty and integrity of India (16th CAA, 1963)
- Defamation; Contempt of court; Security of the state; Decency or morality.

Article 19 (1) (a): Freedom of Speech and Expression

The Supreme Court held that freedom of speech contains the following rights:

• Right to propagate one's views as well as the views of others. (Freedom of circulation.) • Freedom of the press. • Freedom of commercial advertisements. • Right against tapping of telephonic conservation. • Right to telecast, that is, the government has no monopoly on electronic media. • Right against bandh called by a political party or organisation. • Right to know about government activities. • Freedom of silence. • Right against imposition of pre-censorship on a newspaper.	• Right to fly the national flag. • Right of voters to know the antecedents of the candidates contesting elections. • Right to choose the medium of instruction at the stage of primary school. • Right to express gender identity. • Right to reply (right to answer the criticism). • Right to post information/videos on the internet/ social media. • Right of film-makers to exhibit their films. • Right to access the internet (right to access to information via the internet) • Right to demonstration or picketing but not the right to strike.

Article 19 (1) (b): Freedom of Assembly: All Citizens have the right to assemble peaceably and without arms.

- Right to hold public meetings, demonstrations and take out processions.
- Permitted only on public land in a peaceful manner and without arms.
- Does not protect: Violent, disorderly, riotous assemblies or one that causes a breach of public peace or involves arms. Right does not include Right to Strike.
- Article 19 (3) mentions reasonable restrictions on two grounds: Sovereignty and integrity of India; Public order, including the maintenance of traffic in the concerned area.
- Section 144 (CrPC): Magistrate can restrain an assembly, meeting or procession involving the risk of obstruction, annoyance or danger to human life, health or safety or disturbance of public tranquillity or riot or any affray – invoked on many instances to tackle COVID-19.
- Section 141 (IPC): Assembly of five or more persons becomes unlawful if the objective is:
    - To resist the execution of any law or legal process.
    - To forcibly occupy the property of some person.
    - To commit any mischief or criminal trespass.
    - To force someone to do an illegal act.
    - To threaten govt. officials on exercising lawful powers.

Article 19 (1) (c): Freedom of Association: All citizens have the right to form associations or unions or cooperative societies:

- Right to Form: Political Parties + companies + partnership firms + societies + clubs + organisations + trade unions or anybody of persons. Includes the right to continue with the association. Includes negative right of not to form or join an association or union.
- Article 19(4) - Reasonable restrictions: Sovereignty of India + Integrity of India + Public order + Morality.
- Right to obtain recognition of association is not a fundamental right.
- Supreme Court held that trade unions have:
    - No guaranteed right to effective bargaining.
    - Have no right to strike. (It can be controlled by an appropriate industrial law.)
    - Have no right to declare a lockout.

Article- 19(1) (d): Freedom of Movement: Every citizen has the right to move freely - Inter-state and Intra-state movement.

- Article 19(5) - Reasonable restrictions: Interest of general public + Protection of interests of any STs.
- Supreme Court: The movement of prostitutes can be restricted on grounds of - public health and morals.
- Article 19: Internal freedom of movement - right to move inside the country.
- Article 21: External freedom of movement - right to move out of the country.

Article- 19(1) (e): Freedom of Residence: Every citizen has the right to reside and settle in any part of the territory of India. (Stay temporarily or set up a domicile at any place permanently.)

- Intended to remove internal barriers within the country. (To promote nationalism and avoid narrow mindedness.)
- Article 19(5) - Reasonable restrictions: Interest of general public and Protection of interests of any ST.
- In many parts of the country, the tribals have been permitted to regulate their property rights in accordance with their customary rules and laws.
- Supreme court: Certain areas can be banned for certain kinds of persons like prostitutes and habitual offenders.

Article- 19(1) (g): Freedom of Profession: All citizens are given the right to practise any profession or to carry on any occupation, trade and business.

- Very wide: Covers all means of earning one's livelihood
- Article 19(6): The State can impose reasonable restrictions on the exercise of this right in the interest of the general public. State is empowered to:
    - Prescribe professional/technical qualifications necessary for practising any profession or carrying on any occupation, trade or business

- Carry on by itself any trade, business, industry or service whether to the exclusion (complete or partial) of citizens or otherwise.
- State is not required to justify its monopoly.

- Does not include: Right to carry on a profession or business or trade or occupation that is immoral or dangerous – state can absolutely prohibit these or regulate through licensing.

2. Protection in Respect of Conviction for Offences

Article 20: Protection in respect of conviction for offences. Protection against arbitrary and excessive punishment to an accused person - Citizen, or foreigner or legal person like a company or a corporation.

- **No ex-post-facto Law** (imposes penalties retrospectively): No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act nor subjected to a penalty greater than that prescribed by the law in force at the time of the commission of an offence.
  - The limitation is imposed only with respect to criminal law, not civil laws or tax laws
  - It cannot be claimed in case of preventive detention /demanding security from a person.
- **No Double Jeopardy:** No one shall be prosecuted and punished for the same offence more than once. Available only on proceedings before a court of law or judicial tribunal (judicial bodies). Inquiries by Dept. or administrative authorities are exceptions.
- **No Self-Incrimination:** No person accused of any offence shall be compelled to be a witness against himself (oral and documentary evidence). It only extends to criminal proceedings and not to civil proceedings. It doesn't extend to:
  - Compulsory production of material objects,
  - Compulsion to give thumb impression, blood specimen,
  - Compulsory exhibition of body.

3. Protection of Life and Personal Liberty

Article 21: Protection of life and personal liberty No person shall be deprived of his life or personal liberty except according to the procedure established by law. This right is available to both citizens and non-citizens.

- Procedure established by law (borrowed from the Japanese Constitution): The validity of a law that has prescribed a procedure cannot be questioned on the ground that the law is unreasonable, unfair or unjust.
- Due Process of Law (American concept): A doctrine that not only checks if there is a law to deprive the life and personal liberty of a person but also ensures that the law is made fair and just.

Landmark Cases on Article 21:

- **Gopalan Case (1950):** Protection under Article 21 is available against arbitrary executive action and not from arbitrary legislative action. Here the SC took a narrow interpretation of Article 21.
  - Personal liberty: only liberty relating to the person or body of an individual.
- **Maneka Gandhi Case (1978):** Introduced 'due process of law': Protection under Article 21 should be available not only against arbitrary executive action but also against arbitrary legislative action.
  - The right to life and personal liberty of a person cannot be deprived by law provided the procedure prescribed by that law is reasonable, fair and just.
  - Right to life: Right to live with human dignity.
  - Personal liberty: Widest amplitude, and it covers a variety of rights that constitute the personal liberties of a man. It is a wider interpretation of Article 21.
- **KS Puttaswamy Case (2017):** It held that privacy is a natural right that inheres in all-natural persons, and that right may be restricted only by state action if it passes each of three tests:
  - Such state action must have a legislative mandate
  - It must be pursuing a legitimate state purpose
  - It must be proportionate.
- **Hadiya Case (2017):** The Supreme Court held that "The right to marry a person of one's choice is integral to Article 21 (right to life and liberty) of the Constitution".
- **M.K.Ranjitsinh judgement:** the Supreme Court recognized the right to protection from climate change impacts under Articles 21 and 14 as essential to life and equality.

Rights as part of Article 21:

1. Right to live with human dignity. 2. Right to a decent environment, including pollution-free water and air and protection against hazardous industries. 3. Right to livelihood. 4. Right to privacy. 5. Right to shelter. 6. Right to health. 7. Right to free education upto 14 years 8. Right to free legal aid. 9. Right against solitary confinement. 10. Right to speedy trial. 11. Right against handcuffing.` 12. Right against inhuman treatment. 13. Right against delayed execution. 14. Right to travel abroad. 15. Right against bonded labour. 16. Right against custodial harassment. 17. Right to emergency medical aid. 18. Right to timely medical treatment in government hospitals. 19. Right not to be driven out of a state.	20. Right to a fair trial. 21. Right of prisoners to have necessities of life. 22. Right of women to be treated with decency and dignity. 23. Right against public hanging. 24. Right to road in hilly areas. 25. Right to information. 26. Right to reputation. 27. Right of appeal from a judgement of conviction 28. Right to family pension 29. Right to social and economic justice and empowerment 30. Right against bar fetters 31. Right to appropriate life insurance policy 32. Right to sleep 33. Right to freedom from noise pollution 34. Right to sustainable development 35. Right to opportunity. 36. Right to decent burial/cremation. 37. Right to marry a person of one's choice. 38. Right to die with dignity. (passive euthanasia)

4. Right to Education

Article 21A: (inserted by the 86th CAA, 2002): State shall provide free and compulsory education to all children of the age of 6-14 years, in such manner as the State may, by law, determine.

- This provision makes only elementary education a fundamental right, not higher or professional education. In pursuance of Article 21A, the Parliament enacted the Right of Children to free and Compulsory Education (RTE) Act, 2009
- In the Unni Krishnan case (1993), the Supreme Court recognized a fundamental right to primary education in the right to life under Article 21.

86th CAA (2002): Education for All is considered the "Dawn of the second revolution in the chapter of citizen's rights" Other changes made by the 86th CAA, 2002

- Article 45 in Part IV: The Directive principles of state policy – provision for free education
- Change after 86th CAA: The state shall endeavour to provide early childhood care and education to children until they complete the age of 6 years.
- Article 51A: It shall be the duty of every citizen of India to provide opportunities for education to his child or ward between the age of 6 and 14 years.

5. Protection against Arrest and Detention

Article 22: It grants **protection to persons who are arrested or detained** in certain cases.

Preventive detention: Without trial and conviction by court.

Punitive detention: Punishment after trial and conviction.

- **Article 22 (1):** Confers the rights of a person who is arrested or detained under an ordinary law. These include:
  - Right to be informed of the grounds of arrest
  - Right to consult and be defended by a legal practitioner
  - Right to be produced before a magistrate within 24 hours (excluding the journey time)
  - Right to be released after 24 hours unless the magistrate authorises further detention.
  - These safeguards are not available to an enemy alien or a person arrested or detained under a preventive detention law.

- **Article 22(2):** Grants protection to persons who are arrested or detained under a preventive detention law.
    - Available to both citizens as well as aliens.
    - The detention of a person cannot exceed three months unless the advisory board reports sufficient cause for extended detention. The board is to consist of judges of a High Court.
- **Article 22 also authorises** the Parliament to prescribe circumstances and classes of cases in which a person can be detained for **more than three months** under a preventive detention law **without obtaining the opinion of an advisory board**; maximum period for which a person can be detained under a preventive detention law; procedure to be followed by an advisory board.
- Parliament has exclusive authority to make a law of preventive detention with respect to defence, foreign affairs and the security of India.
- Both Parliament and state legislatures can concurrently make a law of preventive detention for security of state, maintenance of public order, supplies & services essential to the community.

No democratic country in the world has made preventive detention as an integral part of the Constitution as has been done in India.

Article 22(5):

- Preventive Detention Rights: Requires detainees to be informed of the grounds for detention.
- Opportunity for Representation: Guarantees the right to challenge detention legally.

Prevention of Terrorism Act (POTA), 2002:

- Purpose: Strengthened anti-terrorism operations; repealed in 2004.
- Confession Admissibility: Allowed confessions to police officers of a specified rank to be used in trials, raising concerns about coercion.

RIGHT AGAINST EXPLOITATION: ARTICLE 23-24

1. Prohibition of Traffic in Human Beings and Forced Labour

Article 23: Prohibition of traffic in human beings and forced labour.

- This right is available to both citizens and non-citizens.
- It is available against both the State and Private persons.

Exception: Article 23 permits the State to impose compulsory service for public purposes. E.g. Military service or social service, for which it is not bound to pay.

- Expression 'traffic in human beings' includes selling and buying of men, women and children like goods; Immoral traffic in women and children; prostitution; Devadasis; Slavery.
    - To punish these Acts, the Parliament has implemented the Immoral Traffic (Prevention) Act, 1956.

2. Prohibition of Employment of Children in Factories, etc.

Article 24: Prohibits the employment of children (below the age of 14 years) in any factory, mine or other hazardous activities like construction work or railway.

- It does not prohibit their employment in any harmless or innocent work.
- Commissions for Protection of Child Rights Act, 2005: Enacted to provide for the establishment of National and State Commissions for Protection of Child Rights and Children's Courts for providing speedy trial of offences against children or of violation of child rights.
- Supreme Court: Directed the establishment of the Child Labour Rehabilitation Welfare Fund.

In 2006, the government banned the employment of children as domestic servants or workers in business establishments like hotels, dhabas, restaurants, shops etc. Anyone employing children below the age of 14 years will be liable for prosecution and penal action.

RIGHT TO FREEDOM OF RELIGION: ARTICLE- 25-28

1. Freedom of Conscience and Free Profession, Practice and Propagation of Religion

Article 25: All persons are equally entitled to freedom of conscience and the right to freely profess, practice and propagate religion. It includes:

- **Freedom of conscience:** Inner freedom of an individual to mould his relation with God or Creatures in whatever way he desires.
- **Right to profess:** Declaration of one's religious beliefs and faith openly and freely.
- **Right to practice:** Performance of religious worship, rituals, ceremonies and exhibition of beliefs and ideas.
- **Right to propagate:** Transmission and dissemination of one's religious beliefs to others or exposition of the tenets of one's religion.
    - Right to propagate does not include a right to convert another person to one's own religion. Forcible conversions impinge on the 'freedom of conscience' guaranteed to all persons alike.
- **Article 25 covers:** Religious beliefs (doctrines) and religious practices (rituals).
- Article 25 also contains two explanations:
    - Wearing and carrying of kirpans is to be included in the profession of the Sikh religion
    - Hindus include Sikhs, Jains and Buddhists.
- **Available to all persons:** Citizens as well as non-citizens.
- **Exceptions:** Public order, morality, health and other provisions relating to fundamental rights.

2. Freedom to Manage Religious Affairs

Article 26: Freedom to manage religious affairs: Every religious denomination or any of its sections shall have the following rights:

- Right to establish and maintain institutions for religious and charitable purposes.
- Right to manage its own affairs in matters of religion.
- Right to own and acquire movable and immovable property.
- Right to administer such property in accordance with law.

Article 25 guarantees the rights of individuals, while Article 26 guarantees the rights of religious denominations or their sections, thus protecting the collective freedom of religion.

- Restrictions: Article 26 is subject to public order, morality and health but not subject to other provisions relating to the fundamental rights.
- Supreme Court held that religious denominations must satisfy three conditions:
    - It should be a collection of beliefs (doctrines) which they regard as conducive to their spiritual well-being.
    - It should have a common organisation.
    - It should be designated by a distinctive name.

SC held that Ramkrishna Mission and Ananda Marga are religious denominations within the Hindu religion, while Aurobindo Society is not a religious denomination.

3. Freedom from Taxation for Promotion of a Religion

Article 27: Freedom from Taxation for Promotion of a Religion: No person shall be compelled to pay any taxes for the promotion or maintenance of any particular religion or religious denomination.

- Provision prohibits the state from favouring, patronising and supporting one religion over the other.
- Taxes can be used for the promotion or maintenance of all religions and not any particular religion.
- Provision prohibits only the levy of a tax and not a fee.

- Fee can be levied on religious endowments for meeting the regulation expenditure.

4. Freedom from Attending Religious Instruction

Article 28: Freedom from Attending Religious Instruction: No religious instruction shall be provided in any educational institution wholly maintained out of state funds.

- Not applicable to educational institutions administered by the state but established under any endowment or trust, requiring imparting of religious instruction in such institutions.
- No person attending any educational institution recognized by the state or receiving aid out of state funds shall be required to attend any religious instruction or worship in that institution without his/her consent.
- Article 28 distinguishes four types of educational institutions:
  - Institution wholly maintained by the state completely prohibited.
  - Institution administered by the state but established under any endowment or trust - religious instruction is permitted.
  - Institution recognised by state - permitted on a voluntary basis.
  - Institution receiving aid from the state - permitted on a voluntary basis.

CULTURAL AND EDUCATIONAL RIGHTS: ARTICLE 29-30

1. Protection of Interests of Minorities

Article 29: Protection of Interests of Minorities

- **Rights of a group:** It provides that 'any section of the citizens' residing in any part of India having a distinct language, script or culture of its own, shall have the right to conserve the same.
- **Right of a citizen as an individual:** No citizen shall be denied admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste, or language.

Article 29 grants protection to both religious minorities as well as linguistic minorities.

- The Supreme Court held that
  - The term **'section of the citizens'** includes minorities as well as the majority.
  - The right to conserve the language includes the right to agitate for the protection of the language.

2. Right of Minorities to Establish and Administer Educational Institutions

Article 30: Right of minorities to establish and administer educational institutions

- All minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice.
- The compensation amount fixed by the State for the compulsory acquisition of any property of a minority educational institution shall not restrict or abrogate the right guaranteed to them.
- In granting aid, the State shall not discriminate against any educational institution managed by a minority.

The **protection under Article 30** is **confined only to minorities (religious or linguistic)** and does not extend to any section of citizens.

- The term 'minority' has not been defined anywhere in the Constitution.

The right under Article 30 also includes the right of a minority to impart education to its children in its own language. Minority educational institutions are of three types:

(a) Seeking recognition as well as aid from the State. They are subject to the regulatory power of the state.

(b) Seeking only recognition from the State and not aid. They are subject to the regulatory power of the state.

(c) Neither seeking recognition nor aid from the State. They are free to administer their affairs but subject to the operation of general laws like contract law, labour law etc.

- The right conferred on minorities under Article 30 is only to ensure equality with the majority and not intended to place the minorities in a more advantageous position vis à-vis the majority. There is no reverse discrimination in favour of minorities.
- The right to establish and administer educational institutions is not absolute. Nor does it include the right to maladminister.
- In India, if a religious sect/community is given the status of a national minority, it entitled to, establish and administer exclusive educational institutions & it can derive benefits from the Prime Minister's 15-Point Programme.

RIGHT TO CONSTITUTIONAL REMEDIES: ARTICLE- 32

Article 32: These contain remedies for the enforcement of the fundamental rights of an aggrieved citizen. The right to get the Fundamental Rights protected is in itself a fundamental right.

- **Four provisions in Article 32:**
  1. Right to move to the Supreme Court.
  2. The Supreme Court has the power to issue writs.
  3. Parliament can empower any other court to issue directions, orders and writs of all kinds.
  4. Right to move the Supreme Court shall not be suspended except as otherwise provided by the Constitution.
- The Supreme Court ruled that its power under Article 32 is a Basic feature of the Constitution.
- Violation of Fundamental Rights is the sine qua non for the exercise of the rights conferred by Article 32.
- Constitutionally, the President can suspend the right to move any court for the enforcement of Fundamental Rights during a National Emergency (Article 359).
- **Enforcement of Fundamental Rights:** The jurisdiction of the SC is original but not exclusive. It is concurrent with the jurisdiction of the High Court under Art.226.
- SC ruled that where relief through the High Court is available under Art.226, the aggrieved party should first move the High Court.
- **Article 32 cannot be invoked** to determine the constitutionality of an executive order or legislation unless it directly infringes any of the Fundamental Rights.
- **Ambedkar:** "It is an article without which this constitution be a nullity". It's the very soul of the Constitution and the very heart of it.

WRITS- TYPES & SCOPE: Under **Article 32**, the Supreme Court can issue writs, while **Article 226** empowers the High Courts. Borrowed from English prerogative writs fountain of justice.

The Five Types of Writs-

1. Habeas Corpus

- **Literal Meaning:** "To have the body of."
- **Purpose:** To protect individual liberty against arbitrary detention. The court orders a person who has detained another to produce the body of the latter before it.
- **Scope:** Issued against both **public authorities** and **private individuals**. It cannot be issued if the detention is lawful or for contempt of court.

2. Mandamus

- **Literal Meaning:** "We command."
- **Purpose:** To direct a public official or body to perform a duty they have failed or refused to perform.
- **Scope:** Issued against public officials, lower courts, or corporations. It **cannot** be issued against the President, State Governors, or private individuals.

3. Prohibition

- **Literal Meaning:** "To forbid."
- **Purpose:** To prevent a lower court or tribunal from exceeding its jurisdiction. It is a "preventive" writ.
- **Scope:** Issued only against **judicial and quasi-judicial authorities**. It is not available against administrative authorities or legislative bodies.

4. Certiorari

- **Literal Meaning:** "To be certified" or "To be informed."
- **Purpose:** Issued to a lower court to transfer a matter pending before it to the higher authority or to quash the order already passed. It is both "preventive" and "curative."
- **Scope:** Like Prohibition, it applies to judicial bodies, but following a 1991 SC ruling, it can also be issued against **administrative authorities** affecting rights of individuals.

5. Quo-Warranto

- **Literal Meaning:** "By what authority or warrant."
- **Purpose:** To prevent illegal usurpation of a public office by a person. The court enquires into the legality of a person's claim to a public office.
- **Scope:** Can be sought by **any interested person**, not necessarily the aggrieved person. It applies only to public offices of a permanent character created by statute or the Constitution.

Comparison between the writ jurisdictions of Supreme Court Vs High Court:

Supreme Court (SC)	High Court (HC)
Narrower jurisdiction: can issue writs only for the enforcement of Fundamental Rights.	Wider jurisdiction: can issue writs not only for the enforcement of Fundamental Rights but also for "any other purpose" (Ordinary legal rights).
SC can issue writs against a person or government throughout the territory of India.	HC can issue writs against a person residing or against a govt or authority located within its territorial jurisdiction only or outside only if, the cause of action arises within its territorial jurisdiction.
Mandatory: Remedy under Article 32 is in itself a Fundamental Right, SC may not refuse to exercise its writ jurisdiction.	Itself a Fundamental Right, SC may not refuse to exercise its writ jurisdiction. Discretionary: Remedy under Article 226 is discretionary, HC may refuse to exercise its writ jurisdiction.

ARMED FORCES AND FUNDAMENTAL RIGHTS: ARTICLE 33-35

Article 33: Parliament can restrict or abrogate, by law, FRs in the application to: Members of Armed forces, Paramilitary Forces, police forces, intelligence agencies and analogous forces. Forces charged with the maintenance of public order.

- Parliamentary law enacted under Article 33 can also exclude the Court Martials (tribunals established under the Military law) from the writ jurisdiction of SC and HC, so far as enforcement of FR is concerned.
- Power to make laws under Article 33 is conferred only on Parliament and not on state legislatures.
- Any such law cannot be challenged in any court on the ground of contravention of any of the FR.
- The expression 'members of the armed forces' also covers such employees of the armed forces as barbers, carpenters, mechanics, cooks, chowkidars, bootmakers, and tailors who are non-combatants.

Article 34: When Martial Law is in force in any area within the territory of India, the FRs can be restricted. Borrowed from the English common law.

Martial law literally means **'military rule'**. It refers to a situation where civil administration is run by the military authorities according to their own rules and regulations framed outside the ordinary law. It thus implies the suspension of ordinary law and the government by military tribunals. It is different from the military law that is applicable to the armed forces.

- **Supreme Court:** declaration of martial law does not **ipso facto** result in the suspension of writ of habeas corpus.

- It **empowers** the Parliament **to indemnify any government servant or any other person for any act done by him**. The Act of Indemnity made by the Parliament cannot be challenged in any court on the ground of contravention of any of the FR.
- The expression 'martial law' has **not been defined anywhere** in the Constitution.
- No specific or express provision in the Constitution that authorises the executive to declare martial law, it is implicit in Article 34.

Article 35: It lays down that the power to make laws, and to give effect to certain specified fundamental rights, shall vest only in the Parliament and not in the state legislatures. Ensures there is uniformity throughout India with regard to the nature of those FRs and punishment.

- Parliament shall have (and legislature of a state shall not have) power to make laws with respect to:
  - Article 16: Prescribing residence as a condition for certain employment or appointments.
  - Article 32: Empowering courts other than SC and HC to issue directions, orders and writs.
  - Article 33: Restricting or abrogating the application of FR to members of armed forces, police forces, etc.
  - Article 34: Indemnifying any government servant or other person for any act done in martial law.
- Parliament shall have powers to make laws for prescribing punishment for those acts that are declared to be offences under the FR. These include the following:
  - Article 17: Untouchability.
  - Article 23: Traffic in human beings and forced labour.
- Article 35 extends the competence of the Parliament to make a law on the matters specified above, although some of those matters may fall within the sphere of the state legislatures (State List).

Difference between Martial Law and National Emergency

Martial Law	National Emergency (Art.352)
• Affects only Fundamental Rights. • It suspends the government and ordinary law courts. • Imposed to restore the breakdown of law and order due to any reason. • Imposed in some specific areas of the country. • No specific provision in the Constitution. It is implicit.	• Affects not only Fundamental Rights but also the Centre-state relations, distribution of revenues and legislative powers between centre and states and may extend the tenure of the Parliament. • It continues the government and ordinary law courts. • Imposed only on three grounds–war, external aggression or armed rebellion. • Imposed either in the whole country or in any part of it. • Specific and detailed provisions in the Constitution. It is explicit.

EXCEPTIONS TO FUNDAMENTAL RIGHTS

- Their scope of operation of Fundamental Rights is limited by:
- **Article 31A:** Saves five categories of laws from being challenged for contravention of the fundamental rights conferred by Article 14 and Article 19. These are:
  - Acquisition of estates and related rights by the State
  - Taking over the management of properties by the State
  - Amalgamation of corporations
  - Extinguishment or modification of rights of directors or shareholders of corporations
  - Extinguishment or modification of mining leases.
- **Article 31B:** Saves the acts and regulations included in the Ninth Schedule (added by First Amendment in 1951) from being challenged for contravention of any of the fundamental rights.
  - **SC in I.R. Coelho case (2007):** No blanket immunity from judicial review of laws included in the Ninth Schedule. Judicial review is a 'basic feature' of the constitution. Such laws placed after April 24, 1973 (the date of Kesavananda Bharati judgement), are open to challenge in court if they violated fundamental rights.

- **Article 31C:** No law that seeks to implement the socialistic DPSP specified in Art. 39(b) or (c) shall be void on the ground of contravention of the FR conferred by Article 14 or Article 19.

Criticisms of Fundamental Rights

The primary argument is that while the Constitution grants rights with one hand, it takes them away with the other through numerous exceptions and qualifications.

1. Excessive Limitations

Critics argue that the Fundamental Rights are subject to too many **"reasonable restrictions,"** exceptions, and explanations.

- **Quote:** Some critics jokingly suggest that Part III should be titled *"Limitations on Fundamental Rights"* or *"Fundamental Rights and Limitations Thereon."*

2. No Social and Economic Rights

The list is criticized for being primarily **political** in nature.

- It lacks essential socio-economic rights found in other modern or socialist constitutions, such as the **Right to Social Security**, **Right to Work**, and **Right to Rest and Leisure**.
- These are mostly relegated to the *Directive Principles of State Policy* (DPSPs), which are non-justiciable.

3. Lack of Clarity

The language used in Part III is often described as **vague and ambiguous**.

- Terms like "public order," "minorities," and "reasonable restriction" are not clearly defined.
- **"A Lawyer's Paradise":** Sir Ivor Jennings famously remarked that the Indian Constitution (and specifically this part) provides a "heaven for lawyers" because of its complex legal terminology.

4. No Permanency

Fundamental rights are not sacrosanct or unchangeable.

- The Parliament can curtail or repeal them through a **Constitutional Amendment** (as seen with the *Right to Property* in 1978).
- They are only protected by the "Basic Structure" doctrine, which is itself a judicial invention and not explicitly mentioned in the text.

5. Suspension during Emergency

The suspension of the enforcement of these rights (except Articles 20 and 21) during a **National Emergency** is seen as a major flaw.

- Critics argue this provision can be misused to turn a democracy into an authoritarian regime, putting the rights of millions in peril.

6. Expensive Remedy

While Article 32 makes the remedy for rights violation a right in itself, the **cost of litigation** in India is extremely high.

- The judicial process is time-consuming and expensive, making the "guaranteed" protection of the Supreme Court practically inaccessible to the poor and common man.

7. Preventive Detention

The inclusion of **Preventive Detention (Article 22)** is perhaps the most criticized aspect.

- Critics claim it confers arbitrary power to the State and strikes at the heart of individual liberty.
- Notably, no other democratic country has made preventive detention an integral part of its Constitution during peacetime.

SIGNIFICANCE OF FUNDAMENTAL RIGHTS:

1. They constitute the Bedrock of Democratic system in the country.
2. They provide necessary conditions for the material and moral protection of man.
3. They serve as a formidable bulwark of individual liberty.
4. They facilitate the establishment of rule of law in the country.
5. They protect the interest of minorities and weaker section of society.
6. They strengthen the secular fabric of the Indian state.
7. They check the absoluteness of the authority of the government.
8. They lay down the foundation stone of social equality and social justice.
9. They insure the dignity and respect of individuals.
10. They facilitated the participation of people in the political and administrative process.

Rights outside Part III

- **Article 265/Part XII:** No tax shall be levied or collected except by authority of law.
- **Article 300-A/Part XII:** No person shall be deprived of his property save by authority of law.
- **Article 301/Part XIII:** Trade, commerce and intercourse throughout the territory of India shall be free.
- **Article 326/Part XV:** Adult Suffrage (Right to Vote): Constitutional right.
- **61st Constitutional Amendment 1989:** Lowered the voting age of elections to the Lok Sabha and to the Legislative Assemblies of States from 21 to 18 years. Universal Declaration of Human Rights (UDHR)
- **The General Assembly** of the United Nations, on 10 December 1948, announced the 30 rights and freedoms that belong to everyone, under the Universal Declaration of Human Rights (UDHR).
- **Article 26 of UDHR:** Right to free elementary education.
- **Article 27 of UDHR:** Right to cultural participation and protection of intellectual work.
- It promises to all the economic, social, political, cultural and civic rights for a life free from want and fear. Reflected in the principles of Fundamental rights, DPSPs, fundamental duties and the Preamble.
- **The Preamble's** Justice, Equality, and Liberty reflect Article 3 of UDHR: right to life, liberty, and security.
- **DPSPs align with Article 22** of UDHR, ensuring social security and justice.
- **Fundamental Duties (Article 51A)** are civic obligations, including ensuring education for children aged 6-14.

8. Directive Principles of State Policy (Part IV Article 36-51)

The Directive Principles of State Policy (DPSP) are described as the **"Instrument of Instructions"**. It denotes the ideals that the State should keep in mind while formulating policies and enacting laws. They are contained in **Part IV** of the Constitution (Articles 36–51) and are borrowed from the **Irish Constitution**.

- **Significance:** Described by Dr. B.R. Ambedkar a 'novel feature' of the Indian Constitution, embodying its philosophy and serving as its soul.
- **Origins:** Inspired by the Irish Constitution, which itself was influenced by the Spanish Constitution; resembles the 'Instrument of Instructions' from the Government of India Act, 1935.
- **Objective:** Aims for 'Socio-economic democracy', complementing Political democracy.
- **Legal Exceptions:** Laws under Articles 39(b) and (c) cannot be declared unconstitutional based on Articles 14 and 19.

Classification of the Directive Principals:

Socialist Principles (Aim for Social/Economic Justice)	**Gandhian Principles** (Based on Gandhi's Ideology)	**Liberal-Intellectual Principles** (Ideology of Liberalism)
Art. 38: Promote welfare by securing a social order (Justice: Social, Economic, And Political). **Art. 39:** Right to livelihood, equitable distribution, equal pay for equal work. **Art. 39A:** Equal justice and free legal aid. **Art. 41:** Right to work, education, and public assistance in certain cases. **Art. 42:** Just and humane conditions of work and maternity relief. **Art. 43A:** Participation of workers in management of industries. **Art. 47:** Raise level of nutrition and standard of living.	**Art. 40:** Organize Village Panchayats. **Art. 43:** Promote cottage industries. **Art. 43B:** Promote Cooperative Societies. **Art. 46:** Promote interests of SCs, STs, and weaker sections. **Art. 47:** Prohibit consumption of intoxicating drinks and drugs. **Art. 48:** Prohibit slaughter of cows and calves.	**Art. 44:** Secure a Uniform Civil Code (UCC). **Art. 45:** Early childhood care and education (for children below 6). **Art. 48:** Organize agriculture and animal husbandry on scientific lines. **Art. 48A:** Protect and improve the environment/wildlife. **Art. 49:** Protect monuments and places of national importance. **Art. 50:** Separation of Judiciary from Executive. **Art. 51:** Promote international peace and security.

Key Features:

- **Nature:** They are **non-justiciable**, meaning they are not legally enforceable by the courts for their violation (Article 37).
- **Purpose:** To establish **Economic and Social Democracy** (Fundamental Rights establish Political Democracy).
- **Governance:** They are "fundamental in the governance of the country," making it the duty of the State to apply them in making laws.
- **Conflict with FRs:** In the *Minerva Mills case (1980)*, the Supreme Court held that the Indian Constitution is founded on the **bedrock of the balance** between Fundamental Rights and DPSP.

Imp Amendments

- **42nd Amendment (1976):** Added Art. 39 (healthy development of children), 39A, 43A, and 48A.
- **44th Amendment (1978):** Added Art. 38(2) (minimize inequalities in income/status).
- **86th Amendment (2002):** Changed the subject of Art. 45 and made elementary education a Fundamental Right (Art. 21A).
- **97th Amendment (2011):** Added Art. 43B (Cooperative Societies).

Features of Directive Principles of State Policy

- **Comprehensive Programme:** Covers economic, social, and political aspects for a modern democratic state. The 'State': Includes legislative and executive organs of the central and state governments, all local authorities and all other public authorities in the country.

- **Moral Obligation:** Although non-justiciable (not legally enforceable), their implementation relies on public opinion.
- **Directive Principles of State Policy** constitute does not put limitations upon legislative & executive function.
- **Constitutional Guidelines:** Serve as recommendations for the State (central, state, and local authorities) in legislative, executive, and administrative matters.
- **Socio-economic Democracy:** Promote positive social and economic rights, unlike Fundamental Rights (negative in nature).
- **Supplement Fundamental Rights:** Fill gaps in Part III of the Constitution by addressing social and economic issues.
- **Welfare State:** Embodies the principles of a Welfare State, aiming for justice, liberty, equality, and fraternity.
- They are **fundamental for the governance of the country**.
- **Constitutional Advisor:** B.N. Rau proposed dividing rights into justiciable and non-justiciable, a recommendation accepted by the Drafting Committee.
- **Judicial Role:** Helps courts assess the constitutional validity of laws concerning Articles 14 & 19.

DIFFERENCE BETWEEN FUNDAMENTAL RIGHTS, FUNDAMENTAL DUTIES AND DPSPs

Aspect	Fundamental Rights (FRs)	Fundamental Duties	Directive Principles of State Policy
Definition	Rights guaranteed to individuals.	Responsibilities of citizens.	Guidelines for state governance.
Articles	Articles 12-35	Article 51 (A)	Articles 36-51
Nature	Justiciable, enforceable in court.	Non-justiciable, not enforceable in court.	Non-justiciable, guide state policy.
Purpose	Establish political democracy.	Promote civic responsibility.	Establish social and economic democracy.
Enforcement	Automatically enforced; courts can invalidate laws (e.g., Articles 32, 226).	Voluntary compliance requires special laws.	Require legislation, not automatically enforced.
Sanctions	Legal sanctions, individual welfare focus.	No legal sanctions, mere duties.	Moral sanctions; community welfare focus.
Amendment	Can be amended but not the basic structure (Article 368).	Can be modified by Parliament.	Can be amended to reflect societal needs.
Origin	Borrowed from the USA.	Soviet Constitution.	Irish Constitution.
State's Role	Restricts state action.	-	Directs state action.
Judicial Review	Laws violating FRs can be declared unconstitutional.	Not subject to judicial review.	Courts cannot declare laws unconstitutional.

New Directive Principles:

42nd CAA 1976- 44th CAA 1978 86th CAA 2002 Added Article 39(f), Article 39A, Article 43A, and Article 48A. The 42nd CAA (1976) shifted the five subjects from the State list to the Concurrent list – Education, Forests, Weights and Measures, Protection of Wild Animals and Birds, and Administration of Justice.

44th CAA 1978- Added Article 38(2) - To minimise inequalities in income, status, facilities and opportunities.

86th CAA 2002- 97th CAA 2011 Added Article 45: The amendment changed the subject - matter of Article 45 and elementary education made as FR under Article 21A.

97th CAA 2011- Added Article 43B: to promote formation, functioning and management of Co-operative Societies.

Directives outside PART IV

Article 335 Part XVI - Claims of SCs & STs to services.

Article 350A Part XVII - Instruction in mother tongue.

Article 351 Part XVII - Development of Hindi Language.

Conflict between Fundamental Rights and DPSP

- Champakam Dorairajan Case (1951): FRs prevail over DPSPs. FRs can be amended by Parliament through constitutional amendments.
- Golaknath Case (1967): Parliament cannot remove any FR (sacrosanct). FRs cannot be amended for implementing DPSPs.
- 24th Amendment (1971): Parliament can remove FRs via constitutional amendment.
    - Inserted Article 31C: Laws for Article 39(b) and 39(c) not void if they violate Article 14 and 19; non-justiciable.
    - Such laws cannot be questioned in a court of law.
- Kesavananda Bharati Case (1973): Invalidated the second provision of Article 31C. And established judicial review as a basic structure.
- 42nd Amendment (1976): Laws for DPSPs are not void despite violating Article 14 and 19. DPSPs given primacy over Articles 14 and 19.
- Minerva Mills Case (1980): Invalidated DPSP primacy over FR. It emphasised the balance between FR and DPSP.
- Present Position: FRs hold supremacy over DPSPs. Parliament can amend FRs for DPSP implementation without harming the basic structure.

9. Fundamental Duties (Part-IV-A: Article 51A)

The Fundamental Duties mentioned in Part IVA in the Indian Constitution are inspired by the Constitution of erstwhile USSR. It encourage responsible citizenship, urging individuals to respect national symbols, uphold sovereignty, and contribute to national welfare. The original constitution of India contained only the Fundamental Rights and not the Fundamental Duties.

FEATURES OF FUNDAMENTAL DUTIES

- **Swaran Singh Committee:** In 1976, first recommended by the Swaran Singh Committee; its need was felt during the internal emergency (1975-77). The committee suggested eight Fundamental Duties.
- **42nd CAA, 1976:** Added Part IV-A, Art 51A to the Constitution containing ten fundamental duties of citizens, inspired by the Soviet (USSR) Constitution. Rights are correlative with duties.
- **Total Duties:** Originally 10, with one added by the 86th Amendment Act, 2002, totalling 11 duties.
- **Significance:** Encourage responsible citizenship and contribute to national welfare and integrity.
- **Legal Implications:** Help courts assess the constitutional validity of laws. Laws promoting Fundamental Duties may be deemed "reasonable" under Articles 14 and 19.
- **Applicability:** Confined to citizens only, not foreigners.
- **Non-justiciable** by courts. However, Parliament can enforce this through suitable legislation.
- **Exclusions:** Duty to pay taxes and Duty to vote are not part of FDs.
- **International Comparison:** The Japanese Constitution uniquely includes a list of citizens' duties.
- **Verma Committee on Fundamental Duties of the Citizens (1999):**
    - Identified the existence of legal provisions for the implementation of some FDs. Ex: Wildlife Protection Act, 1972.
    - Recommended reorienting approaches to the school curriculum and teacher's education programmes and incorporating FDs in higher and professional education.

IMPORTANT CASES RELATED TO FUNDAMENTAL DUTIES

- Minerva Mills Ltd. vs. Union of India (1980): Upheld the 42nd Amendment but stated Fundamental Duties are not enforceable by courts.
- Supreme Court (1992): In determining the constitutional validity of any law, if the law in question seeks to give effect to FDs, it may consider such law to be 'reasonable' in relation to Art. 14 or Art. 19 and thus save such law from unconstitutionality.
- M.C. Mehta vs. Union of India (2000): Mandated one-hour lectures on environmental protection in schools; made it part of the curriculum.
- Ramlila Maidan Incident vs. Home Secretary (2012): Affirmed freedom of speech as a fundamental right, subject to reasonable restrictions; highlighted the duty to respect the Constitution.

LIST OF FUNDAMENTAL DUTIES

It shall be the duty of every citizen of India.

1. **Respect:** Abide by the Constitution and respect its ideals, institutions, the National Flag, and National Anthem (Article 51A (a)).
2. **Cherish:** Follow the noble ideals that inspired the freedom struggle (Article 51A (b)).
3. **Uphold:** Protect the sovereignty, unity, and integrity of India (Article 51A(c)).
4. **Defend:** Defend the country and render national service when called upon (Article 51A (d)).
5. **Promote:** Promote harmony and brotherhood among all people, transcending religious, linguistic, and regional diversities; renounce practices derogatory to women's dignity (Article 51A (e)).
6. **Preserve:** Value and preserve the rich heritage of India's composite culture (Article 51A (f)).
7. **Protect:** Improve the natural environment, including forests, lakes, and wildlife; show compassion for all living creatures (Article 51A (g)).

8. **Develop Scientific Temper:** Develop a scientific temper, humanism, and a spirit of inquiry and reform (Article 51A (h)).
9. **Safeguard Public Property:** Protect public property and abjure violence (Article 51A (i)).
10. **Strive for Excellence:** Strive for excellence in all activities, ensuring national progress (Article 51A (j)).
11. **Provide Opportunities:** Provide educational opportunities for children aged 6 to 14 years (as added by the 86th Constitutional Amendment Act, 2002) (Article 51A (k)).

CRITICISM OF FUNDAMENTAL DUTIES

1. Lack of Enforceability (Non-Justiciability)

The most common criticism is that these duties are **non-justiciable**. Unlike Fundamental Rights. Critics argue that without "teeth," these duties remain mere "pious expressions."

2. Vague and Ambiguous Language

Many of the duties are phrased in poetic or academic language that is difficult for the average citizen to interpret.

- **"Noble ideals"**: What constitutes a "noble" ideal is subjective.
- **"Composite culture"**: Defining the boundaries of India's composite culture is a complex sociological task.
- **"Scientific temper"**: This is an abstract concept that is hard to measure or enforce legally.

3. Issues of Omission

Significant omissions often cited include:

- The duty to **vote** in elections.
- The duty to **pay taxes**.
- The duty of **family planning**.
- The duty to **report crimes** or corruption.

4. Redundancy and Placement

Some scholars believe that the Fundamental Duties were unnecessary because many of them are already covered by existing laws or are inherent to being a law-abiding citizen.

- Critics argue that placing them after the Directive Principles of State Policy (Part IV-A) instead of after the Fundamental Rights (Part III) reduces their perceived importance.
- Duties like "safeguarding public property" are already covered under the Indian Penal Code and other criminal laws.

10. Amendment of the Constitution (Part XX: Article- 368)

Amending the Constitution of India is **the process of making changes to the nation's fundamental law or supreme law**. Amendment to the constitution feature is **borrowed** from the constitution of **South Africa**. The procedure for amending the Constitution is **neither flexible (Britain) nor rigid (USA)**. It states that Parliament may amend the Constitution but can't amend those provisions which form the basic structure of the Constitution (Kesavananda Bharati case, 1973). **Article 368** has been amended by the 24th and 42nd Amendments in 1971 and 1976, respectively.

Procedure for Amendment (Article 368): The procedure is strictly laid out to prevent arbitrary changes.

- **Introduction:** Can be introduced in either house of Parliament by a minister or private member. No State legislature can do so.
- **President's Role:** No prior permission required for introduction.
- **Majority Needed:** Requires a special majority (50% total membership + 2/3 of members present & voting).
- **Passage:** Both houses must pass it separately; no provision of joint sitting in case of disagreement.
- **Amendment of Federal Provisions:** Needs special majority + state ratification (half the states by simple majority).
- **President's Assent:**
    - 24th constitutional amendment: It also amended Article 368 to provide expressly that Parliament has the power to amend any provision of the Constitution. The amendment further made it obligatory for the President to give his assent, when a Constitution Amendment Bill was presented to him.
    - He can neither withhold his assent to the bill nor return the bill for reconsideration by the Parliament.
    - After the President's assent, the bill becomes an Act, and the Constitution stands amended in accordance with the terms of the Act.

Types of Amendments: Classification of amendments into three types, though Article 368 specifically mentions only two.

Simple Majority: Majority of members present and voting (Outside Art. 368). Ex- Admission of new states, Quorum in Parliament, Rules of procedure, Citizenship.

Special Majority: 50% of total strength + 2/3rd of those present & voting. Ex- **Fundamental Rights**, **Directive Principles (DPSP)**.

Special Majority + State Consent: Special majority in Parliament + ratification by 1/2 of States. Ex- Election of President, Supreme Court & High Courts, **7th Schedule**, GST Council.

Important Constitutional Amendments at a Glance

- **42nd Amendment (1976):** Known as the "Mini-Constitution." Added 'Socialist', 'Secular', and 'Integrity' to the Preamble. Added Fundamental Duties.
- **44th Amendment (1978):** Reversed many changes of the 42nd. Deleted 'Right to Property' from Fundamental Rights.
- **73rd & 74th Amendments (1992):** Granted constitutional status to Panchayats and Municipalities.
- **101st Amendment (2016):** Introduced the Goods and Services Tax (GST).

The "Basic Structure" Doctrine

- **Kesavananda Bharati Case (1973):** The Supreme Court ruled that while Parliament has the power to amend any part of the Constitution (including Fundamental Rights), it **cannot alter the "Basic Structure"** of the Constitution.
- **Current Status:** Any amendment that violates the basic structure (like judicial review, secularism, or federalism) is subject to judicial review and can be declared void.

Criticism of the Amendment Procedure

- **No Special Body:** Unlike the US (Constitutional Convention), the power to amend rests with the existing legislature.
- **State Power is Minimal:** States cannot initiate amendments (except for the creation/abolition of Legislative Councils) and their consent is required for very few provisions.
- **No Time Limit for States:** The Constitution doesn't specify how long a state can take to ratify an amendment.
- **No Joint Sitting:** A deadlock between the two houses can lead to the total collapse of the bill.
- **Vagueness:** The procedure is sketchy, leaving much room for the judiciary to intervene.

11. Basic Structure of the Constitution

EMERGENCE OF THE BASIC STRUCTURE:

It is a judicially innovative doctrine which is neither defined under the Constitution nor defined by the Supreme Court or any other court. Various judgments of the Supreme Court form the bedrock of the Basic Structure Doctrine.

- **Shankari Prasad Case (1951):** Parliament can amend any part of the Constitution, including Fundamental Rights (FRs), under Article 368.
- **Golak Nath Case (1967):** Parliament **cannot** abridge or take away FRs. They are "transcendental and immutable.
- "**Kesavananda Bharati Case (1973):** Overruled Golak Nath. Parliament can amend FRs, but **cannot alter the "Basic Structure"** of the Constitution.
- **Indira Gandhi Case (1975):** Applied the doctrine for the first time; struck down the 39th Amendment (which kept election disputes of the PM outside judicial review).
- **Minerva Mills Case (1980):** Struck down parts of the 42nd Amendment. Declared that "Judicial Review" and the balance between FRs and DPSPs are part of the Basic Structure.
- **Waman Rao Case (1981):** Clarified that the doctrine applies to all constitutional amendments enacted after April 24, 1973 (the date of the Kesavananda verdict).

ELEMENTS OF THE "BASIC STRUCTURE"

The Supreme Court has not defined the term "Basic Structure" exhaustively. Instead, it has identified various "features" through different judgments.

- Separation of powers between the legislature, the executive and the judiciary
- Powers of the High Courts under Articles 226 and 227.
- Federal character of the Constitution.
- Principle of equality.
- Powers of the Supreme Court under Articles 32, 136, 141 and 142
- Limited power of Parliament to amend the Constitution.
- Sovereign, democratic and republican nature of the Indian polity.
- Balance Fundamental between Rights and Directive Principles
- Effective access to justice.
- Principles (or essence) underlying fundamental rights.
- Secular character of the Constitution.
- Rule of Law
- Freedom and dignity of the individual.
- Supremacy of the Constitution.
- Welfare state (socio economic justice).
- Parliamentary system.
- Free and fair elections
- Unity and integrity of the nation.
- Judicial review.
- Independence Judiciary.

12. Parliamentary System

Parliamentary Government is also known as the **Cabinet government/ Responsible government/ Westminster model of government** and is prevalent in Britain, Japan, Canada, and India, among others. Defined by **Articles 74, 75 (Centre) and Articles 163, 164 (States)**. The Constitution of India provides for a parliamentary form of government (**the executive is responsible to the legislature for its policies and acts**), both at the Centre and in the states.

Features of Parliamentary System in India

1. **Nominal and Real Executives:** The President is the nominal head (de jure, Article 74), while the Prime Minister is the real head (de facto, Article 75).
2. **Majority Party Rule:** The party with the majority in the Lok Sabha forms the government. The President appoints the PM (Article 75) and ministers on the PM's advice.
3. **Collective Responsibility:** Ministers are collectively responsible to the Lok Sabha (Article 75), which can remove them through a no-confidence motion.
4. **Political Homogeneity:** Members of the council of ministers belong to the same political party, and hence they share the same political ideology. In case of coalition government, the ministers are bound by consensus.
5. **Double Membership:** Ministers belong to both executive and legislature (Article 75).
6. **Leadership of Prime Minister:** The PM plays the leadership role in this system of govt. he plays a significant and highly crucial role in functioning of the govt.
7. **Dissolution of Lok Sabha:** The President, on the PM's advice, can dissolve the Lok Sabha before its term (Article 85).
8. **Secrecy:** Ministers maintain confidentiality in their decisions and proceedings (Article 75).

Reasons for Adopting the Parliamentary System in India

- **Familiarity:** The framers were acquainted with the parliamentary system from British rule, making it a natural choice.
- **Responsibility:** Dr. B.R. Ambedkar emphasised the need for a democratic executive to ensure stability and responsibility.
- **Avoiding Conflicts:** The parliamentary system helps prevent conflicts between the legislature and executive, crucial for a young democracy like India.
- **Representation:** Given India's diverse society, the parliamentary system ensures representation of various sections and interests through small constituencies.

Forms of Government

Feature	Parliamentary System	Presidential System	Semi-Presidential System
Executive Authority	Prime Minister leads; derives authority from Parliament.	President is both head of state and government; elected independently.	Dual executive: President and Prime Minister share authority.
Relationship with Legislature	The Prime Minister can be removed by a vote of no confidence.	President cannot be easily removed; serves fixed terms.	The President is elected; the Prime Minister is accountable to the legislature.
Cabinet Composition	Cabinet members are typically from the legislature.	Cabinet members are appointed by the President; may not be part of the legislature.	The Cabinet includes members from both the President and the legislature.
Legislative Role	Legislature plays a crucial role in governance and policy making.	Legislature has limited influence over the President's decisions.	The Legislature has significant power but also shares it with the President.
Stability	Can be unstable; the government can change frequently.	More stable; fixed terms provide consistency.	Stability can vary; dependent on the balance of power.
Decision Making	Quick decision-making due to close ties between executive and legislature.	Slower decision-making; President may face opposition from Congress.	Decision-making can be efficient but may face conflicts.
Constitutional Flexibility	Often more flexible due to the evolving nature of Parliamentary practices.	Generally rigid; fixed terms are defined in the constitution.	Can be both flexible and rigid, depending on the balance of power.

Example Countries	United Kingdom, India, Canada	United States, Brazil, Mexico	France, Russia, Ukraine
Merits	• Harmony between Legislature & Executive. • Responsible Government answerable to Parliament; • Power isn't centralised; Cabinet (CoM) ensures collective authority. • Opposition can serve as an alternative if the ruling party loses majority. • CoM reflects with wide Representation to diverse sections in governance.	• Stable government. • Definiteness in policies. • Based on separation of powers. • Government by experts. • Direct mandate from the electorate enhances legitimacy.	• Combines strengths of both systems • Flexible power distribution. • Encourages cooperation • Stable Leadership: Parliament can remove an unpopular PM, ensuring stability. • Checks and Balances • Alignment with Development: An independent PM fosters political and economic growth.
Demerits	• Loss of majority can lead to frequent government changes. • New governments often alter existing policies. • A strong Cabinet can centralise power. • Blurred Separation of Powers. • Ministers may not be specialists, limiting effective governance.	• Conflict between legislature and executive. • Non-responsible government. • May lead to autocracy. • Narrow representation. • Difficulties in achieving consensus.	• Potential for conflict between President and PM; leading to inefficiencies. • Unclear responsibility for policy outcomes. • Votes of confidence may disrupt the legislative process. • Unpopular policies can be deflected to the PM, obscuring true accountability.

Distinction between Indian and British Models

INDIAN	BRITISH
• Republican system with an indirectly elected President as head of State. • Based on Constitutional Supremacy. • The PM may be a member of any House (Lok Sabha or Rajya Sabha). • Non-Parliament members can be appointed as ministers for six months. • No system of legal responsibility; ministers do not countersign official acts. • No institution of Shadow Cabinet.	• Monarchical system with a hereditary King/Queen as Head of State. • Based on Parliamentary Sovereignty. • The PM must be a member of the Lower House (House of Commons). • Ministers are usually members of Parliament only. • Ministers have a system of legal responsibility; they must countersign acts. • Shadow Cabinet formed by the opposition to balance the ruling cabinet and prepare future ministers.

13. Federal System

The Constitution of India establishes a federal system of government, although the term federation is not explicitly mentioned. Unlike the USA, Indian federalism did not arise from agreements among states; it is modelled after the Canadian system. The USA, the first and oldest federation in the world, was formed in 1787 following the American Revolution (1775–83).

- **Federal Structure:** India is described as a 'Union of States' (Article 1), reflecting its sociocultural diversity and large size. This structure allows for a quasi-federal system that accommodates regional autonomy while maintaining a strong central authority.
- **Quasi-Federal:** The federalism in India represents a compromise between the following two conflicting considerations: normal division of powers under which states enjoy autonomy within their own spheres; and need for national integrity and a strong Union government under exceptional circumstances.
- **Supreme Court Ruling:** The S.R. Bommai case (1994) affirmed federalism as a basic structure; states possess supreme authority within their sphere, recognizing practical realities.

Features of Federal and Unitary Government

Federal	Unitary
• Dual Polity: Union handles national matters, States handle local issues (Article 246). • Written Constitution: World's longest constitution with clear Centre-State jurisdictions. • Division of Powers: Centre and States legislate on concurrent subjects, but Centre prevails in conflicts • Supremacy of Constitution: It's the Supreme law, enforced by Judicial review (Article 13). • Rigid Constitution: Federal structure amendments need special procedures (Article 368). • Bicameralism: Rajya Sabha represents States; Lok Sabha represents people (Article 79). • Independent Judiciary: Supreme Court settles Centre-State disputes and guards constitutional supremacy (Article 131, 32, 136).	• Strong Centre: Union has more important subjects (Article 248, 249) and overriding power on the Concurrent List. • Single Constitution: Same constitution for Centre and States. • No Equal State Representation: Rajya Sabha representation is population-based. • States Not Indestructible: Parliament can change state boundaries (Article 3). • Flexible Constitution: Most provisions amended by Parliament alone (Article 368). • Emergency Provisions: Centre gained complete control during emergencies (Articles 352, 356, 360). • Single Citizenship: Equal rights nationwide (Article 5-11). • Integrated Judiciary: Supreme Court oversees both Central and State laws (Article 141). • All-India Services: Centrally controlled services (IAS, IPS, IFS) (Article 312). • Integrated Audit: CAG audits both Centre and States (Article 148). • Governor's Appointment: By the President, acts as Centre's representative (Article 155-156). • Parliament's Authority: Can legislate on State List if necessary (Article 249). • Veto Over State Bills: Governor can refer bills to the President (Article 200).

Critical Evaluation of the Federal System

- Paul Appleby: Describes the Indian system as extremely federal.
- Morris Jones: Refers to it as "bargaining federalism," indicating negotiations among different levels of government.
- Ivor Jennings: Characterises it as a federation with a strong centralising tendency, noting that the Indian Constitution has unique safeguards to enforce national unity and growth.
- Alexandrowicz: States that India is a case sui generis, emphasising its unique character.
- Granville Austin: Calls Indian federalism "cooperative federalism," describing it as a new kind of federation tailored to meet India's specific needs.

- K.C. Wheare: Considers India a semi-federal or quasi federal state, highlighting its mixed characteristics.
- K. Santhanam: Points out the unitary bias of the system due to central financial dominance.
- Dr. B.R. Ambedkar: Emphasises that India's federation is indestructible and not formed by agreements among states, stating, "The Indian Constitution is a Federal Constitution with a dual polity - both the Union and the states derive their authority from the Constitution."

14. Centre-State Relations

The Constitution of India, being federal in structure, divides all powers, legislative, executive and financial between the Centre and the states. However, there is no division of judicial power. The constitution provides for an integrated judiciary which adjudicates on both the central and state laws.

LEGISLATIVE RELATIONS (PART XI: ARTICLE 245-255)

Territorial Extent of Legislation

- Parliament can make laws for the entire or any part of India.
- State legislatures make laws for their respective states.
- Extraterritorial legislation: Only Parliament can legislate for Indian citizens and their property abroad.

Constitutional Restrictions

- The President can make regulations for peace, progress and good governance of Andaman & Nicobar, Lakshadweep, Dadra & Nagar Haveli, Daman & Diu, and Ladakh. These regulations have the same effect as an Act of Parliament.
- Governors can direct that a Parliamentary act doesn't apply or applies with modifications to Scheduled Areas in the state.
- The Governor of Assam and President have similar powers over Tribal Areas in Meghalaya, Tripura, and Mizoram.

Distribution of Legislative Subjects

- Union List: 98 subjects – Parliament has exclusive powers.
- State List: 59 subjects – State legislatures have exclusive powers under normal circumstances.
- Concurrent List: 52 subjects – Both Parliament and State legislatures can legislate.
- Residuary powers: Parliament holds the authority, including taxation.

Special Provisions

- Parliament can legislate on State List matters for Union Territories.
- 101st Amendment Act, 2016: Governs Goods and Services Tax (GST). Parliament has exclusive powers for inter-state trade or commerce.

Law Precedence

- Union List > Concurrent List > State List.
- State laws can prevail if they receive Presidential assent.

Parliamentary Legislation in the State Field

- Rajya Sabha Resolution:
    - Passed in the national interest with a 2/3 majority of members present and voting.
    - Valid for one year, can be renewed indefinitely (not exceeding one year at a time).
    - Laws cease to operate six months after the resolution expires.
- National Emergency:
    - Parliament can legislate on State List matters, including GST.
    - Laws lapse six months after the emergency ends.
    - State laws may coexist, but parliamentary law prevails in case of conflict.
- State Request:
    - Two or more state legislatures may request Parliament to enact laws on State List matters. These laws apply only to requesting states, and others may adopt them later.
    - Only Parliament can amend or repeal such laws.
- International Agreements:
    - Parliament can legislate to implement international treaties or agreements (e.g., Geneva Convention Act 1960).
- President's Rule:

Laws made by Parliament during President's Rule remain effective after the rule ends, unless repealed by the state legislature.

Centre's Control over State Legislation

- Governor's Power: Can reserve bills for the President's consideration, who has absolute veto (Articles 200 & 201).Certain State List bills (e.g., trade restrictions) need Presidential approval before introduction (Article 304).
- Financial Emergency: Centre can direct the states to reserve money bills and other financial bills for President's consideration during a financial emergency.
- Governor's Ordinances: Certain ordinances need Presidential instructions before promulgation (Article 213).

ADMINISTRATIVE RELATIONS (PART XI: ARTICLE 256-263)

Distribution of Executive Power

- Coextensive with legislative powers, except in specific cases.
- States execute laws on the Concurrent List, unless a Constitutional provision or parliamentary law gives this power to the Centre.

Obligation of States and Centre

- Article 256: States must ensure compliance with Parliament's laws; the Centre can give directions.
- Two restrictions on state executive power:
  - Compliance with Parliament's laws.
  - Avoiding interference with Centre's executive power.
- Article 365: If a state fails to comply with the Central's directions, President's Rule may be imposed.

Centre's Directions to States (Art. 257)

- Directions can relate to: Communication, railway protection, and Scheduled Tribe welfare.
- Coercive sanction under Article 365 applies here.

Mutual Delegation of Functions

- The President, with the agreement of the state government, may delegate Union executive functions to the state.
- Similarly, the Governor, with the consent of the central government, can delegate the state's executive functions to the Union. This delegation may be conditional or unconditional.
- Additionally, the Constitution permits the delegation of Union executive functions to a state without the state's consent, but such delegation must be authorised by Parliament, not the President. However, a state cannot delegate its executive powers in this manner.

Cooperation between Centre and State

- Parliament can adjudicate disputes over the use, distribution and control of inter-state rivers and valleys (Article 262).
- The President may establish an Inter-State Council for matters of common interest (Article 263).
- Public acts, records, and judicial proceedings of the Centre and States must be recognized nationwide.
- Parliament can appoint an authority for interstate trade, commerce, and intercourse, but none has been appointed yet.

All India Services (Art 312)

- Article 312: Parliament can create new All-India Services (AIS) through a Rajya Sabha resolution.
- AIS is jointly controlled by Centre and States, with ultimate control under the Centre.

Public Service Commissions (PSC)

- State PSC: Chairman and members appointed by the Governor, but removed only by the President.
- Joint State PSC (JSPSC): Created by Parliament for multiple states; appointments by the President.

- UPSC can assist states on request for joint recruitment for posts that require special qualifications.

Integrated Judicial System

- A Single Judicial System: Supreme Court at the top, High Courts below.
- Parliament can establish a common High Court for two or more states (e.g., Maharashtra-Goa, Punjab-Haryana).

Relations during Emergencies

- National Emergency (Art. 352): Centre can direct states on any matter.
- President's Rule (Art. 356): The President assumes state Government's functions.
- Financial Emergency (Art. 360): Centre can direct financial propriety, including salary reductions.

Other Provisions

- Article 355: Centre to protect from External aggression and internal disturbance and ensure constitutional governance.
- Governor: Appointed by President; acts as Centre's agent.
- State Election Commissioner: Appointed by Governor, removed by President.

Extra-Constitutional Devices

- NITI Aayog, National Integration Council, Zonal Councils, and North-Eastern Council facilitate cooperation.

FINANCIAL RELATIONS (PART XII: ARTICLE 264-293)

Allocation of Taxation Powers

- Art 264: Interpretation of financial relations.
- Art 265: Taxes not to be imposed save by authority of law. No tax shall be levied or collected except by authority of law.
- Art 266: Consolidated Funds and public accounts of India and of the States
- Art 267: Contingency Fund
- Parliament/State Legislature: Exclusive power to levy taxes on Union/State List subjects. 52
- Residuary Power: Vested in Parliament (e.g., gift tax, wealth tax).
- No tax entries in Concurrent List, except for GST under the 101st Amendment (2016), which grants concurrent power to Parliament and State Legislatures.
- Distinction between taxing power and appropriation of tax proceeds.

Distribution of Non-tax Revenues

- Major sources for the Centre: (i) posts and telegraphs; (ii) railways; (iii) banking; (iv) broadcasting (v) coinage and currency; (vi) central public sector enterprises; (vii) escheat and lapse; and (viii) others.
- Major sources for the states: (i) irrigation; (ii) forests; (iii) fisheries; (iv) state public sector enterprises; (v) escheat and lapse; and (vi) others.

Grants in Aid to States

Statutory Grants (Article 275)

- For states needing financial assistance, not for every state.
- Charged annually on the Consolidated Fund of India.
- Includes specific grants for promoting welfare of scheduled tribes and improving administration in scheduled areas.
- Based on the recommendation of the Finance Commission.

Discretionary Grants (Article 282)

- Empower both Centre and states to make grants for any public purpose beyond their legislative competence.
- Known as discretionary because the Centre is not obligated to provide them.

- Used to assist states financially to meet plan targets and enable the Centre to coordinate state actions for national planning.

Other Grants

- Temporary grants were provided for ten years after the Constitution's commencement for states exporting jute (Assam, Bihar, Orissa, West Bengal).
- These sums were also charged on the Consolidated Fund of India and recommended by the Finance Commission.

Protection of State's Interests

- Bills requiring President's recommendation (Article 274):
  - Imposing or varying taxes or duties concerning states.
  - Altering the definition of "agricultural income."
  - Modifying the principles for distributing funds to states.
  - Imposing a surcharge for purpose of Centre.
- "Net proceeds" of taxes/duties are certified by the CAG and are final (Article 279).

Finance Commission (FC)

- Constitutional Body under Article 280 for tax revenue distribution between Centre and States.
- Established every 5 years by the President.
- 15th FC: Recommendations from 2021-22 to 2025-26.
- 16th FC: The Sixteenth Finance Commission was constituted on 31.12.2023 with Shri Arvind Panagariya, former Vice-Chairman, and NITI Aayog as its Chairman.

Key Recommendations

- Vertical Devolution: Maintained at 41%.
- Horizontal Devolution: Formula based on Income Distance (45%), demographic performance (12.5%), Population 2011(15%), area (15%), forest and ecology (10%), and tax and fiscal efforts (2.5%).
- Revenue Deficit Grants: For States with unmet fiscal needs.
- Incentives/Grants: Performance-based for social sector, rural economy, governance, and power.
- Local Government Grants: For municipal services, new cities, and health.

<u>Borrowing Powers</u>

Centre (Article 292)

- Can borrow within or outside India upon security of the Consolidated Fund of India, within limits set by Parliament.
- Can provide loans or guarantees to states.

States (Article 293)

- Cannot borrow without Centre's consent if they owe outstanding loans to the Centre.
- Can borrow within India, not outside, upon security of the Consolidated Fund of the State subject to Parliamentary limits.

<u>Exemption from Taxation</u>

Union Property (Article 285)

- Centre's property is exempt from state and local taxes unless Parliament removes the exemption.
- Central corporations or companies are taxable.

State Property (Article 289)

- State property and income are exempt from central taxes, except for commercial activities if Parliament allows it.
- Local authorities and state corporations are subject to central taxes.

Effects of Emergency

National Emergency (Article 352)

- The President can modify revenue distribution between the Centre and states.
- Transfer of funds can be reduced or cancelled during the emergency.

Financial Emergency (Article 360)

The Centre can direct states to:

- Follow specific financial propriety norms.
- Reduce salaries of state employees.
- Reserve money bills for the President's consideration.

Centre-State Financial Relations: Constitutional Articles

Article	Subject Matter
Distribution of Revenues between the Union and the States	
Article 268	Duties levied by Centre but collected & appropriated by States
Article 269	Taxes levied & collected by Centre but assigned to States
Article 269A	Levy & collection of GST in inter-State trade
Article 270	Taxes levied & distributed between Centre & States
Article 271	Surcharge on taxes for Centre
Article 273	Grants in lieu of export duty on jute products
Article 275	Grants-in-Aid to States
Article 276	Taxes on professions, trades, callings & employments
Article 277	Saving of taxes, duties, etc.
Article 279	Calculation of "net proceeds" of taxes
Article 280	Finance Commission
Article 281	Recommendations of Finance Commission
Miscellaneous Financial Provisions	
Article 282	Discretionary grants
Article 283	Custody of Consolidated Funds
Article 284	Public Account
Article 285	Exemption of Centre property from State taxation
Article 286	Restrictions on State taxation
Article 287	Exemption from electricity duty
Article 288	Exemption from taxation by states in respect of water or electricity in certain cases
Article 289	Exemption of property and income of a state from Union taxation
Article 290	Adjustment in respect of certain expenses and pensions
Article 290A	Annual payment to certain Devaswom Funds
Borrowings	
Article 292	By the Govt. of India
Article 293	By States

DISTRIBUTION OF TAX REVENUES

Article	Levy	Collection	Appropriation	Various Taxes
268	Centre	States	States	• Stamp duties on shares, cheque, promissory notes, insurance etc.
269	Centre	Centre	States	• Taxes on interstate trade and commerce. Revenues do not form part of the consolidated fund of India.
270	Centre	Centre	Shared between Centre and states	• All taxes and duties in the union list except Duties and taxes referred to in Articles 268, 269 and 269-A, Surcharge on taxes and duties referred to in Article 271.
271	Centre	Centre	Centre	• Surcharge on taxes under Art 269, 270. • Goods and Services tax (GST) is exempted from this surcharge. This surcharge can't be imposed on the GST.

COMMITTEES ON CENTRE-STATE RELATIONS

I. Administrative Reforms Commission (ARC) – 1966–70

Chairperson

- **Morarji Desai**

Key Recommendations

- **Article 356** to be used only as a *last resort*
- Governor should act as **constitutional head**, not Centre's agent
- Strengthening **Inter-State Council**

Significance: First systematic review of Centre–State relation

II. Rajamannar Committee (1971)

Constituted by

- Government of **Tamil Nadu**

Chairperson

- **Justice P.V. Rajamannar**

Major Recommendations

- Transfer of:
  - Residuary powers to States
  - More subjects from Union & Concurrent Lists
- States' consent before deploying central forces
- Abolition of **Article 356**

Nature: Strongly pro-State autonomy
Status: Not accepted by Centre

III. Sarkaria Commission (1983–88)

Chairperson

- **Justice R.S. Sarkaria**

Members

- B. Sivaraman
- S.R. Sen

Key Recommendations

- **Centre–State relations should be cooperative, not confrontational**
- Article 356:
  - Use sparingly
  - Prior warning to States
- Governor:
  - Non-political person
  - No active politics
- **Inter-State Council** to be set up under Article 263
- **Residuary powers** to remain with Centre

IV. National Commission to Review the Working of the Constitution (NCRWC): 2000–02

Chairperson

- **Justice M.N. Venkatachaliah**

Key Recommendations

- Strengthen **federal balance**
- Clear guidelines for **Governor's role**
- Limit misuse of **Article 356**
- Greater financial autonomy for States

V. Punchhi Commission (2007–10)

Chairperson

- **Justice Madan Mohan Punchhi**

Key Recommendations

Governor

- Fixed tenure of **5 years**
- Removal only through impeachment-like process
- Should not have post-retirement political office

Article 356

- Localised Emergency instead of full State suspension
- Guidelines for President's Rule

Centre–State Relations

- States should be consulted in matters affecting them
- Creation of **Inter-State Trade & Commerce Commission**

Focus: Strengthening cooperative federalism

15. Inter-State Relations

Inter-State relations deal with **coordination and cooperation among States** and **between States and the Union** to maintain unity and administrative harmony.

I. Constitutional Provisions on Inter-State Relations: Part XI – Articles 245 to 263

Inter-State relations are mainly covered under **Articles 261–263**.

II. Inter-State Council (Article 263)

Purpose

- To promote **coordination and cooperation** between:
  - Centre and States
  - States inter se

Establishment

- By **President** if deemed necessary
- Not a permanent constitutional body

Composition

- Prime Minister – Chairperson
- Union Cabinet Ministers
- Chief Ministers of all States
- Administrators of UTs

Functions

- Discuss subjects of:
  - Common interest
  - Disputes between States
- Make **recommendations** (advisory)

Status: Advisory body only

III. Zonal Councils

Constitutional / Statutory Basis

- **Statutory bodies**
- Established by **States Reorganisation Act, 1956**

Objective

- Foster **inter-State cooperation**
- Resolve regional issues amicably

Types of Zonal Councils

Zonal Council	Member States
Northern	J&K, HP, Haryana, Punjab, Rajasthan, Delhi
Central	UP, MP, Chhattisgarh, Uttarakhand
Eastern	Bihar, Jharkhand, Odisha, WB
Western	Maharashtra, Gujarat, Goa
Southern	AP, Telangana, TN, Kerala, Karnataka

- **North-Eastern Council (NEC)** – separate (not a Zonal Council)

Composition

- Union Home Minister – Chairman
- Chief Ministers of member States
- State Ministers
- Union Ministers as nominated

Functions

- Border disputes
- Linguistic minorities
- Economic & social planning
- Law & order issues

IV. Inter-State River Water Disputes

Article 262

- Parliament may:
  - Adjudicate disputes
  - Bar Supreme Court's jurisdiction

Law

- **Inter-State River Water Disputes Act, 1956**

Mechanism

- Water Disputes Tribunals
- Decisions are final & binding

Issues: Delay in tribunal awards, enforcement problems

V. Inter-State Trade & Commerce

Articles 301–307

Article 301

- Freedom of trade, commerce & intercourse throughout India

Restrictions

- Parliament can impose restrictions in **public interest**
- States can impose restrictions with **Presidential assent**

VI. Recognition of Public Acts (Article 261)

- Public acts, records, and judicial proceedings of:
    - One State must be recognised by other States

VII. Role of Supreme Court

Article 131

- Original jurisdiction in:
    - Centre–State disputes
    - Inter-State disputes

➢ Ensures federal balance

VIII. Issues & Challenges in Inter-State Relations

- River water disputes (Cauvery, Krishna, Ravi-Beas)
- Boundary disputes
- Economic competition
- Political differences
- Centre's delayed interventions

MAJOR RIVER DISPUTES:

- **1969: Krishna Water Dispute-** Maharashtra, Karnataka, Andhra Pradesh
- **1969: Godavari Dispute-** Madhya Pradesh, Karnataka, Andhra Pradesh, Maharashtra, Odisha
- **1969: Narmada-** Rajasthan, Gujarat, Madhya Pradesh, Maharashtra
- **1986: Ravi & Beas-** Punjab, Haryana, Rajasthan
- **1990: Cauvery-** Karnataka, Kerala, Tamil Nadu, Puducherry
- **2004: 2nd Krishna Water Dispute-** Maharashtra, Karnataka, Andhra Pradesh
- **2010: Vamsadhara-** Odisha, Andhra Pradesh
- **2010: Mahadayi-** Goa, Karnataka, Maharashtra
- **2018: Mahanadi-** Odisha and Chhattisgarh

16. Emergency Provisions

The Emergency provisions have been borrowed from the Government of India Act 1935. It converts the federal structure into a unitary one without a formal amendment of the Constitution. "Suspension of Fundamental Rights during Proclamation of Emergency" provision borrowed from the Weimar Constitution.

PART XVIII (ARTICLE- 352-360)



National Emergency- 352

State Emergency- 356 & 365

Financial Emergency- 360

Source of Emergency Provisions:

1. Government of India Act 1935,

2. Constitution of Weimar Republic of Germany

Important Articles

- Article 352: Emergency due to war, external aggression or armed rebellion (National Emergency).
- Article 356: Due to the failure of the constitutional machinery in the states (President's Rule).
- Article 360: Financial emergency due to threat to financial stability or credit of India.

NATIONAL EMERGENCY (ARTICLE 352)

Grounds of Declaration

The President declares on grounds of war, external aggression, or armed rebellion. Can act even before occurrence if there is imminent danger.

- External Emergency: For war or external aggression.
- Internal Emergency: For armed rebellion.
  - 38th Amendment 1975: Allows different proclamations based on these grounds, whether or not one already exists.
  - 42nd Amendment 1976: Proclamation can apply to the entire country or part of it.
  - 44th Amendment 1978: Replaced "internal disturbance" with armed rebellion.

Role of Cabinet

- Original Constitution: No mention of the cabinet's role.
- 44th Amendment: The President can declare an emergency only on the written recommendation of the cabinet.

Parliamentary Approval

- Originally: Approval required within 2 months.
- 44th Amendment: Approval required within 1 month by both Houses.
  - If Lok Sabha is dissolved, the proclamation survives for 30 days from its first sitting after reconstitution, provided Rajya Sabha approves in the meantime.

Type of Majority for Approval

- Originally: Simple majority.
- 44th Amendment: Requires a special majority.

Duration

- Originally: Indefinite, with executive approval.
- 44th Amendment: Can be extended indefinitely with Parliament's approval every 6 months.
  - If Lok Sabha dissolves during the 6 months without approval, the proclamation survives for 30 days from its first sitting after reconstitution, provided Rajya Sabha approves in the meantime.

Judicial Review

- Originally: No mention.
- 38th Amendment: Made emergency immune from judicial review.
- 44th Amendment: Deleted this provision, restoring judicial review.
  - Minerva Mills Case 1980: Allowed challenge to emergency on grounds of malafide, irrelevance, or absurdity.

Revocation

- The President can revoke it. No need for parliamentary approval.
- 44th Amendment: Lok Sabha can pass a resolution to disapprove the continuation.
  - 1/10th of Lok Sabha members can give written notice to the Speaker or President (or to the President if Lok Sabha is not in session), and a special session must be held within 14 days.
  - Simple majority needed for disapproval.

Imposition: Declared three times: 1962, 1971, 1975.

- Shah Commission: Enquired 1975 emergency and did not justify the declaration of Emergency.

Effect of National Emergency:

Effect on Centre-State Relations-

- **Executive:**
  - Centre is entitled to give executive direction to a state on any matter.
  - State Governments are bought under complete control of centre, though they are not suspended.
- **Legislative:**
  - Although the legislative power of a state is not suspended, Parliament is empowered to make laws on any subject mentioned in State List.
  - Laws made by Parliament on state subjects become inoperative six months after emergency.
  - President can issue ordinances on state subjects, if parliament is not in session.
  - Parliament can confer powers and impose duties upon Centre or its officers and authorities in respect of matters outside Union List.
- **Financial:**
  - President can modify constitutional distribution.
  - President can reduce or cancel transfer of finances from Centre to states.

Effect on Lok Sabha & State Assemblies-

- **On Lok Sabha:**
  - Its life may be extended by law for 1 year at a time during the emergency.
  - Extensions cannot exceed 6 months after the emergency ends.
- **On State Assemblies:**
  - Only Parliament can extend assembly life (by 1 year each time), mirroring Lok Sabha extensions.

Effect on Fundamental Rights-

- **Article 358 (Suspension of Article 19):**
  - Six Fundamental Rights under Article 19 are automatically suspended.
  - Laws violating these rights cannot be challenged in court during or after the emergency.
  - Article 19 revives automatically after the emergency ends.

- **Article 359 (Suspension of Other Fundamental Rights):**
  - Authorises the President to suspend the right to approach courts for Fundamental Rights during a national emergency.
  - The enforcement of specified rights is suspended; the suspension may cover all or part of the country.
  - Suspension orders must be approved by both Houses.
- **44th Amendment:**
  - Article 19 rights can only be suspended during emergencies declared for war or external aggression, not for armed rebellion.
  - The President cannot suspend the right to move courts for Articles 20 & 21.
  - Only laws related to the emergency are protected from judicial review.

Distinction between Article 358 & 359:

Article 358	Article 359
• Applies only during external emergencies. • Suspends Fundamental Rights under Article 19 for the emergency's duration. • Applies to the whole country.	• Applies during both external and internal emergencies. • The President specifies the suspension duration in the order. • Extends to the whole country or part of it as stated.

- Both articles provide immunity from challenge to laws related to the emergency, protecting executive actions under such laws.

PRESIDENT'S RULE (ARTICLE 356) or STATE EMERGENCY:

- **State Emergency** declared when a state government cannot be run as per the Constitution (It does not use the word 'emergency' for this situation.
- **Article 355:** Centre's duty to protect states and ensure governance as per the Constitution.
- **Article 356:** President can proclaim if satisfied, with or without the Governor's report.
- **Article 365:** Applied if a state fails to comply with Centre's directions.
- **Approval:** Simple majority in both Houses within 2 months; survives 30 days from the first sitting of the Lok Sabha if Lok Sabha is dissolved during the six month period without approving it, provided Rajya Sabha approves it.
- **Duration:** Initially 6 months, extendable up to 3 years with Parliament's approval every 6 months.
  - 44th Amendment: Extended only if a national emergency is in place or elections cannot be held due to difficulties.
- **Judicial Review:** Immunity granted by 38th Amendment, removed by 44th Amendment.
- **Revocation:** Can be revoked by the President anytime without Parliament's approval.
- First imposed in Punjab (1951).
- **Dr BR Ambedkar:** Considered this power a last resort.

Consequences of President Rule:

President acquires extra-ordinary powers-

- Can take up functions of state government and powers vested in the governor or any other executive authority in the state.
- Can declare that powers of state legislature are to be exercised by parliament.
- He can take all other necessary steps including the suspension of the constitutional provisions relating to anybody or authority in the state.

Other Effects-

- President dismisses the State Council of Ministers,
- Governor on behalf of President carries on the State administration with help of Chief Secretary of the state or the advisor appointed by President.
- State assembly may be dissolved or suspended.
- Article 357, Parliament may confer the legislative power on the President and authorize him to further delegate it to any other authority.
- When House of the People is not in the session, Parliament can authorize President to sanction expenditure from consolidated Fund of the State.

Judicial Review and Article 356- S. R. Bommai Judgment (1994)

- Judicial Review: The imposition of President's Rule is subject to judicial review.
- Presidential Satisfaction: The court can assess whether the President's satisfaction is based on relevant material but not the correctness or adequacy of that material.
- Justification Required: The Centre must justify the imposition; if found unconstitutional, the court can revive the state assembly.
- Assembly Dissolution: A state assembly can be dissolved only after Parliamentary approval; it can only be suspended otherwise.
- Confidence Decisions: The question of the state government losing confidence must be resolved on the floor of the House before unseating the ministry.
- Anti-Secular Policies: Action may be taken under Article 356 if the state pursues anti-secular policies.

Proper Imposition of President's Rule	Improper Imposition of President's Rule
• Hung assembly (No party has a majority) • Party having a majority declines to form a ministry and the governor cannot find a coalition having majority. • If the ministry resigns after its defeat in assembly and no other party has majority • If the state disregards the constitutional direction given by the Centre. • If the government is acting against constitution and the law or is fomenting a violent revolt. • Physical breakdown: The government willfully refuses to discharge its constitutional obligations endangering the security of the state	• If the ministry resigns or loses the majority and the governor recommends imposition without assessing the possibility of an alternative government. • If the governor does not allow the ministry to prove its majority and recommends the rule. • If the ruling party has lost in general elections to the Lok Sabha. • Maladministration in the state. • Internal disturbances not amounting to internal subversion or physical breakdown. • The state government is not given prior warning to rectify itself except in case of extreme urgency leading to disastrous consequences.

FINANCIAL EMERGENCY (ARTICLE 360)

- **Grounds of Declaration:** President can proclaim if financial stability or credit of India or any part is threatened.
- **Parliamentary Approval:** Requires simple majority in both Houses within 2 months. If Lok Sabha is dissolved, the proclamation survives for 30 days after reconstitution, provided Rajya Sabha approves it.
- **Duration:** Continues indefinitely once approved, until revoked.
- **Judicial Review**
  - 38th Amendment: Made immune from Judicial Review.
  - 44th Amendment: Restored judicial review.
- **Revocation:** President can revoke without parliamentary approval.
- **Imposition:** Never declared so far.

Effects:

- President can give directions to the State to observe the canons of financial propriety.
- He can issue directions to reduce the salaries and allowances of all or any class of persons serving under the State or the Union including the judges of the SC & HC.
- All money and financial bills passed by the State Legislature can be reserved for the President's consideration during the period of Financial emergency.

Criticism of Emergency Provisions:

- Violates F.Rs
- Used frequently, not as matter of last resort.
- Imposed on Political grounds.
- Compromises the federal spirit.

COMPARISON BETWEEN THE THREE EMERGENCIES:

Features	National Emergency (A- 352)	President's Rule (A- 356)	Financial Emergency (A- 360)
Grounds for declaration	War, external aggression, armed rebellion	Article 365: if a state fails to comply with or to give effect to any directions given by the Union.	Threat to financial stability or credit.
Cabinet Role	Requires written recommendation from the Cabinet Article 352(3).	---------	---------
Parliamentary Approval	Approval within 1 month (44th Amendment)	Approval within 2 months; survives if Lok Sabha dissolves	Approval within 2 months
Majority Type	Special majority required (44th Amendment)	Simple majority required	Simple majority required
Duration	Indefinite; extended every 6 months (44th Amendment)	Initially 6 months; extendable up to 3 years with approval every 6 months.	Indefinite once approved; until revoked
Judicial Review	Judicial review restored by (44th Amendment)	Immunity to Judicial review removed by 44th Amendment.	Indefinite once approved; until revoked
Revocation	President can revoke without approval; Lok Sabha can disapprove	Can be revoked by the President anytime; parliamentary approval not required.	President can revoke parliamentary approval
Historical Context	Declared thrice: 1962, 1971, 1975	First imposed in Punjab (1951)	Never declared; crisis in 1991
Impact on Governance	Centre assumes powers; Parliament gains overriding powers	President assumes state functions; assemblies can be suspended or dissolved.	Centre directs states on financial propriety; salary reductions possible

17. Vice - President, President and Governor

VICE-PRESIDENT

Important Provisions

- Article 63: Establishes the Vice-President as the second highest office in India.
  - Modelled on the American Vice-President.
- Election
  - Indirect Election: Elected by an Electoral College of both houses of Parliament (elected and nominated). Excludes state assembly members.
- Voting Method: Uses proportional representation with a single transferable vote and a secret ballot.
- Dispute Resolution: Addressed by the Supreme Court; acts performed before a void declaration remain valid. Election cannot be challenged based on an incomplete Electoral College (Article 71).
- Notable Fact: Four time Vice-Presidents have been elected unopposed namely; S. Radhakrishnan (Two times), Mohammad Hidayatullah, & Shankar Dayal Sharma.
- Nomination
  - Requires 20 proposers and 20 seconders.
  - Security Deposit: ₹15,000 to the RBI.
- Qualifications
  - Must be a Citizen of India.
  - At least 35 years old.
  - Qualified for election to the Rajya Sabha.
  - Must not hold any office of profit.
- Oath of Office: Administered by the President or an appointed representative (Article 69).
- Conditions of Office: Cannot be a member of Parliament or state legislature; vacates seat upon assuming office. Must not hold any other office of profit. The term office of profit is not well defined in the constitution.
- Emoluments, Allowances, and Privileges: The Constitution does not specify emoluments for the Vice President in this role. Receives salary as Chairman of the Rajya Sabha.
- Term of Office (Article 67)
  - Term: 5 years; eligible for re-election.
  - Resignation to be submitted to the President.
  - Holds office until a successor is in place.
- Removal: Impeachment Not Required: Can be removed through a Rajya Sabha resolution passed with effective majority, requiring a simple majority in the Lok Sabha. 14 days notice needed; no grounds specified for removal.
- Vacancy
  Causes: Expiry of term, resignation, removal, death, disqualification, or void election.
  Elections to fill vacancies must occur before term ends.
  Prompt elections following resignation or removal.
- Powers:
  - Ex-Officio Chairman of Rajya Sabha (Article 64): Similar powers to the Speaker.
  - Acts as President (Article 65) when there's a vacancy, for a maximum of six months until a new President is elected.
  - When the President is unable to function, the Vice President performs duties, with the Deputy Chairman taking on Rajya Sabha responsibilities.
- Comparison with American Vice-President
  - The Indian Vice-President acts as an acting President until a new President is elected. The American Vice-President succeeds directly and serves the unexpired term.

DIFFERENCE BETWEEN PRESIDENT AND GOVERNOR

Features	The President	The Governor
Introduction	✓ **Part of Union Executive:** Includes President, VP, PM, CoM, and Attorney General (Articles 52-78, Part V). ✓ **Role:** Head of Indian State, first citizen of India, symbol of unity, integrity, and solidarity.	✓ **Part of State Executive:** Includes Governor, CM, CoM, and Advocate General (Articles 153-167, Part VI). ✓ **Role:** Chief Executive of the state, with a dual role: o Constitutional Head.

	✓ **Fact:** Only Dr. Rajendra Prasad has served two terms.	○ Agent of the Central Government. ✓ **First Woman Governor:** Sarojini Naidu, Governor of Uttar Pradesh (1947-49)
Qualification	✓ Citizen of India ✓ **35+** years old ✓ Qualified for Lok Sabha election ✓ No office of profit	✓ Citizen of India ✓ **35+** years old ✓ Preferably an outsider to the state ✓ President consults CM
Oath	✓ Administered by Chief Justice of India or senior-most SC judge in absence	✓ Administered by Chief Justice of HC of the state or senior-most judge in absence
Condition of Office	✓ Not a member of either house ✓ No office of profit	✓ Not a member of either house ✓ No office of profit
Emoluments, Allowances, Privileges	✓ Determined by Parliament ✓ Cannot be diminished during term ✓ Immune from criminal proceedings (personal) ✓ Cannot be arrested or imprisoned ✓ 2 months' notice required in civil cases for personal acts	✓ Determined by Parliament ✓ Cannot be diminished during term ✓ Immune from criminal proceedings (personal) ✓ Cannot be arrested or imprisoned ✓ Allowances shared when governor of two/ more states.
Term	✓ 5 years from taking office ✓ Resignation to Vice President ✓ Can be re-elected without limit ✓ Holds office until successor takes charge to avoid 'interregnum'	✓ 5 years, subject to President's pleasure ✓ No fixed tenure ✓ Resignation to President ✓ Can be transferred or reappointed to same/ another state ✓ Holds office until successor takes charge to avoid 'interregnum'
Impeachment or Removal	✓ For violation of Constitution (undefined) ✓ Initiated by 1/4th members of either house with 14-day notice ✓ 2/3 majority of total membership of house needed in both houses ✓ Quasi-judicial process ✓ No President impeached so far	✓ No specific grounds for removal by President ✓ Not justiciable (Surya Narain case 1981)
Vacancy	✓ **Causes:** Tenure expiry, resignation, impeachment, death ✓ VP acts as President when vacancy occurs due to resignation, death, removal or otherwise until new election within 6 months ✓ New President serves a full term of 5 years from taking office ✓ No interim term for VP if President's tenure is extended	✓ **Causes:** Tenure expiry, resignation, death, or removal ✓ President may appoint an interim governor until a successor assumes charge

	beyond 5 years due to delayed elections	
Executive Powers	✓ All executive actions taken in his name. ✓ Makes rules for authenticating orders and for business transactions of the Union. Requires PM to submit matters for CoM consideration. ✓ Appoints commissions for SCs, STs, OBCs. Appoints inter-state council and UT administrators. Appoints PM, Ministers, AG, CAG, CEC, other election commissioners, Governors, chairpersons of commissions, UT administrators. ✓ Declares Scheduled Areas.	✓ Executes state executive actions in his name. ✓ Appoints key state officials, such as members of State Finance Commission, SPSC. ✓ Administers union territories. ✓ Promulgates ordinances when the state legislature is not in session. ✓ Appoints administrators for UTs under his control.
Legislative Powers	✓ Integral part of Parliament. ✓ Summons, prorogues, and dissolves Lok Sabha. ✓ Can summon joint sittings of both Houses. ✓ Addresses Parliament at the start of each year and after general elections. ✓ Sends messages to Parliament on bills or other issues. ✓ Prior permission for certain bills. ✓ Nominates 12 RS members, and used to nominate 2 LS Anglo-Indian members until 2020. ✓ Promulgates ordinances (approved within 6 weeks). ✓ Alters state boundaries/creates new states. ✓ Lays reports of the Finance Commission, UPSC, and CAG. ✓ Decisions on MP disqualification.	✓ Integral part of the state legislature. ✓ Summons, prorogues, dissolves the state legislative assembly. ✓ Addresses the state legislature after general elections and at the beginning of each year. ✓ Sends messages to the state legislature. ✓ Nominates 1/6 of State Legislative Council members and used to one Anglo-Indian ✓ Promulgates ordinances (approved within 6 weeks). ✓ Lays reports of State Finance Commission, SPSC, CAG. ✓ Decisions on disqualification of MLAs.
Financial Powers	✓ Prior recommendation for Money bills and demand for grants. ✓ Lays Annual Financial Statement (Budget). ✓ Constitutes Finance Commission every 5 years. ✓ Advances from Contingency Fund of India.	✓ Prior recommendation for Money bills and demand for grants. ✓ Lays State Budget. ✓ Constitutes State Finance Commission every 5 years. ✓ Makes advances from the Contingency Fund of the state.

Judicial Powers	✓ Prior recommendation for Money bills and demand for grants. ✓ Lays State Budget. ✓ Constitutes State Finance Commission every 5 years. ✓ Makes advances from the Contingency Fund of the state.	✓ Consulted by the President for HC judge appointments. ✓ Appoints district judges in consultation with HC. ✓ Grants pardon, reprieve, respite, remission, or commutation of punishment for offences under state laws. ✓ Cannot pardon death sentence.
Diplomatic Powers	✓ Negotiates and concludes international treaties (subject to Parliament's approval). ✓ Represents India in international forums, sends and receives diplomats.	✓ No diplomatic powers
Military Powers	✓ Supreme Commander of India's defence forces. ✓ Appoints Army, Navy, Air Force chiefs. ✓ Can declare war/peace, subject to Parliament's approval.	✓ No military powers.
Emergency Powers	✓ Declares National Emergency (Art. 352), President's Rule (Art. 356, 365), Financial Emergency (Art. 360).	✓ He can submit report to President regarding the Imposition of President's Rule.
Veto Power	✓ **Veto Power (Art. 111):** When a bill is passed by Parliament, the President has three alternatives: Give assent to the bill. Withhold assent, (which ends the bill). Return the bill for reconsideration. If Parliament passes it again, the President must give assent. ✓ **Presidential Veto over State Legislation (Art. 201):** When a state bill is reserved for the President's consideration: Assent, Withhold assent, which ends the bill & Return the bill for reconsideration. If passed again by the state legislature, the President is not bound to give assent. ✓ **No veto for Constitutional Amendments:** Since the 24th Amendment Act, 1971, the President must give assent to constitutional amendment bills. ✓ No time-limit for the President to make a decision regarding a bill presented for assent.	✓ **The Governor has four alternatives for ordinary bills:** o Give assent to the bill. o Withhold assent, ending the bill. o Return the bill for reconsideration (if passed again, must give assent). o Reserve the bill for Presidential consideration. ✓ **Money Bills:** The Governor can only give or withhold assent or reserve the bill for the President. The Governor cannot return a money bill for reconsideration.

Ordinance	**(Art. 123)** • The President can issue ordinances when Parliament is not in session. • They must be laid before both Houses when Parliament reassembles and approved within 6 weeks to become an Act. The total validity is 6 months + 6 weeks. • Ordinances cannot amend the Constitution. • **Judicial Review:** The 44th Amendment allows the satisfaction of the President in issuing ordinances to be questioned in court.	**(Art. 213)** • The Governor can issue ordinances when the state legislature is not in session. The ordinance is valid for 6 weeks after the state legislature reassembles. The total maximum life is 6 months + 6 weeks. • Ordinances must be laid before the legislature upon reassembly. • Ordinances require the President's instructions in certain cases, such as bills requiring Presidential assent. • In **D.C. Wadhwa case (1987)**, SC held that repeated re-promulgation of ordinances is unconstitutional.
Pardoning Powers	• **The President (Art. 72) can grant pardons for:** Union Law offences. Court-martial punishments. Death sentences. • Powers are based on Cabinet advice. They are not subject to judicial review unless the decision is arbitrary or discriminatory. • Powers include commutation, remission, respite, reprieve, and pardon for death sentences.	• **The Governor (Art. 161) can grant pardons for:** Offences against state laws. He cannot pardon court-martial sentences or death sentences (only the President can pardon a death sentence). • Powers include commutation, remission, respite, reprieve, but no pardon for death sentences.
Discretionary Powers	• The President has no constitutional discretion. But some situational discretions include: o Appointment of PM when no clear majority exists. o Dismissal of CoM if they lose the Lok Sabha's confidence. o Dissolution of Lok Sabha when CoM loses majority.	• **Constitutional Discretion:** o Reservation of bills for the President. o Recommendations for President's Rule. o Seeking information from the CM. o Administration of adjoining Union Territories. • **Situational Discretion:** o Appointment of CM when no party has a clear majority or after the death of a sitting CM. o Dismissal of CoM when they lose majority. o Dissolution of the Assembly if CoM loses majority.

ELECTIONS

President:

- Indirectly elected by an Electoral College.
    - Reason for Indirect Election: Nominal executive role; real power lies with the PM. Direct election would be costly and time consuming.
- Method: Proportional representation by single transferable vote and secret ballot.
- Nomination requires 50 proposers & 50 seconders
- Security deposit: ₹15,000 (forfeited if 1/6th votes not secured)

Governor:

- Not elected by people or the Electoral College. Appointed by the President (nominee of the Central Government). Borrowed from the GOI Act 1935.
- Canadian Model: Governor of a state appointed by the Centre (Governor-General in Canada).
- 7th Constitutional Amendment (1956): Allows the appointment of one Governor for two or more states.
- Supreme Court (1979): Governor is not a Central Government employee; holds an independent constitutional office.

Electoral College of President: The Electoral College comprises members from Union and States, making the President a representative of both.

- Participants:
    - Elected members of LS and RS.
    - Elected members of State Legislative Assemblies.
    - Elected members of Delhi and Puducherry UT Assemblies.
- Non – participants:
    - Nominated members of LS, RS, SLA.
    - Members of State Legislative Councils.
    - Nominated members of Delhi and Puducherry Assemblies.

Disputes in President Election: Article 71(2) If the election is declared void by the Supreme Court, acts done by him before the date of such declaration are not invalidated and continue to remain in force.

- Article 71 (4): If the assembly is dissolved, members cease to be qualified to vote, so the election of a person as President cannot be challenged on the ground that the Electoral College was incomplete.
- According to the Constitution of India, it is the duty of the President of India to cause to be laid before the Parliament the Recommendation of the Union Finance Commission, The Report of the Comptroller and Auditor General & The Report of the National Commission for Scheduled Castes.

Veto Types-

- Absolute Veto: Permanent withholding of assent.
- Suspensive Veto: Returning the bill for reconsideration. If Parliament passes it again, the President must assent (not applicable to money bills).
- Pocket Veto: President keeps the bill pending without taking any action. No time limit exists for the President's decision, unlike in the USA (10 days)
- Qualified Veto: It can be overridden by the legislature with a higher majority. (In USA not in India)

Types of Pardoning Powers-

- Pardon: Completely absolves the person of punishment.
- Commutation: Substitution of punishment with a lighter one.
- Remission: Reduction of punishment period without altering its nature.
- Respite: Lesser punishment due to special conditions.
- Reprieve: Temporary stay on execution.

18. Prime Minister and Chief Minister

In India's parliamentary system, executive power is divided between the Union and State governments. The Prime Minister and Chief Minister, along with their respective Councils of Ministers, hold real executive authority, shaping national and state policies.

PRIME MINISTER

Prime Minister is the Head of the Government and real executive authority. The Prime Minister of India, at the time of his/her appointment **need not necessarily** be a member of one of the Houses of the Parliament but must become a member of one of the Houses **within six months**.

Constitutional Provisions Related to Prime Minister

Article 74(1)	Article 75 (1)	Article 78
PM as the head of the Council of Minister (CoM).	Appointment of the PM by the President.	Duties of the PM regarding furnishing information to the President.

- Dr. B.R. Ambedkar said that if any functionary under our Constitution is to be compared with the US President, he is the Prime Minister and not the President of India.
- Prime Minister is appointed by the President. Article 75(1) states that Prime Minister shall be appointed by the President and other ministers shall be appointed by President on the advice of Prime Minister.
- President appoints the Prime Minister who is the leader of the party which won majority seats in the Lok Sabha elections.
- President appoints the leader of largest party as Prime Minister and asks him to prove majority or seek a vote of confidence within a month in case of lack of majority.
- By convention, Prime Minister generally belongs to Lok Sabha. But, in our Parliamentary history there have been Prime Minister's from Rajya Sabha [e.g. I.K. Gujral (1997), Indira Gandhi (1966), Dr. Manmohan Singh (2004)].

THE PRIME MINISTER'S OFFICE (PMO): Prime Minister's Secretariat came into being on August 15, 1947. Since June 1977, it has been known as Prime Minister's Office. PMO is headed by the Secretary to the Prime Minister now designated as Principal Secretary to the Prime Minister.

- The PMO supports the PM in managing the Government of India and executing constitutional, executive, and administrative responsibilities.
- Tasked with coordinating operations of various departments and ministries, offering counsel on policy and administrative matters.
- Led by the Principal Secretary, with senior officials assisting the PM.
- Departments Under PMO: Department of Atomic Energy (DAE), Department of Space (DoS), National Security Council (NSC)

PRIME MINISTER'S FUNDS:

Prime Minister's National Relief Fund (PMNRF)

1. Establishment

- **Year**: 1948
- **Established by**: Jawaharlal Nehru
- **Nature**: Public fund (not created by an Act of Parliament)

2. Objective

- To provide **immediate relief** to:

- Victims of **natural calamities** (floods, earthquakes, cyclones, etc.)
- Victims of **major accidents and riots**
- Medical assistance for **life-threatening diseases**

3. Management & Administration

- **Chairperson**: Prime Minister of India
- **Ex-officio Trustees**:
  - Minister of Defence
  - Minister of Home Affairs
  - Minister of Finance
- **Managed by**: Prime Minister's Office (PMO)

4. Funding Sources

- **Voluntary contributions** only
- Contributions from:
  - Individuals
  - Corporates
  - Institutions
- **No budgetary support** from the Government of India

5. Audit & Transparency

- **Audited by**: Independent auditors appointed by the trustees
- **Not audited by CAG**

6. Tax Exemptions

- **100% tax exemption** under **Section 80G** of the Income Tax Act
- Donations are exempt from income tax

Prime Minister's Citizen Assistance and Relief in Emergency Situations (PM CARES Fund)

1. Establishment

- **Year**: 2020
- **Context**: COVID-19 pandemic
- **Established by**: Government of India
- **Nature**: Public charitable trust

2. Objective

- To provide relief during:
  - **Public health emergencies** (pandemics)
  - **Natural and man-made disasters**
- To fund:
  - Disaster management capacity
  - Health infrastructure
  - Research and preparedness

3. Management & Administration

- **Chairperson**: Prime Minister of India
- **Ex-officio Trustees**:
  - Minister of Defence
  - Minister of Home Affairs
  - Minister of Finance

- Chairperson can **nominate 3 trustees** from civil society

4. Funding Sources

- **Voluntary contributions** from:
  - Individuals
  - Corporates
  - Foreign donors (permitted)
- Contributions allowed via:
  - CSR funds (under Companies Act, 2013)
- **No direct budgetary allocation**

5. Audit & Transparency

- **Audited by**: Independent auditors
- **Not audited by CAG** (important for Prelims)
- RTI Act **not applicable** (as it is not a public authority under RTI Act)

6. Tax Exemptions

- **100% tax exemption** under **Section 80G**
- Donations exempt from income tax
- Treated as **CSR expenditure**

Prime Ministers of India

1. Pt. Jawaharlal Nehru (INC) 1947 – 1964
2. Gulzarilal Nanda (INC) 1964 – 1964
3. Lal Bahadur Shastri (INC) 1964 – 1966
4. Gurlzarilal Nanda (INC) 1966 – 1966
5. Indira Gandhi (Congress – I) 1966 – 1977
6. Morarji Desai (Janta Party) 1977 – 1979
7. Chaudhari Charan Singh (Janata Party) 1979 – 1980
8. Indira Gandhi (Congress – I) 1980 – 1984
9. Rajiv Gandhi (Congress – I) 1984 – 1989
10. Vishwanath Pratap Singh 1989 – 1990
11. Chandra Shekar (SJP) 1990 – 1991
12. PV Narsimha Rao (Congress – I) 1991 – 1996
13. Atal Bihari Vajpayee (BJP) (16 days) 1996 – 1996
14. H.D. Deve Gowda (Janta Dal) 1996 – 1997
15. I. K. Gujral (Janta Dal) 1997 – 1998
16. Atal Bihari Vajpayee (BJP) 1998 – 1999
17. Atal Bihari Vajpayee (BJP) 1999 – 2004
18. Manmohan Singh (Congress – I) 2004 – 2009

Role of Prime Minister by Scholars	Facts About Indian Prime Ministers
✓ **Sir William Vernor Harcourt:** PM as a moon among lesser stars. ✓ **Ivor Jennings:** PM is the sun around which planets revolve. ✓ **Lord Morley:** PM is primus inter pares and the keystone of the cabinet arch. ✓ **Herbert Morrison:** PM is primus inter pares, with a stronger role. ✓ **R.H. Crossman:** Cabinet government turned into Prime Ministerial government. ✓ **Humphrey Berkely:** PM holds super-ministerial powers, risking democracy. ✓ **Dr. B.R. Ambedkar:** PM's role surpasses the President, akin to U.S. President.	✓ **Longest-serving:** Jawaharlal Nehru (1947 – 1964). ✓ **Second longest-serving:** Indira Gandhi. ✓ **First non-Congress PM:** Morarji Desai. ✓ **First Indian PM awarded Pakistan's highest civilian award:** Morarji Desai. ✓ **Youngest Indian PM:** Rajiv Gandhi. ✓ **First PM from South India:** P.V. Narasimha Rao. ✓ **First PM who was a member of the Rajya Sabha:** Indira Gandhi. ✓ **Twice Acting Prime Minister:** Gulzari Lal Nanda.

CHIEF MINISTERS

The Chief Minister is the Real Executive (de facto executive) authority of the State.

Constitutional Provisions of PM and CM

<table>
<tr><th>Parameters</th><th>Prime Ministers (PM)</th><th>Chief Ministers (CM)</th></tr>
<tr><td>Appointment & Oath</td><td>Article 75: The Prime Minister shall be appointed by the President.</td><td>Article 164: The Chief Minister shall be appointed by the Governor.</td></tr>
<tr><td></td><td colspan="2">Appointment of PM/CM: No specific procedure in the Constitution. By convention, the leader of the majority party is appointed PM/CM.
Discretion in Case of No Majority: If no clear majority, the President/Governor may use personal discretion to appoint PM/CM. The PM/CM must secure a vote of confidence within a month.
Death of PM/CM: In case of sudden death and no successor, the President/Governor uses individual judgement to appoint a successor.
Eligibility: PM/CM can be from either House of Parliament/State Legislature. Non-members can be appointed but must be elected within six months.
Oath Administration: President/Governor administers oaths of office and secrecy.</td></tr>
<tr><td>Term</td><td>Not fixed, holds office during the pleasure of the President.</td><td>Not fixed, holds office during the pleasure of the Governor.</td></tr>
<tr><td>Salary</td><td>Determined by Parliament.</td><td>Determined by the State legislature.</td></tr>
<tr><td>Powers & Functions</td><td colspan="2">PM/CM Role in COM
Recommends ministerial appointments.
Allocates/reshuffles portfolios.
Can ask a minister to resign or advise dismissal.
Presides over COM meetings and influences decisions.
Resignation of PM/CM can collapse the COM.
If, PM/CM Resignation or Death it dissolves COM.</td></tr>
<tr><td>Additional Powers</td><td>With Parliament:
Advises President on summoning/proroguing sessions.
Can recommend dissolution of Lok Sabha.
Announces government policies in the House.
Other Roles:
Chairman of NITI Aayog, NITI Aayog, National Integration Council, Inter-State Council, National Water Resources Council, and other councils.
Shapes foreign policy, chief government spokesperson, crisis manager, and leader of the ruling party.</td><td>With State Legislature:
Advises Governor on summoning/proroguing the sessions and dissolution of the assembly.
Announces policies on the House floor.
Other Roles:
Chairman of the State Planning Board.
Vice-chairman of Zonal Council (rotational), member of Inter-State Council and NITI Aayog.
Spokesperson, crisis manager, and political head of state services.</td></tr>
</table>

Relations with Nominal Head	**PM with the President:** • **Article 74:** PM heads the Council of Ministers (CoM) to aid and advise the President. The President may ask for reconsideration but must follow final advice. • **Article 75:** ○ PM appointed by the President; other ministers appointed on PM's advice. ○ Ministers hold office at the pleasure of the President. ○ CoM is collectively responsible to the Lok Sabha. Article 78: PM's duties include: ○ Communicating CoM decisions and legislative proposals to the President. ○ Submitting matters for CoM consideration upon the President's request. **Others:** Advises President on appointments of key officials - Attorney General, CAG, UPSC, Election Commissioners, etc.	**CM with the Governor:** • **Article 163:** CM heads the CoM to aid the Governor, who may act at discretion in some cases. • **Article 164:** ○ CM appointed by the Governor; other ministers on CM's advice. ○ Ministers hold office at the pleasure of the Governor. ○ CoM is collectively responsible to the legislative assembly. • **Article 167:** CM's duties include: ○ Communicating CoM decisions and legislative proposals to the Governor. ○ Submitting matters for CoM reconsideration upon Governor's request.

19. Central Council of Minister and State Council of Minister

CENTRAL COUNCIL OF MINISTERS

1. Constitutional Provisions

- **Article 74** – Council of Ministers to aid and advise the President
- **Article 75** – Appointment, tenure, responsibility of Ministers
- **91st Constitutional Amendment Act, 2003** – Limits size of Council of Ministers

2. Composition

The Union Council of Ministers consists of:

1. **Prime Minister**
2. **Cabinet Ministers**
3. **Ministers of State**
    - With independent charge / without independent charge
4. **Deputy Ministers** (rare in practice)

3. Appointment of Ministers

- **Prime Minister** appointed by the President
- Other ministers appointed by the President **on advice of the PM**
- A minister **must be a Member of Parliament**
    - If not, must become MP within **6 months** (Art. 75(5))

4. Size of Council of Ministers

- Cannot exceed **15% of total strength of Lok Sabha**
- Objective: prevent jumbo cabinets and defections
- Enforced by **91st Constitutional Amendment Act, 2003**

5. Oath and Salaries

- **Oath of office and secrecy** administered by the President
- Salaries and allowances determined by **Parliament**

6. Responsibility of Ministers

(a) Collective Responsibility (Art. 75(3))

- Council of Ministers is **collectively responsible to Lok Sabha**
- Loss of confidence → **entire ministry must resign**

(b) Individual Responsibility

- Ministers hold office **during President's pleasure**
- In reality → pleasure of the Prime Minister

(c) Legal Responsibility

- No provision in Indian Constitution (unlike UK)

7. Role of Cabinet

- Real executive authority lies with the **Cabinet**
- Key functions:
  - Policy formulation
  - Legislative proposals
  - Budget preparation
  - National security decisions
  - Appointment to high offices

8. Council of Ministers vs Cabinet

Cabinet	Council of Ministers
Smaller body	Larger body
Real decision-making	Includes all ministers
Constitutional status implied	Explicitly mentioned

9. Advice to the President

- Advice of Council of Ministers is **binding**
- **42nd Amendment (1976)** – Made advice binding
- **44th Amendment (1978)** – President can ask for reconsideration **once**

STATE COUNCIL OF MINISTERS

1. Constitutional Provisions

- **Article 163** – Council of Ministers to aid and advise Governor
- **Article 164** – Appointment and responsibility of Ministers

2. Composition

- **Chief Minister**
- Cabinet Ministers
- Ministers of State
- Deputy Ministers

3. Appointment

- **Chief Minister** appointed by the Governor
- Other ministers appointed on advice of CM
- Minister must be a **member of State Legislature**
  - Otherwise, must get elected within **6 months**

4. Size of State Council of Ministers

- **Maximum: 15% of total strength of Legislative Assembly**
- **Minimum: 12 ministers** (except states with small assemblies)
- Provision added by **91st Constitutional Amendment Act, 2003**

5. Responsibility

(a) Collective Responsibility

- Council of Ministers collectively responsible to **Legislative Assembly**

(b) Individual Responsibility

- Ministers hold office during **Governor's pleasure**
- In practice → pleasure of the Chief Minister

6. Oath and Salaries

- Oath administered by the **Governor**
- Salaries determined by **State Legislature**

7. Role of Governor in State Council

- Governor normally bound by ministerial advice
- **Discretionary powers** in:
    - Reservation of bills
    - Appointment of CM in hung assembly
    - Recommendation of President's Rule (Art. 356)

20. Cabinet Committees

CABINET COMMITTEES

1. Meaning

- Cabinet Committees are **extra-constitutional bodies** formed to:
  - Reduce the workload of the full Cabinet
  - Enable **focused decision-making** on specific issues
- They are part of the **Council of Ministers**, but not mentioned in the Constitution

2. Constitutional Status

- **Not mentioned in the Constitution**
- Derived from:
  - **Article 74** – Council of Ministers to aid and advise the President
- Operate under **Rules of Business** framed by the Government of India

3. Features of Cabinet Committees

- Set up by the **Prime Minister**
- Membership:
  - Only **Cabinet Ministers** are included
  - Some committees may include Ministers of State (special cases)
- Headed by:
  - **Prime Minister** (most important committees)
  - Or a **senior Cabinet Minister**
- Decisions are **binding on the Government**
- Subject to **reconstitution, dissolution, or change** anytime

4. Types of Cabinet Committees

Cabinet Committees broadly classified into:

1. **Standing Committees** (Permanent)
2. **Ad-hoc Committees** (Temporary)

5. Important Cabinet Committees:

I. **Cabinet Committee on Political Affairs (CCPA)**

- Called the **"Super Cabinet"**
- Deals with:
  - Domestic and foreign political issues
  - Centre–State relations
  - Major political decisions

II. **Cabinet Committee on Economic Affairs (CCEA)**

- Considers:
  - Economic policies
  - Industrial and investment proposals
  - Pricing of essential commodities
  - Infrastructure projects

III. **Cabinet Committee on Security (CCS)**

- Most powerful committee
- Deals with:
  - National security
  - Defence policy
  - Nuclear issues
  - Internal and external security

IV. **Cabinet Committee on Parliamentary Affairs**

- Deals with:
  - Parliamentary strategy
  - Legislative agenda
  - Coordination between executive and Parliament

V. **Cabinet Committee on Appointments (ACC)**

- Decides appointments of:
  - All-India Services
  - High constitutional and administrative posts

VI. **Cabinet Committee on Accommodation**

- Allotment of government residences
- Related administrative matters

6. Membership

- Prime Minister – Chairperson (in most committees)
- Selected Cabinet Ministers depending on subject matter
- Strength varies from **3 to 8 members**

7. Functions of Cabinet Committees

- Examine issues in detail
- Take decisions on behalf of Cabinet
- Coordinate between ministries
- Speed up governance

8. Cabinet Committees vs Cabinet

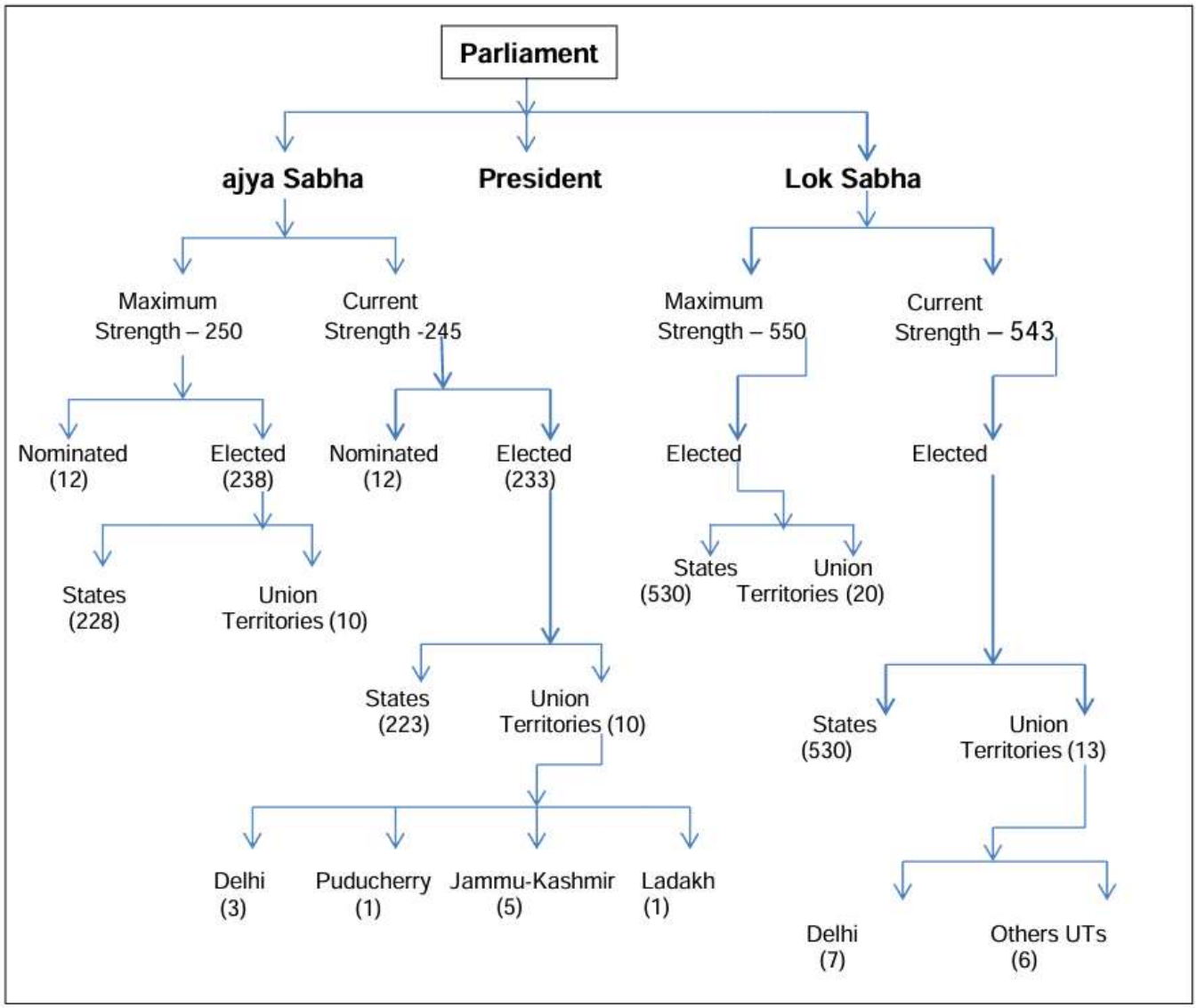
Aspect	Cabinet	Cabinet Committees
Nature	Highest decision-making body	Subordinate bodies
Size	Larger	Smaller
Focus	Broad policy	Specific issues
Frequency	Less frequent	More frequent

9. Significance

- Ensures **efficient administration**
- Prevents Cabinet overload
- Encourages specialization
- Facilitates quick response in crises

21. Parliament

The Parliament is the **legislative organ** of the Union Government. **Article 79 to 122 in Part V** of the Constitution deal with it. The **Rajya Sabha** represents the states and union territories of the Indian Union, while the **Lok Sabha** represents the people of India as a whole. **Hindi names** Rajya Sabha and Lok Sabha were adopted in **1954**.



Parliamentary System in India:

Features

- Nominal Executive: **President**
- Real Executive: **Council of Ministers**
- Majority Party Rule
- Collective Responsibility
- Bicameral Legislature
- Opposition plays key role

COMPOSITION OF THE TWO HOUSES - LOK SABHA VS. RAJYA SABHA

Features	Rajya Sabha	Lok Sabha
Maximum Strength	250 total- 238 (elected from States & UTs) + 12 (nominated by the President).	550 total- 530 (elected from States) + 20 (elected from UTs).
Present Strength	Total 245: 225 (from States) + 8 (from UTs) + 12 (nominated).	Total 543: 524 (from States) + 19 (from UTs).
Anglo-Indian Nomination	N/A	2 Anglo-Indians to be nominated by the President (Article 331) has been discontinued by the 104th CAA, 2019 No Anglo-Indian members in the 17th Lok Sabha.
Seat Allocation	Defined in the 4th Schedule, Representation only for Delhi, Puducherry, and J&K,	N/A
State Representation	Elected by MLAs through proportional representation via single transferable vote.	Directly elected from territorial constituencies using universal adult franchise (First-past-the post system).
UT Representation	Indirectly elected by members of a specially constituted electoral college.	Directly elected as per the Union Territories (Direct Election to the House of the People) Act, 1965.
Term	Continuing chamber, 1/3rd of members retire every two years; each member serves a 6-year term.	Not a continuing chamber; normal term is 5 years from the date of the first meeting post elections; automatically dissolves afterward.
Emergency Extension	N/A	Can extend for one year during a National Emergency (Article 352), but cannot exceed six months after the emergency ends.
Nominations	12 members nominated by the President, having special knowledge or experience in literature, science, art, and social service [Article 80 (3)].	N/A
Qualifications (Constitution)	• Citizenship of India Oath or affirmation (Schedule 3) • Age: 30 years (RS) • Other qualifications as prescribed by Parliament	• Citizenship of India • Oath or affirmation (Schedule 3) • Age: 25 years (LS) • Other qualifications as prescribed by Parliament.
Qualification (RPA, 1951)	Must be registered as an elector for a Parliamentary constituency; Must be a member of SC/ST community for reserved seats.	Must be registered as an elector for a Parliamentary constituency. Must be a member of SC/ST community for reserved seats.
Disqualification (Constitution)	• Holds office of profit • Not a citizen of India • Unsound mind (court-declared) • Undischarged insolvent • Acquired foreign citizenship	• Holds office of profit • Not a citizen of India • Unsound mind (court-declared) • Undischarged insolvent • Acquired foreign citizenship

Disqualification (RPA, 1951)	Guilty of election offences • Failed to lodge election expenses • Interest in government contracts • Managing agent, manager, or secretary in a corporation with 25% government share (Sec.10 RPA 1951). • Convicted for promoting enmity • Punished for social crimes • Dismissed for corruption.	• Guilty of election offences • Failed to lodge election expenses • Interest in government contracts • Managing agent, manager, or secretary in a corporation with 25% government share (Sec.10 RPA 1951). • Convicted for promoting enmity • Punished for social crimes • Dismissed for corruption
Disqualification (Defection)	Decided by the Chairman; judicially reviewable (Kihoto Hollohan Judgement 1992) Grounds include: Voluntarily leaving the party, voting contrary to party direction, etc.	Decided by the Speaker; judicially reviewable (Kihoto Hollohan Judgement 1992) Grounds include: Voluntarily leaving the party, voting contrary to party direction, etc.
Vacating of Seats	• No double membership in both Houses • Must inform within 10 days if elected to both • Members elected to another House vacate their first House seat	• No double membership with state legislature; if not resigning within 14 days, Parliament seat becomes vacant, • Seat vacated if subject to disqualification or if election declared void
Oath/Affirmation	Administered by the President; cannot vote or participate until subscribed.	Administered by the President; cannot vote or participate until subscribed.
Penalties	Liable to a penalty of Rs. 500 for each day seated or voting without qualification.	Liable to a penalty of Rs. 500 for each day seated or voting without qualification.
Salaries and Allowances	Determined by Parliament; no pension provision in Constitution; pensions provided in 1976.	Determined by Parliament; no pension provision in Constitution; pensions provided in 1976.

IMPORTANT PROVISIONS:

President: Not a member of either house but an integral part of the Parliament. Unlike Britain and India, the American president is not an integral part of the legislature.

- Summons and Prorogues both the Houses, dissolves the LS, addresses both the Houses, issues ordinances when they are not in session, and so on. Can dissolve LS before completion of 5 years and this cannot be challenged in any court of law.

Office of Profit:

- **Definition:** An office of profit is any position that offers a salary, benefits, or financial gain. This concept prevents legislators (MPs and MLAs) from holding roles that could create conflicts of interest.
- **Exemption from the Law:** No limit exists on the number of offices exempted from disqualification. The Supreme Court upheld the Parliament (Prevention of Disqualification) Amendment Act, 2006, which exempted 55 offices held by Members of Parliament, ruling it constitutionally valid.
- **Legislative Framework:** The Parliament (Prevention of Disqualification) Act, 1959 has been amended five times to expand the list of exempted offices.

- **Constitutional References:** The term **'office of profit'** appears in Articles 102(1) (a) and 191(1) (a) of the Constitution but is not defined in the Indian Constitution or the Representation of the People Act, 1951. These articles bar legislators from holding offices of profit under the Central or State Government to prevent financial gain.

PRESIDING OFFICERS OF THE PARLIAMENT

Each House of Parliament has its own presiding officer. The Lok Sabha has a Speaker and a Deputy Speaker, while the Rajya Sabha has a Chairman and a Deputy Chairman. Additionally, a panel of chairpersons is appointed for the Lok Sabha, and a panel of vice-chairpersons is appointed for the Rajya Sabha.

Historical Background

- Origins: The institution dates back to the Government of India Act, 1919.
- Pre-1921: Meetings of the Central Legislative Council were presided over by Governor General of India
- 1921: First Speaker: Frederick Whyte, First Deputy Speaker: Scachidanad Sinha
- 1925: Vithalbhai J. patel became the first Indian and elected Speaker of the Central Legislative Assembly.
- 1935 Act: Renamed the President and Deputy President to Speaker and Deputy Speaker respectively.
- Post-Independence: First Speaker of Lok Sabha: G.V. Mavalankar, First Deputy Speaker of Lok Sabha: Ananthasayanam Ayyangar.

Speaker Pro-Tem

- The last Lok Sabha Speaker vacates their office just before the first meeting of the newly elected Lok Sabha.
- The Speaker Pro-Tem is a temporary office that helps transition from the old Lok Sabha to the new one, facilitating the election of the new Speaker.
- The President appoints the Speaker Pro-Tem, who also administers the oath to members; typically, the senior most member is selected.

SPEAKER OF THE LOK SABHA AND CHAIRMAN OF THE RAJYA SABHA

Features	Speaker of the Lok Sabha	Chairman of the Rajya Sabha
Constitutional Position	• Mentioned in **Article 93** of the Indian Constitution. • Lok Sabha shall choose: ○ **Speaker** ○ **Deputy Speaker** • Office continues until: ○ Dissolution of Lok Sabha, but ○ Speaker continues till the first meeting of the next Lok Sabha	• The **Vice-President of India** is the **ex-officio Chairman of the Rajya Sabha**. • Mentioned under **Article 64** of the Constitution. • Rajya Sabha is the **Upper House** of Parliament.
Election of Speaker	• Elected by **members of the Lok Sabha** from among themselves. • Election is usually on a **motion moved by Prime Minister / Parliamentary Affairs Minister**. • Convention: ○ Speaker belongs to the **ruling party/coalition**.	• Elected under **Article 66**. • Elected by an **electoral college** consisting of: • Members of both Houses of Parliament (elected + nominated). • Uses **Proportional Representation by Single**

	○ Deputy Speaker often from **opposition**	**Transferable Vote** and **secret ballot**.
Term and Removal	• Holds office: ○ During the life of Lok Sabha. • Removal: ○ By a **resolution passed by a majority of all the then members of Lok Sabha**. ○ **14 days' notice** required. • Cannot preside when resolution for his removal is under consideration.	• **Tenure:** 5 years (can resign earlier or be removed). • Can be re-elected any number of times. • Removed by a **resolution of the Rajya Sabha**, passed by: **Effective majority** (majority of all the then members of the House). • Resolution must be **agreed to by the Lok Sabha**. • **14 days' prior notice** is mandatory.
Oath and Salary	• Oath administered by: ○ **President of India**. • Salary and allowances: ○ Charged on the **Consolidated Fund of India**	• Oath administered by: ○ **President of India**. ○ Takes oath under **Article 69** of the Constitution. ○ In the absence of the President, it is administered by a person appointed by the President. • Salary & Allowances: ○ Governed by **Article 97** of the Constitution. ○ Determined by **Parliament by law**. ○ **Charged on the Consolidated Fund of India**. ○ Hence, **not subject to annual parliamentary vote**.
Independence and Impartiality	• To ensure neutrality: ○ Speaker does not vote in the first instance. ○ Votes only in case of a **tie**. • Resignation is submitted to: ○ **Deputy Speaker**.	• The Chairman is the **Vice-President of India**, a **constitutional authority**, not an ordinary member. • His office is **independent of the Council of Ministers**. • He is **not a member of the Rajya Sabha**, reducing partisan affiliation. • His office is **independent of the Council of Ministers**.
Powers and Functions	• Maintains **order and decorum**. • Can adjourn or suspend the House. • Decides whether a bill is **Money Bill** (Article 110) – decision is final.	• Presides over the sittings of the Rajya Sabha. • Maintains **order and decorum** in the House.

	• Presides over **Joint Sitting of Parliament** (Article 108). • Head of Lok Sabha Secretariat. • Appoints Chairpersons of parliamentary committees. • Controls admission of motions, questions, resolutions. • Decides the Disqualification of MPs under **Tenth Schedule (Anti-Defection Law)**. • Decision subject to, **Judicial Review** (Kihoto Hollohan case, 1992).	• Decides- points of order, Admissibility of questions, motions, and resolutions. • His decisions are **final** and **not subject to judicial review.**
Casting Vote	• Speaker votes only when there is a **tie**. • Purpose to maintain **status quo** or allow further discussion.	• Has **no vote in the first instance**. • Can exercise a **casting vote in case of a tie** (Article 100).

SECRETARIAT OF PARLIAMENT - ARTICLE 98:

Separate Staff: Each House has its own secretarial staff, with some common posts.

Regulated Recruitment: Staff recruitment and service conditions are determined by Parliament.

Headed by Secretary-General: Each House is led by a Secretary-General, a permanent officer appointed by the Presiding officer.

LEADERS IN PARLIAMENT:

- **Leader of the House**
  - In Lok Sabha: Typically the Prime Minister or a nominated minister.
  - In Rajya Sabha: A minister nominated by the Prime Minister; may have a deputy leader.
  - Comparable to the majority leader in the USA.
- **Leader of the Opposition:**
  - Recognized since 1969; statutory acknowledgment in 1977.
  - In order to receive the status of opposition party and Consequent Leader of Opposition Tag a party should secure 10% of the total strength of the House i.e., 55 seats in the Lok Sabha.
  - Holds a status equivalent to a cabinet minister, receiving similar salary and benefits.
  - Ivor Jennings referred to this position as “Alternative Prime Minister”; similar to the minority leader in the USA.

Whip: Not explicitly mentioned in the Constitution; based on parliamentary conventions.

Roles-

- Each political party has a Chief Whip and whips to ensure attendance and party alignment during votes.
- Members must adhere to the whip’s directives, with potential disciplinary actions for non-compliance.
- In Lok Sabha, the Chief Whip is the Minister of Parliamentary Affairs; in Rajya Sabha, it is the Minister of State for Parliamentary Affairs.

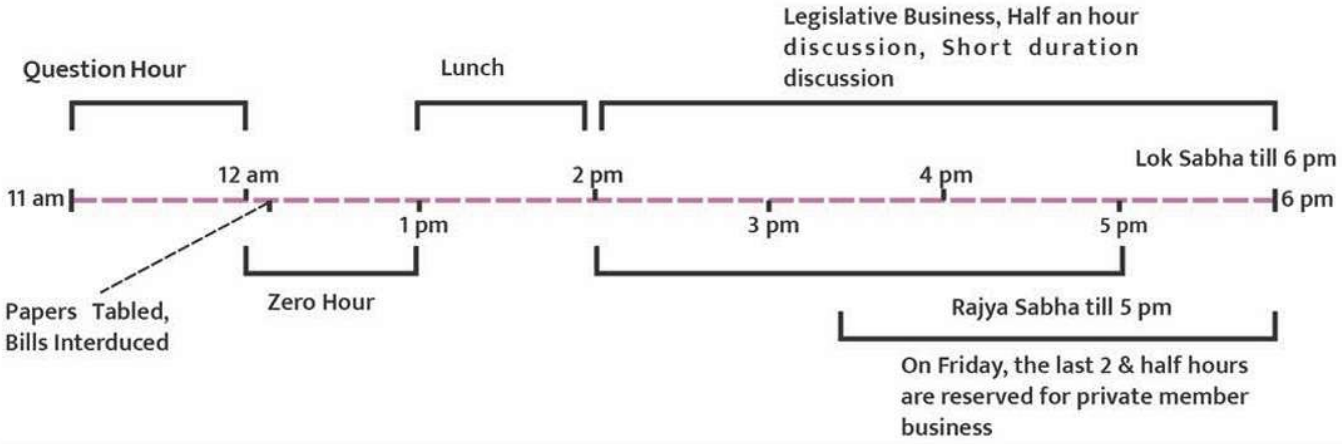
Types of Whips-

One-Line Whip: Notifies members of a vote without instructions on how to vote.

Two-Line Whip: Directs members to attend voting, without specific voting instructions.

Three-Line Whip: Instructs members to vote according to the party line.

DEVICES OF PARLIAMENTARY PROCEEDINGS



Question Hour - This is first hour of Parliament sitting. Members of Parliament ask questions to ministers, who have to reply for those questions. Established by the Indian Council Act of 1892.

- **Types of Questions:**

✓ **Starred Questions -** These are the questions on which ministers give oval reply and if member is not satisfied by the answer then he can ask supplementary questions with permission of speaker. These have star mark with questions.

✓ **Unstarred Questions -** These are the questions whose reply is given in written form. These questions are not labelled with stars and hence called unstarred questions.

✓ **Short Notice Questions -** These are the questions of public importance and can be asked with a short notice of less than 10 days. These are answered orally. These are answered after starred questions are replies. Date for the answer is fixed as suggested by minister.

- **Question types are colour-coded:**
  - Starred: **Green**
  - Unstarred: **White**
  - Short Notice: **Light Pink**
  - Private Members: **Yellow**

Zero Hour - During this time after Question hour when members raise questions on different issues without prior notice. It is not mentioned in rules of procedure.

Motions: The discussions on public matters require a motion with the Presiding Officer's consent.

- **Categories of Motions:**
  - Substantive Motion: Independent proposal on significant matters.
  - Substitute Motion: Proposes an alternative to replace the original motion.
  - Subsidiary Motion: Lacks meaning alone and relates to the original motion; includes:
    - ✓ Ancillary Motion: Regularly used to proceed with business.
    - ✓ Superseding Motion: Seeks to replace another issue during a debate.
    - ✓ Amendment: Modifies part of the original motion.

Closure Motion:

- A member moves this to cut short the debate. If approved, the matter is put to a vote.
- Types of Closure Motions:
  - Simple Closure: Enough discussion has occurred; put to vote.
  - Closure by Compartments: Groups clauses for debate and voting.
  - Kangaroo Closure: Important clauses debated; others skipped.
  - Guillotine Closure: Undiscussed clauses voted along with discussed ones due to time constraints.

Privilege Motion: Raised when a member believes a minister has breached the privileges of the House by withholding or distorting facts, aimed at censuring the minister.

Calling Attention Motion: Moved to alert a minister about urgent public matters; an Indian innovation since 1954.

Adjournment Motion: Draws attention to urgent public matters, interrupting normal House business. Not allowed in Rajya Sabha as it involves censure. It allows a discussion on a definite matter of urgent public importance. Discussion lasts for at least 2 hours and 30 minutes.

- Criteria:
  - Covers only one recent matter.
  - Cannot be general or previously discussed.
  - Cannot address court-adjudicated matters.
  - Requires support from 50 members.

Confidence Motion: A procedural tool for addressing fractured mandates and government stability. The President may request a demonstration of majority in the House, or governments may voluntarily propose it. If a confidence motion fails, it results in the collapse of the government.

No-Confidence Motion:

- Article 75: Establishes that the Council of Ministers (CoM) is collectively responsible to the Lok Sabha, a principle central to Parliamentary democracy.
- Not explicitly mentioned in the Constitution; moved under Rule 198 of the Rules of Procedure.
- Can only be introduced in the Lok Sabha and requires support from 50 members without needing to state reasons for its adoption.
- Targets the entire Council of Ministers, not individual ministers. If passed, the CoM must resign.

Censure Motion: Moved to express disapproval of certain government policies. Requires reasons for adoption. Can be directed against an individual minister, a group of ministers, or the entire CoM. If passed in the Lok Sabha, the CoM does not need to resign.

Motion of Thanks: Addressed by the President during the first session after each general election and every fiscal year, outlining government policies. Discussed in both Houses of Parliament and must be passed; failure to pass amounts to a defeat of the government.

No-Day-Yet-Named Motion: A motion that has been admitted by the Speaker but lacks a scheduled date for discussion.

Dilatory Motion: A motion seeking the adjournment of debate on a bill, motion, resolution. Can be moved any time after a motion is made, but debate is restricted to the motion's content. If deemed an abuse of rules, the Speaker may decline or proceed with a vote.

Point of Order: Raised when parliamentary proceedings deviate from normal rules, typically by the Opposition. Concerns interpretation/enforcement of the Rules of the House or relevant Constitutional articles. An extraordinary device that suspends proceedings; debate is not allowed.

Half-an-Hour Discussion: Intended for discussing matters of public importance. The Speaker can allocate three days a week for such discussions. No formal motion or voting occurs.

Short Duration Discussion: Also known as a two-hour discussion; time limit is two hours. Speakers can allocate two days a week for such discussions; no formal motion or voting required. Established in 1953.

Special Mention: Used to raise matters that do not fit other parliamentary categories. In the Rajya Sabha, this falls under special mention in the Lok Sabha, it is termed "Notice Under Rule 377".

Resolutions: A self-contained independent proposal for House approval, expressing decisions on public interest matters.Members moving resolutions cannot withdraw without House permission.All resolutions are substantive motions, while not all motions require a vote.

- **Types of Resolutions:**

  - ✓ **Private Member's Resolution:** Moved by private members, discussed on alternate Fridays during afternoon sittings.

- ✓ **Government Resolution:** Moved by a minister.
- ✓ **Statutory Resolution:** Can be moved by either a private member or a minister; arises from provisions in the Constitution or an Act of Parliament.

Youth Parliament: Initiated based on recommendations from the Fourth All India Whips Conference to educate younger generations about parliamentary practices and democratic values. The Ministry of Parliamentary Affairs supports training and implementation in states.

IMPORTANT CONCEPTS RELATED TO PARLIAMENT

Summoning (Article 85)

- The President summons each House of Parliament periodically or at a suitable location.
- Each House must meet at least twice a year. The gap between two sessions must not exceed 6 months. There is no provision of the minimum number of days that the Parliament is required to meet in a year.

Sessions

- A session is the period between the first sitting and prorogation (or dissolution for Lok Sabha).
- Typically, there are three sessions annually:
  - Budget Session: February to May
  - Monsoon Session: July to September
  - Winter Session: November to December

Recess and Adjournment

- Recess: Duration between prorogation and reassembly.
- Adjournment: The Presiding Officer can terminate a sitting temporarily, which can be for hours, days, or weeks. Pending business is resumed when the House reconvenes.
  - A sitting consists of two meetings: morning (11 am to 1 pm) and post-lunch (2 to 6 pm).

Adjournment Sine Die

- Means indefinite termination of a sitting by the Presiding Officer.
- Pending bills and business remain unaffected.

Prorogation

- Prorogation is notified by the President and can also occur while the House is in session.
- It terminates both the sitting and session but does not affect pending business except for notices (other than introducing bills) which lapse.

Dissolution

- Only the Lok Sabha can be dissolved, ending its current life irrevocably.
- Dissolution may occur:
  - Automatically at the end of its tenure.
  - By the President's decision.
- All pending business lapses upon dissolution, except some bills and pending assurances for the Committee on Government Assurances.

Lame Duck Session

- The last session of the outgoing Lok Sabha after a new Lok Sabha has been elected. Members who are not re-elected are termed lame ducks.

Quorum

- Minimum members required: one-tenth of total members (including the Presiding Officer).
- In the absence of a quorum, the Presiding Officer must adjourn or suspend the meeting.

Language in Parliament

- Hindi and English are designated for Parliamentary business. Members may use their mother tongue with the Presiding Officer's permission.
- The Official Languages Act (1963) allows English to continue alongside Hindi post-15 years from the Constitution's commencement.

Rights of Ministers and Attorney General

- Every minister and the Attorney General can speak and participate in both Houses and committees without a vote.

Voting in the House

- Decisions are made by a majority of members present and voting, excluding the Presiding Officer.
- Specific matters, like impeachment and constitutional amendments, require an effective majority or special majority.
- Proceedings are valid despite unauthorised voting or vacancies.

Methods of Voting

- Includes Voice Vote, Secret Ballot, Recording of Votes by Slips, Physical Count, and Casting Vote.

Position of Bills Regarding Lapsing-

- Bill Lapses:
  - If pending in Lok Sabha.
  - If pending in Rajya Sabha but passed by Lok Sabha.
- Bill Does Not Lapse:
- If passed by both Houses but returned by the President.
- If pending in Rajya Sabha and not passed by Lok Sabha.
- If a joint sitting is notified before Lok Sabha dissolution.
- If passed by both Houses but awaiting the President's assent.

LEGISLATIVE PROCEDURE IN PARLIAMENT

- The legislative procedure is identical in both Houses of Parliament.
- Every bill must pass through the same stages in each House.
- A bill is a proposal for legislation that becomes an act or law upon enactment.

TYPES OF BILLS

1. Ordinary Bill

(Article 107)

Meaning

- Bills other than Money, Financial, and Constitutional Amendment Bills.

Key Features

- Can be introduced in **either House** of Parliament.
- Can be introduced by **minister or private member**.
- **President's recommendation not required** for introduction.
- **Rajya Sabha has equal powers** as Lok Sabha.
- In case of deadlock → **Joint Sitting allowed**.
- President can **give assent / withhold assent / return (except if re-passed)**.

Examples

- Bills related to subjects in **Union List & Concurrent List**.

2. Money Bill

(Article 110)

Meaning

- Deals **exclusively** with matters related to taxation and public expenditure.

Contents (Only these)

1. Imposition, abolition, remission of taxes
2. Borrowing of money by Government of India
3. Custody of Consolidated Fund or Contingency Fund
4. Appropriation of money
5. Audit of accounts of Union/States

Key Features

- Can be introduced **only in Lok Sabha**.
- Can be introduced **only by a minister**.
- **President's recommendation mandatory**.
- **Rajya Sabha cannot amend** → can only make recommendations.
- Rajya Sabha must return within **14 days**.
- **No Joint Sitting**.
- Speaker's decision on Money Bill is **final**.
- President **cannot return** the bill.

3. Financial Bill

Deals with financial matters but **not strictly a Money Bill**.

(A) Financial Bill – Category I

(Article 117(1))

Features

- Contains **Money Bill provisions + other matters**.
- Introduced **only in Lok Sabha**.
- President's recommendation **mandatory**.
- Rajya Sabha has **full powers**.
- **Joint Sitting allowed**.
- President can **return the bill**.

(B) Financial Bill – Category II

(Article 117(3))

Features

- Does **not contain Money Bill matters**.
- Involves **expenditure from Consolidated Fund of India**.
- Can be introduced in **either House**.
- President's recommendation **required only at consideration stage**.
- Treated like **Ordinary Bill** in other respects.

4. Constitutional Amendment Bill

(Article 368)

Purpose

- To amend provisions of the **Constitution of India**.

Key Features

- Can be introduced in **either House**.
- No prior **President's recommendation required**.
- Requires:
  - **Special majority** (⅔ members present & voting + majority of total membership).
  - For federal provisions → **ratification by at least ½ of State Legislatures**.
- **No Joint Sitting**.
- President **must give assent**.

5. Public Bill vs Private Bill (Additional Classification)

Public Bill

- Introduced by a **minister**.
- Reflects **government policy**.
- More chances of being passed.

Private Bill

- Introduced by a **non-minister MP**.
- Rarely passed.
- Discussed on **private members' day (Friday)**.

▪ Stages of Enactment of an Ordinary Bill

1. First Reading

  - Introduction of the bill and its publication in the Gazette.
  - No discussion occurs; members must ask for leave of the House for introduction.
  - If published before introduction, leave is not required.

2. Second Reading

  - Involves general and detailed scrutiny, shaping the final form of the bill.

Sub-Stages:

- Stage of General Discussion: General principles discussed; may be referred to a committee or elicited for public opinion.
- Committee Stage: Clause-by-clause examination; amendments can be made without altering core principles. The committee reports back to the House.
- Consideration Stage: Detailed discussion and voting on each clause. Amendments can be proposed and accepted.

3. Third Reading

- Debate focuses on acceptance or rejection of the entire bill; no amendments allowed.
- If passed by a majority of members present, it is authenticated by the presiding officer and sent to the second House.

Bill in the Second House

- The bill goes through the same three stages: first reading, second reading, and third reading.
- Four options for the second House:
  - Pass the bill as received.
  - Pass the bill with amendments and return it to the first House.
  - Reject the bill.
  - Take no action, keeping the bill pending.
- If passed without amendments or accepted amendments are approved by both Houses, it is sent to the President.
- If there is rejection, or no action taken for six months, a deadlock occurs.
- The President can summon a joint sitting to resolve the deadlock. If approved by majority in the joint sitting, it is deemed passed by both Houses.

Assent of President

- If the President gives assent, the bill becomes an act and is placed on the Statute Book.
- If the President withholds assent, the bill ends. If returned for reconsideration and passed again by both Houses, the President must give assent.

JOINT SITTING (ARTICLE 108)

A joint sitting is a constitutional mechanism to resolve deadlocks between the two Houses of Parliament regarding the passage of a bill.

- A joint sitting can be summoned by the **President** if:

1. A bill is **rejected by the other House**, or
2. Houses **finally disagree on amendments**, or
3. More than **6 months have elapsed** since the bill was received by the other House **without being passed**

Time spent in:

- Prorogation
- Adjournment of more than 4 consecutive days
  is **excluded** from the 6-month period.

Presiding Officer

1. **Speaker of Lok Sabha**
2. **Deputy Speaker of Lok Sabha**
3. **Deputy Chairman of Rajya Sabha**

Bills for which Joint Sitting is allowed

1. Ordinary Bills
2. Financial Bills

Bills for which Joint Sitting is NOT Allowed

1. Money Bills
   Constitutional Amendment Bills

Majority Required

- Bill is passed by **simple majority of members present and voting** in the joint sitting.

Effect of Joint Sitting

- Since **Lok Sabha has more members**, its view usually **prevails**.
- Reflects the **dominance of the popular House**.

Historical Instances

Only **3 Joint Sittings** so far:

1. Dowry Prohibition Bill, 1961
2. Banking Service Commission (Repeal) Bill, 1978
3. Prevention of Terrorism Bill (POTA), 2002

Significance

- Mechanism to resolve **legislative deadlock**
- Ensures **continuity in law-making**
- Balances bicameralism with **efficiency**

BUDGET (ARTICLE- 112)

The Constitution refers to the budget as the **"Annual Financial Statement."** The term "budget" is **not explicitly mentioned** in the Constitution. It outlines the estimated receipts and expenditures of the Government of India (GoI) for a financial year.

Components of the Budget: The Budget Includes-

1. Estimates of revenue and capital receipts.

2. Ways and means to raise revenue.

3. Estimates of expenditure.

4. Details of actual receipts and expenditure from the closing financial year.

5. The economic and financial policy for the coming year.

Fiscal Responsibility and Budget Management (FRBM) Act, 2003: The FRBM Act, 2003 mandates the presentation of the Macro-Economic Framework Statement to Parliament. This statement assesses GDP growth, the Central Government's fiscal balance, and the external sector balance of the economy.

Historical Context:

- Until 2017, the Government of India had **two separate** budgets:
  - The Railway Budget and
  - The General Budget.
- The Railway Budget was separated from the General Budget in 1924 following the recommendations of the **Acworth Committee Report (1921).**

Constitutional Provisions for Budget Enactment

The Constitution includes the following key provisions regarding the budget:

- Presidential Presentation: The President presents the estimated receipts and expenditures for the year to both Houses of Parliament (Article 112).
- Grant Recommendations: No demand for a grant can be made except on the recommendation of the President (Article 113).
- Withdrawal from the Consolidated Fund: No money can be withdrawn from the Consolidated Fund of India (CFI) except under law (Article 114).
- Tax Bills: No money bill imposing tax can be introduced in Parliament without the President's recommendation, and such a bill cannot be introduced in the Rajya Sabha (Article 117).
- Authority of Law: No tax shall be levied or collected except by authority of law (Article 265).
- Tax Reduction: Parliament can reduce or abolish a tax but cannot increase it.
- Demand for Grants: The Rajya Sabha does not have the power to vote on demands for grants; this is the exclusive privilege of the Lok Sabha (Article 113).
- Charged Expenditure: Expenditure charged on the CFI is non-votable but can be discussed in Parliament.
  This includes:
    - Salaries and allowances of the President, Chairman and Deputy Chairman of Rajya Sabha, Speaker and Deputy Speaker of Lok Sabha, and Judges of the Supreme Court, pensions of High Court Judges.
    - Administrative expenses of the Supreme Court, the office of the Comptroller and Auditor General (CAG), and Union Public Service Commission (UPSC).
    - Any sum required to satisfy court judgments, decrees, or awards. Debt charges for which the Government of India is liable.
    - Any other expenditure declared by Parliament to be charged.
- Lok Sabha Approval: The Lok Sabha can approve, refuse, or reduce the amount specified in a demand but cannot increase it (Article 113).
- Amendments to Appropriation Bills: No amendment can be proposed that varies the amount or alters the destination of any grant voted (Article 114).
- Vote on Account: The Lok Sabha can make grants in advance regarding estimated expenditure for part of the financial year, pending the voting of demands for grants and the enactment of the appropriation bill (Article 116).
    - ❖ When the annual Union Budget is not passed by the Lok Sabha, the PM & COM should resign.

Stages in the Enactment of Budget: Presentation → General Discussion → Committee Scrutiny → Voting on Demands → Appropriation Bill → Finance Bill

The Budget goes through **five distinct stages** in Parliament.

1. Presentation of the Budget

(Article 112)

- Presented by the **Finance Minister** in **Lok Sabha**.
- Usually presented on **1st February**.
- Consists of:
    - **Annual Financial Statement**
    - **Demand for Grants**
    - **Finance Bill**
    - **Appropriation Bill**
- After presentation:
    - General discussion takes place.
    - No voting at this stage.

2. General Discussion

- Held in **both Houses**.
- Discussion on:
    - Overall budget policy
    - Economic condition of the country
- **No cut motions allowed**.

- Finance Minister gives a **reply at the end**.
- Budget not voted at this stage.

3. Scrutiny by Departmental Committees

- Demands for Grants are examined by:
  - **Departmentally Related Standing Committees (DRSCs)**.
- Committees submit reports to Parliament.
- This stage enhances **financial accountability**.
- Lok Sabha is adjourned during this period.

4. Voting on Demands for Grants

(Article 113)

- Takes place **only in Lok Sabha**.
- Each demand is voted separately.
- Members can propose **Cut Motions**:
  1. **Policy Cut** – Re.1
  2. **Economy Cut** – Specified reduction
  3. **Token Cut** – Re.100
- **Rajya Sabha has no voting power**.
- Rejection of a demand = **loss of confidence** in the government.

5. Passing of Appropriation Bill

(Article 114)

- Authorizes withdrawal of money from:
  - **Consolidated Fund of India**.
- Introduced in **Lok Sabha**.
- Cannot be amended to:
  - Vary amount
  - Alter destination of grant
- After passing → sent to Rajya Sabha (recommendatory only).
- President's assent → **Appropriation Act**.

Passing of Finance Bill

(Article 110 & 117)

- Gives effect to:
  - **Tax proposals** of the Budget.
- Introduced in **Lok Sabha only**.
- Rajya Sabha can make recommendations within **14 days**.
- President's assent → **Finance Act**.

Vote on Account

- Granted under **Article 116**.
- Allows government to meet expenses for **2 months**.
- Passed when:
  - Budget cannot be passed before 1 April.
- Amount generally = **1/6th of total estimates**.

Comparison between Interim Budget and the Vote on Account

Interim Budget	Vote on Account
• **"Interim budget" includes both expenditure and receipts.** • It will require parliamentary approval for incurring expenditure in the new financial year until a new budget is passed. • Until the Parliament discusses the budget and passes it through the interim budget, the government passes a vote-on-account which will allow the government to meet its expenses of administration. • An interim budget is presented by the government in the Parliament if it does not have the time to present a full budget, or if the general elections are approaching.	• **A "vote-on-account" only deals with the expenditure in the Government's budget.** • Vote-on-Account is a provision by which the government seeks Parliament's approval for funds that are sufficient to bear the expenditure till the formation of a new government takes place. • A vote-on-account lists only the expenditure borne by the government. It can be passed by the Lok Sabha without discussion. • Vote on Account cannot change the Direct Taxes at any cost. The vote-on-account can be passed through the interim budget.

Other Grants:

Supplementary Grant- Granted when the amount authorised by the Parliament through the appropriation act for a particular service for the current financial year is found to be insufficient for that year.

Additional Grant- Granted when a need has arisen during the current financial year for additional expenditure upon some new service not contemplated in the budget for that year.

Excess Grant- Granted when money has been spent on any service during a financial year in excess of the amount granted for that service in the budget for that year. Voted by the Lok Sabha after the financial year. Must be approved by the Public Accounts Committee.

Vote of Credit- Granted for meeting an unexpected demand upon the resources of India, when on account of the magnitude or the indefinite character of the service, the demand cannot be stated with the details ordinarily given in a budget.

Exceptional Grant- Granted for a special purpose and forms no part of the current service of any financial year.

Token Grant- Granted when funds to meet the proposed expenditure on a new service can be made available by reappropriation.

Funds:

Consolidated Fund of India (Article 266)

- Fund to which all receipts are credited and all payments are debited i.e.
  - All revenues received by the Government of India;
  - All loans raised by the Government by the issue of treasury bills, loans or ways and means of advances;
  - All money received by the government in repayment of loans forms the Consolidated Fund of India.
- All the legally authorised payments on behalf of the Government of India are made out of this fund.
- No money out of this fund can be appropriated (issued or drawn) except in accordance with a parliamentary law.

Public Account of India (Article 266)

- All other public money (other than those which are credited to the Consolidated Fund of India) received by or on behalf of the Government of India.
- This includes provident fund deposits, judicial deposits, savings bank deposits, departmental deposits, remittances etc.
- This account is operated by executive action, that is, the payments from this account can by made without parliamentary appropriation.
- Such payments are mostly in the nature of banking transactions.

Contingency Fund of India (Article 267)

- Amounts determined by law are paid from time to time.
- This fund is placed at the disposal of the President.
- President can make advances out of it to meet unforeseen expenditure pending its authorisation by the Parliament.
- The fund is held by the finance secretary on behalf of the President.
- Operated by executive action.

COMPARISON OF RAJYA SABHA WITH RESPECT TO LOK SABHA

Equal Status With Lok Sabha	Unequal Status With Lok Sabha	Special Powers to RajyaSabha
• Ordinary bills. • Constitutional amendment bills. • Financial bills involving expenditure from the Consolidated Fund of India. • Election and Impeachment of the President. • Recommendation to the President for the removal of Chief Justice and judges of Supreme Court and High courts, CEC and CAG. • Election and removal of the Vice President (RS can alone initiate removal). • Approval of ordinance issued by president. • Approval for proclamation of emergencies. • Selection of ministers including the Prime Minister. • Consideration of the reports of the constitutional bodies. • Enlargement of the jurisdiction of the Supreme Court and the UPSC.	• Money bills can be introduced only in LS. RS has no power to amend/reject the Money Bill. • Lok Sabha can either accept or reject all or any of the recommendations of the Rajya Sabha. In both the cases, the money bill is deemed to have been passed by the two Houses. • Final power to decide whether a particular bill is a Money Bill or not is vested in the Speaker of the Lok Sabha. • Financial Bill-I introduced only in LS. • Speaker presides over joint sitting. • RS can only discuss Budget but cannot vote on demand for grants. • Resolution for discontinuance of national emergency passed only by LS. • No confidence Motion can only be initiated in LS.	• Article- 249: RS can authorise parliament to make law on state list subjects by a majority of not less than two- thirds of its members present and voting. • Article- 312: RS can authorise parliament to create All India Services common to both centre and State. • Article 67: RS alone can initiate a move for the removal of the Vice-President. • Articles 352, 356 and 360: proclamation issued by the President for imposing emergency at a time when the Lok Sabha has been dissolved or the dissolution of the Lok Sabha takes place within the period allowed for its approval, then the proclamation can remain effective even if it is approved by the Rajya Sabha alone.

Parliamentary privileges: Special rights, immunities and exemptions enjoyed by the two Houses of Parliament, their committees, and their members.

- The Constitution also extended it to the Attorney General of India, but the parliamentary privileges do not extend to the President who is also an integral part of the Parliament.

Sources of Privileges:

- Originally, the Constitution (Article 105) mentioned two privileges: freedom of speech in Parliament & right of publication of its proceedings.
- Till now parliament has not made any special law to exhaustively codify all the privileges.
- They are based on five sources, namely: Constitutional provisions; Various laws made by Parliament; Rules of both the Houses; Parliamentary conventions; and Judicial interpretations.

1. **Collective Privileges**

- Right to publish its reports, debates and proceedings and also the right to prohibit others from publishing the same (true reports allowed - 44th CAA).
- Can exclude strangers from its proceedings and hold secret sittings.

- Can make rules to regulate its own procedure and the conduct of business.
- Can punish members as well as outsiders for breach of its privileges or its contempt.
- Right to recieve immediate information of the arrest, detention, conviction, imprisonment and release of a member.
- No person (member or outsider) can be arrested, and no legal process (civil or criminal) can be served within the precints without presiding officer permission.
- Can institute inquiries and order the attendance of witnesses and send for relevant papers and records.
- Courts are prohibited to inquire into the proceedings.

2. Individual Privileges

- They cannot be arrested during the session of Parliament and 40 days before the beginning and 40 days after the end of a session.
    - Available only in civil cases and not in criminal cases or preventive detention cases.
- Freedom of speech in Parliament.
    - No member is liable to any proceedings in any court for anything said or any vote given by him in Parliament or its committees.
    - This freedom is subject to the provisions of the Constitution and to the rules and standing orders regulating the procedure of Parliament.
- They are exempted from jury service.
    - They can refuse to give evidence and appear as a witness in a case pending in a court when Parliament is in session.

SOVEREIGNTY OF PARLIAMENT

- This doctrine associated with British Parliament
- Parliament supreme power - no legal restrictions on its authority
- Indian Parliament not sovereign - legal restrictions arises from
    - Written nature of Constitution
    - Federal System of Government
    - System of Judicial Review
    - Fundamental Rights

MULTIFUNCTIONAL ROLE OF PARLIAMENT

1. Accountability of the executive
2. Law Making
3. Controlling Finance
4. Electoral functions - VP and president election
5. Delibrations
6. Constitutional Amendment
7. Judicial Functions - impeach President, Vice-President, judge etc. & can punish for CoH.

22. State Legislatures

Position of State Legislature

- Part VI of the Constitution (Articles **168–212**)
- Legislature of a state consists of:
  - **Governor**
  - **Legislative Assembly (Vidhan Sabha)**
  - **Legislative Council (Vidhan Parishad)** – only in some states

Types of Legislatures

Unicameral

- Only **Legislative Assembly**
- Majority of Indian states

Bicameral

- Legislative Assembly + Legislative Council
- Presently in **6 states**:
  - Andhra Pradesh
  - Telangana
  - Uttar Pradesh
  - Bihar
  - Maharashtra
  - Karnataka

Article 169: Parliament can abolish a Legislative Council or create it if the legislative assembly of the concerned state passes a resolution by a Special Majority to that effect. This Act of Parliament is not to be deemed as an amendment of the Constitution for the purposes of Art. 368 and is passed like an ordinary piece of legislation (by Simple Majority).

Legislative Assembly and Legislative Council

1. Legislative Assembly:

Composition

- Directly elected body
- Members elected from **territorial constituencies**
- Maximum strength: **500**
- Minimum strength: **60**
- Exception:
  - Sikkim: 32
  - Goa & Mizoram: 40
  - Arunachal Pradesh: 30

Reservation

- SC/ST seats reserved as per population
- **Anglo-Indian nomination abolished** by 104th Constitutional Amendment Act, 2019

Duration

- Normal term: **5 years**
- Can be dissolved earlier by Governor

- Term can be extended during **National Emergency**

2. Legislative Council (Vidhan Parishad):

Nature

- Permanent body (not subject to dissolution)
- One-third members retire every **2 years**
- Term of member: **6 years**

Composition

- Strength:
  - Maximum: **1/3rd of Assembly**
  - Minimum: **40**
- Exception: Jammu & Kashmir (before reorganisation)

Manner of Election

- 1/3 elected by MLAs
- 1/3 by local authorities
- 1/12 by teachers
- 1/12 by graduates
- 1/6 nominated by Governor (literature, science, art, social service)

Creation and Abolition of Legislative Council

- Parliament can create or abolish LC
- Condition:
  - Resolution passed by State Assembly
  - **Special majority**:
    - Majority of total membership
    - 2/3rd of members present and voting
- Parliament passes **simple majority law**
- Not a constitutional amendment (Art 169)

Qualifications of Members

- Citizen of India
- Age:
  - Assembly: **25 years**
  - Council: **30 years**
- Other qualifications as prescribed by Parliament

Officers of State Legislature

Speaker & Deputy Speaker (Assembly)

- Elected by Assembly members
- Presides over Assembly
- Casting vote in case of tie
- Decides disqualification under Anti-Defection Law

Chairman & Deputy Chairman (Council)

- Elected by Council members
- Similar functions as Speaker

Legislative Procedure

Ordinary Bill

- Can be introduced in either House
- Council has **limited powers**
- If Council rejects/delays bill:
  - Assembly can override after **4 months**
- No joint sitting at state level

Money Bill

- Introduced only in Assembly
- Prior recommendation of Governor
- Council can delay only **14 days**
- Final authority: Assembly
- Governor's certification final

Powers of State Legislature

Legislative Powers

- Laws on **State List**
- Concurrent List (subject to Union law)
- Residuary powers with Parliament

Financial Powers

- Budget passed by Assembly
- Council has advisory role only

Executive Control

- Council of Ministers responsible to Assembly
- No-confidence motion only in Assembly

Constitutional Powers

- Participate in election of President
- Ratification of Constitutional Amendment Bills (in some cases)

Privileges of State Legislature

- Freedom of speech in legislature
- Immunity from court proceedings
- Power to punish for contempt
- Based on parliamentary privileges until defined by law

Sessions of State Legislature

- Governor summons, prorogues, dissolves Assembly
- Maximum gap between two sessions: **6 months**

23. Parliamentary Committees

In Constitutions, mention these committees at different places, but without making any specific provisions regarding their composition, tenure, functions, etc. They are dealt by the Rules of two Houses.

Parliamentary Committee

- Appointed or elected by the house or nominated by Speaker or chairman.
- Works under direction of the speaker/chairman.
- Presents its report to the house or to the speaker/chairman.
- Has a secretariat provided by Lok Sabha/Rajya Sabha.
- The consultative committees, which also consist of members of Parliament, are not parliamentary committees as they do not fulfil above four conditions.

Two types of Parliamentary Committees:

1. Standing Committees: Permanent (constituted every year or periodically), work on a continuous basis.

2. Ad Hoc Committees: Temporary and cease to exist on completion of the task assigned to them. These are of two types: Inquiry Committees and Advisory Committees.

Important Parliamentary Committees:

- **Estimates Committee:** The origin can be traced to the standing financial committee set up in 1921. The First Estimates Committee in the post-independence era was set up in 1950 on the recommendation of John Mathai.
    - **Composition:** 30 members all from LS (largest committee).
    - These members are elected every year from amongst its own members, according to the principles of proportional representation by means of a single transferable vote. The Minister cannot be a member.
    - **Function:** To examine the budget and also suggest economies of public expenditure. Suggest alternative policy to ensure economies of public expenditure.

- **Public Accounts Committee:** Set up first in 1921 under GOI Act 1919.
    - **Composition:** 22 = 15(LS) + 7(RS). Elected for one year on the basis of proportional representation by single transferable vote. Chairman from Opposition. The Minister cannot be a member. The chairman of the committee is appointed from amongst its members by the Speaker. Until 1966 - 67, chairman: from the ruling party. Since 1967: invariably from the Opposition.
    - **Function:** Examines CAG Audit report and discovers the irregularities. The committee examines public expenditure not only from legal and formal point of view but also from the point of view of economy, prudence, wisdom and propriety. CAG - friend, philosopher, and guide for PAC.

- **Public Undertakings: Krishna Menon Committee 1964**.
    - Composition: Originally it had 15 member (10 LS +5 RS). However, in 1974, membership raised to 22 (15 LS+7 RS).
    - The Minister cannot be a member. Chairman of the committee is appointed by the Speaker from amongst its members who are drawn from the Lok Sabha only.
    - Function: To examine reports and accounts of public sector undertakings. Does not involve in the day to day affairs of PSUs. Recommendations are advisory and not binding on the ministries.

- **Departmental Standing Committee (24 Committees):** On the recommendation of the Rules committees of Lok Sabha (1993). In 2004, seven more such committees were set up, thus increasing their number from 17 to 24.
    - Composition: 31 = 21(LS) + 10(RS). Members nominated by respective presiding officers.
    - Term: each standing committee's term is one year from the date of its constitution.
    - Minister is not eligible to be nominated as a member of any of the standing committees
    - Functions: To examine bills, demand of grants and other matters recommended to them. Out of the 24 standing committees, 8 work under the Rajya Sabha and 16 under the Lok Sabha.

Other Committees

Committee	Purpose	Composition
Rules Committee	Considers procedural matters and recommends amendments to House rules.	15 members (Lok Sabha, including Speaker) as ex-officio chairman 16 members (Rajya Sabha, including Chairman).
Business Advisory Committee	Regulates the program and timetable of the House, allocating time for legislative business.	15 members (Lok Sabha, including Speaker) 11 members (Rajya Sabha, including Chairman).
General Purposes Committee	Advice on matters concerning the affairs of the House outside other committees' jurisdiction.	Numbers not given but member given
Private Member's Committee	Addresses issues relevant to private members.	15 members (Lok Sabha, nominated by the Speaker); The Deputy Speaker is the chairperson rajya sabha has no such committee.
Committee on Government Assurance	Examines assurances given by the government to the House.	15 members (Lok Sabha), 10 members (Rajya Sabha), nominated by the Speaker or Chairman.
Committee on Papers Laid on the Table	Reviews papers presented in the House for consideration.	15 members (Lok Sabha), 10 members (Rajya Sabha), nominated by the Speaker or Chairman.
Committee on Subordinate Legislation	Oversees rules and regulations made by authorities under legislative powers.	15 members (Lok Sabha) 15 members (Rajya Sabha), nominated by the Speaker or Chairman.
Committee on Welfare of SC and ST	Focuses on issues affecting Scheduled Castes and Scheduled Tribes.	30 members (20 from Lok Sabha, 10 from Rajya Sabha), nominated by the Speaker or Chairman.
Committee on Empowerment of Women	Addresses issues related to women's empowerment.	30 members (20 from Lok Sabha, 10 from Rajya Sabha), nominated by the Speaker.
Joint Committee on Offices of Profit	Examines the implications of offices of profit.	15 members (10 from Lok Sabha, 5 from Rajya Sabha).
Committee on Petitions	Reviews petitions submitted to the House for consideration.	15 members (Lok Sabha), 10 members (Rajya Sabha), nominated by the Speaker or Chairman.
Committee of Privileges	Addresses matters related to the privileges of House members.	15 members (Lok Sabha), 10 members (Rajya Sabha), nominated by the Speaker or Chairman.
Ethics Committee	Oversees ethical conduct and behaviour among members of the House.	No fixed strength; separate for both Houses, nominated by the Speaker or Chairman.
Library Committee	Oversees the functioning and management of the Parliament Library.	9 members (6 from Lok Sabha, 3 from Rajya Sabha); Chairperson appointed by the Speaker.
Joint Committee on Salaries and Allowances of Members	Reviews and recommends salaries and allowances for members of the House.	15 members (10 from Lok Sabha, 5 from Rajya Sabha).

24. Parliamentary Forums & Groups

Parliamentary Forums

- Informal platforms of Parliament
- Enable discussion on **specific national issues**
- Involve MPs across party lines

Objectives:

- To **enhance awareness** among MPs
- To promote **focused deliberation**
- To facilitate **expert interaction**

Parliamentary Forums first constituted:

- Mid-2000s
- Most forums established between **2005–2008**

Members of Parliamentary Forums:

- Members from **Lok Sabha and Rajya Sabha**
- Representation from **all political parties**

Presiding Officer:

- **Speaker of Lok Sabha** (Chairperson)
- **Deputy Speaker** (Co-Chairperson)

Role of the Speaker of Lok Sabha:

- Heads the forums
- Ensures bipartisan functioning
- Guides discussions

Parliamentary Forum on Water Conservation and Management:

- Established in **2005**
- Focus:
    - Water scarcity
    - River conservation
    - Sustainable water use

Objectives of Parliamentary Forum on Energy:

- Energy security
- Renewable energy promotion
- Efficient energy use

Purpose of Parliamentary Forum on Youth:

- Youth empowerment
- Education & employment
- Skill development

Issues addressed by Parliamentary Forum on Children:

- Child rights
- Nutrition & health
- Education and protection

Parliamentary Forum on Population and Public Health:

- Population stabilization
- Public health systems
- Family welfare

Parliamentary Forum on Disaster Management:

- Disaster preparedness
- Mitigation strategies
- Post-disaster rehabilitation

Contribution to governance:

- Strengthens **deliberative democracy**
- Improves policy sensitivity

Significance for federal governance:

- Addresses **national issues with regional impact**
- Enables cooperative dialogue

Limitations of Parliamentary Forums:

- No enforcement power
- Advisory nature only
- Dependent on political will

Parliamentary Groups

- Voluntary associations of **Members of Parliament**
- Aim to promote **inter-parliamentary cooperation**
- Operate at **national and international levels**

Primary purpose of Parliamentary Groups

- Strengthen **parliamentary democracy**
- Promote **dialogue among legislatures**
- Encourage exchange of parliamentary practices

Constitutional or statutory:

- ✗ Not constitutional
- ✗ Not statutory
- ✓ **Voluntary bodies**

Establishment of Indian Parliamentary Group (IPG)

- Established in **1949**

Objectives:

- Promote study of parliamentary institutions
- Facilitate exchange with foreign parliaments
- Act as a link with **international parliamentary bodies**

Membership:

- Open to **all sitting Members of Parliament**
- Voluntary membership

Composition:

- Members from **Lok Sabha and Rajya Sabha**
- Across political parties

President of IPG:

- **Speaker of Lok Sabha** (ex-officio President)

Vice-Presidents of IPG:

- **Deputy Speaker of Lok Sabha**
- **Deputy Chairman of Rajya Sabha**

Executive Committee of IPG:

- Elected body
- Manages day-to-day affairs
- Assists in policy and coordination

IPG and Inter-Parliamentary Union (IPU):

- IPG acts as **Indian National Group of IPU**
- Represents India in IPU meetings

Commonwealth Parliamentary Association (CPA)

- Organization of **Commonwealth legislatures**
- Promotes parliamentary democracy

Indian branch of CPA:

- IPG functions as **Indian branch of CPA**
- Speaker of Lok Sabha is the President

Objectives:

- Strengthen democratic institutions
- Promote good governance
- Encourage parliamentary exchanges

Role in parliamentary diplomacy:

- Facilitates **Track-II diplomacy**
- Enhances people-to-people and legislative ties

Legislative & Executive Powers

- ✕ No law-making powers
- ✕ No executive authority

Activities of Parliamentary Groups

- International conferences
- Delegation exchanges
- Seminars & lectures

Significance for India's foreign policy

- Complements official diplomacy
- Strengthens India's global democratic image

Benefits to Members of Parliament

- Exposure to global parliamentary practices
- Leadership development
- Policy learning

Permanence of Parliamentary Groups

- Permanent in nature
- Membership changes with each Lok Sabha

Limitations of Parliamentary Groups

- Advisory and symbolic role
- Limited impact on policy
- Dependent on participation levels

25. Supreme Court, High Court and Subordinate Courts

The Indian Judicial System is an **integrated and independent judicial framework** established by the Constitution to uphold the **rule of law**, protect **fundamental rights**, and ensure the **supremacy of the Constitution**. India follows a **single integrated judiciary**, unlike the dual system in some federations, where the **Supreme Court** stands at the apex, followed by **High Courts** at the state level and **subordinate courts** at the district and lower levels. This integration ensures uniformity in the interpretation and application of laws throughout the country.

Historical Background Of The Indian Judiciary

- **Regulating Act, 1773:** Established the Supreme Court of Judicature in Calcutta (1774). Later, Supreme Courts were set up in Madras (1800) and Bombay (1823) under King George III.
- **Indian High Courts Act, 1861:** Created High Courts in provinces, abolishing Supreme Courts in Calcutta, Madras, Bombay and Sadar Adalats. These High Courts were the highest judicial bodies until the Federal Court of India was established under the Government of India Act, 1935 to resolve disputes between provinces and states.
- **Post-Independence:** After independence, existing High Courts for provinces became High Courts for states. The Seventh Amendment Act of 1956 allowed Parliament to create a common High Court for two or more states or union territories.

Structure of the Indian Judiciary

- **Integrated Judicial System:** India has a unified judicial system where Central and State laws are enforced by the same courts. The Supreme Court is at the top, followed by High Courts and subordinate courts like District Courts.
- **High Courts:** The High Court is the highest court in a state, working under the Supreme Court. Established in 1862 for Calcutta, Bombay, Madras, and later Allahabad (1866). High Courts have jurisdiction over their respective states or combined states/union territories. There are currently 25 High Courts in India; the Calcutta High Court (1862) is the oldest. High Courts now have revenue jurisdiction, absent before the Constitution.
- **Subordinate Courts:** Each High Court oversees a hierarchy of subordinate courts, including District and Sessions Courts.

SUPREME COURT AND HIGH COURT

Parameters	Supreme Court (Part V: Article 124 to 147)	High Courts (Part VI: Article 214-231)
Basic Facts	• Part of an integrated judicial system, based on the GoI Act, 1935. • Enforces central and state laws. • Inaugurated on January 28, 1950, replacing the Federal Court of India and the British Privy Council as the highest court of appeal.	• The Constitution originally provided for one High Court per state. • The 7th Amendment Act (1956) allows a common High Court for multiple states or Union Territories (UTs). • Territorial jurisdiction is co-terminus with the concerned state(s) or UT(s), and Parliament can alter it.
Composition	• 34 judges (CJI + 33 others). • The Supreme Court (Number of Judges) Amendment Act, 2019 raised the number from 31 to 34. (The power to increase the number of judges in the Supreme Court of India is vested in the Parliament.)	• Strength not fixed in the Constitution; at the President's discretion. • Each High Court consists of a Chief Justice and other judges as appointed by the President.
Appointment	• From 1950 to 1973, the senior most judge was appointed CJI, but this was violated in 1973	**Article 217:**

	(A.N. Ray) and 1977 (M.U. Beg). • **Second Judges Case (1993):** Established that only the senior most judge should be appointed as CJI. • **CJI Appointment:** President consults Supreme Court and High Court judges. • **Other Judges:** Appointed by the President after consultation with CJI, SC, and HC judges.	• **Chief Justice:** President consults CJI and the Governor of the state. • **Other Judges:** Appointed by the President after consulting CJI, Governor, and Chief Justice of the State High Court. • In common High Courts, the President consults the Governors of all concerned states. • **Third Judges Case:** For High Court judges, the CJI must consult a collegium of two senior most SC judges.
Qualification of Judges	• **Citizenship:** Must be a citizen of India. • **Judicial Experience:** o Must have served as a judge of a High Court for 5 years or o Been an advocate of a High Court for 10 years. • **Distinguished Jurist:** Can be appointed at the President's discretion (not applicable for High Court judges). • **Age Requirement:** No minimum age is prescribed for appointment.	• **Citizenship:** Must be a citizen of India. • **Judicial Experience:** o Must have held a judicial office for 10 years or o Been an advocate of a High Court for 10 years. • **Distinguished Jurist:** No provision for a distinguished jurist in High Court appointments. • **Age Requirement:** No minimum age is prescribed.
Oath or Affirmation	Takes an oath before the President or an appointed representative.	Takes an oath before the Governor or an appointed representative (Article 219).
Tenure	• Serve until 65 years of age. • Resign by writing to the President. • Removal is recommended by Parliament.	• Serve until 62 years of age. • Resign by writing to the President. • Can be removed similarly as Supreme Court judges.
Acting Chief Justice	The President can appoint a judge of the SC as an Acting Chief Justice if: • The CJI's office is vacant. • The CJI is temporarily absent. • The CJI is unable to perform duties (Article 126).	The President can appoint a judge of the HC as an Acting Chief Justice if: • The HC Chief Justice's office is vacant. • The HC Chief Justice is temporarily absent or • Unable to perform duties (Article 223).
Retired Judge	• The Chief Justice of India (CJI) can request a retired Supreme Court judge or a retired High Court judge (qualified for SC) to act as a Supreme Court judge temporarily. • Requires consent from the President and the individual. • Holds all jurisdiction and powers of a Supreme Court judge but is not deemed a judge.	• The Chief Justice of the High Court (CJ) can request a retired High Court judge to act as a High Court judge temporarily. • Requires consent from the President and the individual. • Holds all jurisdiction and powers of that High Court judge but is not deemed a judge (Article 224A).

Independence of the Judiciary	• **Appointment:** Judges are appointed by the President in consultation with the judiciary. • **Security of Tenure:** Judges can be removed only as per constitutional procedures. • **Service Conditions:** Cannot be altered post appointment, except during financial emergencies. • Expenses Charged on the Consolidated Fund of India. • **Post-Retirement Practice:** Prohibited from practising in any court. • **Contempt of Court:** SC has the power to punish for contempt. • **Jurisdiction:** Cannot be curtailed, but can be extended by Parliament. • **Separation of Powers:** Judiciary is separated from the executive (A- 50). It thus helps to safeguard the liberty and rights of the people in a democracy.	• **Appointment:** Judges are appointed by the President in consultation with the CJI and HC Chief Justice. • **Security of Tenure:** Judges can only be removed through constitutional procedures. • **Service Conditions:** Cannot be altered, except during a financial emergency. • **Expenses:** Salaries charged on the State's Consolidated Fund; pensions from the Consolidated Fund of India. • **Post-Retirement Practice:** Can practise in the SC or other HCs. • **Contempt of Court:** HC can punish for contempt. • **Jurisdiction:** Can be altered by Parliament or state legislature. • **Separation of Powers:** Judiciary is independent of the executive (A- 50).
Jurisdiction and Powers	• The SC has extensive jurisdiction. SC is the final interpreter and guardian of the Constitution and also the guarantor of the fundamental rights of the citizens. • It acts as both a federal court and a final appellate court. Described as having more powers than any other Supreme Court worldwide.	• Governed by constitutional provisions; Letters Patent, various Acts of Parliament, state laws, and criminal and civil procedure codes.
Writ Jurisdiction	• **Writs:** Includes habeas corpus, mandamus, prohibition, quo warranto, and certiorari. • **Scope:** Aggrieved individuals can approach the Supreme Court under Article 32 for enforcement of Fundamental Rights. The Court's writ jurisdiction is original but shared with High Courts, and Parliament can extend its scope.	• **Wider jurisdiction than the SC:** can issue writs for both Fundamental Rights and other legal rights.(Article 226) • Can issue writs beyond its territorial jurisdiction if the cause of action arises within its territory. • Concurrent with SC's writ jurisdiction (Chandra Kumar case, 1997).
Court of Record	• The Supreme Court acts as a court of record, where its judgments and proceedings are recorded for perpetual memory and legal precedent. (Article 129) • These records have evidentiary value and cannot be questioned by any other court.	• Judgments and proceedings are recorded for evidentiary value and cannot be questioned. (Article 215) • High Court has power to review and correct its own judgement, hence bound by its previous decision, but not on the lines as Supreme Court does. • Has the power to punish for contempt.

Contempt of Court	• Governed by the Contempt of Court Act, 1971, which outlines procedures for investigation and punishment of contempt. It was based on the recommendations made by H.N. Sanyal committee. • Expression 'contempt of court' has not been defined by the Constitution. • **Civil Contempt:** Wilful disobedience to court orders or judgments. • **Criminal Contempt:** Publication or actions that scandalise or lower the authority of the court, or interfere with justice. • **Actions not amounting to contempt include:** o Innocent publication. o Fair reports of judicial proceedings. o Reasonable criticism of judicial acts. • Penalties for contempt include simple imprisonment for up to six months, or fines up to ₹2000. • Proceedings for contempt must be initiated within one year of the alleged contempt. • The Act does not apply to Nyaya Panchayats or similar village courts.
Salaries and Allowances	• **Determination:** Salaries fixed by Parliament; cannot be reduced post-appointment, except during financial emergencies (Article 360). • **Pension:** Retired SC & HC judges receive 50% of their last drawn salary as pension. • **Supreme Court:** Salaries charged on Consolidated Fund of India(Article 125). • **High Court:** Salaries charged on Consolidated Fund of State, pensions charged on Consolidated Fund of India (Art. 221).
Removal of Judges	• **Grounds for Removal:** Proved misbehaviour or incapacity. • **Procedure:** Governed by the Judges Enquiry Act (1968); requires Parliament's recommendation. • **Parliamentary Support:** Needs a special majority in both Houses. • **Impeachment:** No Supreme Court or High Court judges have been impeached. • **Judges Enquiry Act, 1968** o Removal Motion: - Must be signed by 100 members (Lok Sabha) or 50 members (Rajya Sabha). - The Speaker/Chairman may admit or reject the motion. • **Inquiry:** If admitted, a three-member committee investigates charges. • **Outcome:** If found guilty, the motion goes to the House for consideration and must pass with a special majority. The President issues the final removal order.
Appellate Jurisdiction	Supreme Court: ● Constitutional matters: Under Article 132, appeals to the Supreme Court are allowed against High Court judgments involving substantial constitutional questions. ● Articles 133 and 134 govern appeals in civil and criminal matters, including death sentences. Appeals are limited when an acquittal is confirmed, but HC certification enables SC appeals. ● No right to appeal if an acquittal is confirmed. High Court: HC has Wider appellate jurisdiction than its original jurisdiction and applicable in both civil and criminal matters against judgements of sub-ordinate courts in its territorial jurisdiction. 1st appeal in cases involving questions of law and facts. And 2nd appeal in cases involving questions of laws only.

Original Jurisdiction	**Supreme Court:** • **Original and exclusive jurisdiction(Art 131)** in disputes between: - States and the Centre.States and other states. - Centre and a state vs. another state. - Political questions are generally avoided. - Disputes must involve a legal right (either law or fact). - Private citizens cannot bring suits against the Centre or a state. - Exclusions: Pre-Constitutional treaties or agreements, Inter-state water disputes, Financial adjustments or pensions between Centre and states, Commercial disputes between the Centre and states, Recovery of damages. - First suit under SC's original jurisdiction: West Bengal vs. Centre (1961). **High Court:** • **Original jurisdiction in:** - Election disputes for members of parliament and state legislatures. - Revenue matters. - Enforcement of Fundamental Rights. - Cases transferred from subordinate courts involving constitutional interpretation. - Original civil jurisdiction in high-value cases (Calcutta, Bombay, Madras, and Delhi HCs). - Narrower than SC's jurisdiction. ❖ **Note:** Original criminal jurisdiction of Calcutta, Bombay, and Madras HCs was abolished in 1973.

Additional Provisions Related to SC:

- **Ad Hoc Judge (Article 127)**
  - **Appointment:** CJI can appoint a High Court judge as an Ad Hoc judge when there is a lack of quorum. Requires consultation with the Chief Justice of the concerned High Court and the President's consent.
  - **Jurisdiction:** Ad hoc judges possess the same powers and privileges as Supreme Court judges.
  - **Qualifications:** Must be qualified for appointment as a Supreme Court judge.
- **Seat of Supreme Court (Article 130)**
  - **Location:** The Supreme Court is constitutionally located in Delhi.
  - **Alternative Seats:** The CJI can appoint another location as the Supreme Court's seat with Presidential approval.
- **Procedure of the Court**
  - **Rule-Making:** The Supreme Court, with Presidential approval, can regulate its practice and procedure.
  - **Bench Composition:** Constitutional cases or Presidential references are decided by a bench of at least five judges; other cases can be decided by single or division benches.
  - **Judgement Delivery:** Majority voting is required, with provisions for dissenting opinions.
- **Appeal by Special Leave (Article 136)**
  - **Special Leave:** Grants special leave to appeal from judgments of any court or tribunal, except court martial.
  - **Key Features:**
  - Discretionary, not a right.
  - Applicable to final or interlocutory judgments.
  - Covers various matters (constitutional, civil, criminal, etc.).
  - Used sparingly in exceptional cases.
- **Advisory Jurisdiction (Article 143)**
  - The President can seek Supreme Court's opinion on:
  - (a) any question of law/fact of public importance and
  - (b) On disputes arising from from pre- constitutional treaties/agreement/sanad etc.
  - ❖ **Note:** In (a) SC may/may not give its opinion. In (b) SC bound to give its opinion.

- **Nature of Opinion:** Advisory, not binding; the President may choose whether to follow it.
- **Reference Made:** Fifteen references made by the President by 2024. Example 2G spectrum case verdict. (2012)

- **Interpretation of Constitution (Article 147)**
  - **Role:** The Supreme Court serves as the ultimate interpreter of the Constitution.
  - **Guiding Doctrines:** Includes severability, waiver, eclipse, pith and substance, etc.

Types of Advocates under the Advocates Act, 1961

1. Senior Advocates

- **Designation:** Senior Advocates are designated by the Supreme Court (SC) or High Courts (HC) based on merit, including their standing at the Bar, special knowledge, or experience in law.
- **Eligibility:** Retired Chief Justices or Judges of HCs can also be considered.
- **Practice Rules:** They must appear in the SC alongside an Advocate-on-Record.
- **Designation Process:** Governed by the Supreme Court Rules, 2013. A Permanent Committee, chaired by the Chief Justice of India (CJI), handles senior advocate designations. The committee includes CJI (Chairperson), Two senior-most SC judges, Attorney General, & A Bar member nominated by the Chairperson.

2. Advocate-on-Record (AoR)

- **Role:** Only Advocates-on-Record can file appearances and act for a party in the SC.
- **Eligibility:** Advocates with 7 years of standing can register as AoR after passing the AoR examination.
- **Examination:** Introduced in 1959 and conducted by the SC under the supervision of the Secretary of the Board of Examiners, appointed by the CJI.
- **Training:** Advocates must undergo one year of continuous training under an AoR with at least 10 years of experience.

3. Other Advocates

- **Eligibility:** Advocates registered with any State Bar Council under the Advocates Act, 1961.
- **Limitations:** They cannot appear in the SC unless instructed by an AoR or permitted by the Court.
- **The Advocates Act, 1961** recognizes Advocates as the only class of persons entitled to practice law in India. This includes corporate lawyers and patent attorneys, who are also recognized as advocates with no restriction on their recognition.

Key Doctrines of Constitutional Interpretation: The SC applies various doctrines in interpreting the Constitution.

1. **Doctrine of Severability**
2. **Doctrine of Waiver**
3. **Doctrine of Eclipse**
4. **Doctrine of Territorial Nexus**
5. **Doctrine of Pith and Substance**
6. **Doctrine of Colourable Legislation**
7. **Doctrine of Incidental and Ancillary Powers**
8. **Doctrine of Precedent**
9. **Doctrine of Occupied Field**
10. **Doctrine of Prospective Overruling**
11. **Doctrine of Harmonious Construction**
12. **Doctrine of Liberal Interpretation**

Articles Related to Jurisdiction

Article 141: Law declared by the Supreme Court is binding on all courts.

Article 142: It empowers the Supreme Court (SC) to pass orders or decrees necessary for ensuring complete justice in any pending case. This provision is often associated with judicial activism. For instance, in the **Union Carbide Case (1989)** related to the Bhopal Gas Tragedy, the SC invoked Article 142 to override parliamentary laws and award compensation to victims.

Additional Provisions Related to HC:

- **Transfer of Judges (Article 222)**
    - **Presidential Power:** The President can transfer judges of High Courts after consulting the CJI.
    - **Compensatory Allowance:** Transferred judges receive an allowance determined by Parliament.
    - **Judicial Review:** Necessary to prevent arbitrariness in transfers; only the transferred judge can challenge the transfer.
    - **Third Judges Case (1998):** CJI must consult a collegium of senior judges and the Chief Justices of the relevant High Courts.
- **Additional and Acting Judges (Article 224)**
- Appointment: The President can appoint additional judges for up to two years during temporary increases in workload.
- Age Limit: Cannot hold office after reaching 62 years.
- **Supervisory Jurisdiction (Article 227)**
- Scope: Superintendence over all state courts and tribunals, excluding military courts.
- Types: Includes both administrative and judicial superintendence; can act suo-motu.
- Usage: Applied in extraordinary cases for excess jurisdiction, natural justice violations, and manifest injustice.

Control over Subordinate Courts (Article 227)

- Governor's Consultation: Consulted in the appointment and promotion of district judges and judicial service personnel.
- Substantial Questions: Can withdraw cases from subordinate courts involving substantial constitutional questions.
- Binding Authority: Supreme Court's law is binding on all subordinate courts within its jurisdiction.

Common Jurisdiction of High Court with two or more States/UTs

- **Bombay:** Maharashtra, Goa, Dadra and Nagar Haveli, Daman and Diu
- **Guwahati:** Assam, Nagaland, Mizoram and Arunachal Pradesh
- **Punjab and Haryana:** Punjab, Haryana, Chandigarh
- **Calcutta:** West Bengal, Andaman and Nicobar Islands
- **Madras:** Tamil Nadu, Puducherry
- **Kerala:** Kerala, Lakshadweep

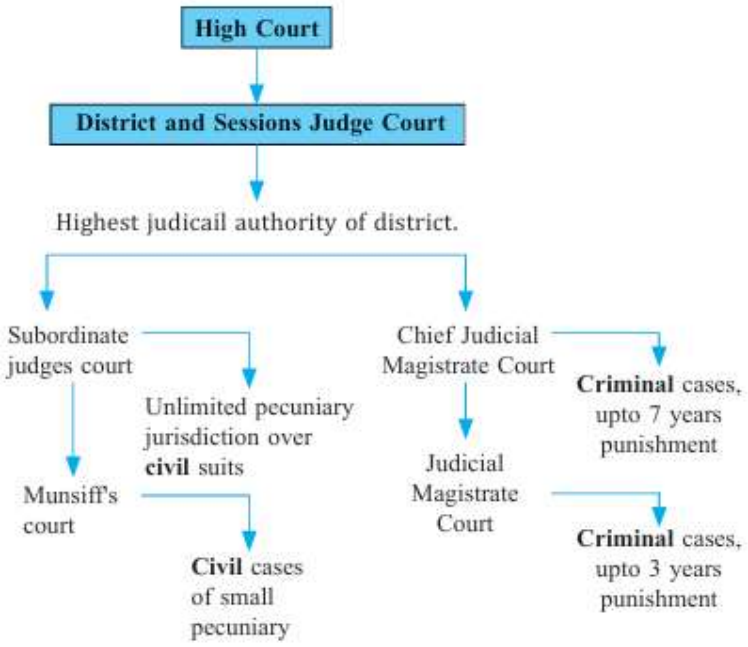
SUBORDINATE COURTS

Provisions Related to Subordinate Courts

- Regulatory Framework: Articles 233-237 in Part VI ensure the independence and organisation of subordinate courts.
- District Judges (Article 233):
    - Appointed by the Governor with High Court consultation.
    - Must meet qualifications:
      - Not in service of the Union/State.
      - Advocate/pleader for 7 years.
      - High Court recommendation.
- Other Judicial Appointments (Article 234): Appointed by Governor as per rules after consulting State Public Service Commission and High Court.
- Control over Subordinate Courts (Article 235): High Court manages district and lower courts, overseeing transfers, promotions, and leave of officers below district judge rank.
- Interpretation of 'District Judge(Article 236)': Includes city civil court judges, sessions judges, and chief magistrates. Judicial Service includes posts below district judges.
- Judicial Structure and Jurisdiction: Varies by state with three tiers of courts below the High Court. District Judges (civil) and Sessions Judges (criminal) hold appellate and original jurisdiction.
- Powers:
    - District Judges: Handle civil and administrative matters; appeals go to the High Court.

- Sessions Judges: Can impose life imprisonment or capital punishment, subject to High Court confirmation.

Lower Courts:



- **Metropolitan and Other Courts:**
  - City Civil Courts: Handle civil cases in metropolitan areas.
  - Metropolitan Magistrates' Courts: Deal with criminal cases.
  - Small Cause Courts: Summary decisions on minor civil cases (High Court has revision power).
  - Panchayat Courts: Handle petty civil and criminal cases, known by various local names.

Subordinate courts form the backbone of India's justice system, ensuring grassroots access to legal recourse. Despite challenges, they play a crucial role in judicial administration.

National Legal Services Authority

Alternate Dispute Resolution (ADR): ADR is a structured, non-judicial process dispute **redressal mechanism** that helps parties resolve grievances without litigation, using **a neutral third party** to facilitate agreement.

- **Methods of ADR**
  - **Arbitration:** A neutral arbitrator makes binding decisions on disputes. Governed by the Arbitration and Conciliation Act, 1996, it is used for both domestic and international disputes.
  - **Conciliation:** A neutral party helps disputants reach an agreement amicably. It follows the UNCITRAL Conciliation Rules (1980) and is commonly used in commercial and civil disputes.
  - **Mediation:** Involves a facilitator assisting parties in negotiating a settlement. It is non-binding and mandated by laws such as the Hindu Marriage Act, often used in family and matrimonial disputes.
  - **Negotiation:** Parties directly discuss and resolve disputes, with a neutral party having a limited role. It is effective for family, industrial, and petty disputes.

National Legal Services Authority (NALSA): Established under the Legal Services Authorities Act (1987), effective from November 9, 1995, to provide free legal services for the weaker sections.

- **Objectives:** Its objective is to provide free and competent legal services to the weaker section of the society on the basis of equal opportunity. It issues guidelines for the State Legal Services Authorities to implement the legal programmes and schemes throughout the country.

- **Constitutional Provisions Article 39A:** Ensures free legal aid for the poor. Articles 14 & 22(1): Mandate state responsibility for equality before law and equal opportunity.
- **Legal Service Institutions**
    - State Legal Services Authorities oversee district and taluka legal services, conducting Lok Adalats and awareness camps.
    - The Supreme Court Legal Services Committee manages legal services related to the Supreme Court.
- **Eligibility for Free Legal Services:** Women, children, SC/ST members, victims of disasters, disabled persons, and low-income individuals (≤ ₹1 lakh; ₹1.25 lakh for Supreme Court).
- **Services Offered:** Coverage of court fees, lawyer services, certified document copies, and appeal preparation.
- Initiatives
    - Legal Service Mobile App: Facilitates access to justice.
    - DISHA Scheme: Aims for holistic access to justice (2021-26).
    - Nyaya Bandhu (Pro Bono Legal Service)
- Roles and Functions of NALSA: Set policies, monitor implementation, organise Lok Adalats, and conduct legal literacy programs.
- Coordinate with government and non-government agencies for effective service delivery.

Lok Adalat: People's Court Lok Adalat, serves as an Alternative Dispute Resolution (ADR) mechanism aimed at resolving disputes outside traditional court settings. It promotes informal, affordable, and expedient resolutions, reflecting Gandhian principles.

- Established under the Legal Services Authority Act, 1987, it provides a structured framework for dispute resolution.
- The first Lok Adalat was held in Gujarat in 1982, successfully settling various disputes, leading to its expansion across India.
- **Composition:** Consists of such number of serving or retired judicial officers and other persons of the area as may be specified by the agency. Generally, a Lok Adalat consists of a judicial officer as the chairman and a lawyer (advocate) and a social worker as members.

Types of Lok Adalat

1. **National Lok Adalats:** Conducted regularly, these cover all courts nationwide on designated days since 2015.
2. **State Lok Adalats:** Also known as Regular Lok Adalats, these can be categorised into:
    - Continuous Lok Adalat: Operates for a set number of days for ongoing cases.
    - Daily Lok Adalat: Held every day to address disputes.
    - Mobile Lok Adalat: Utilises multi-utility vans to reach remote areas, resolving petty cases and raising legal awareness.
    - Mega Lok Adalat: Organised statewide on a single day across all courts.
3. **Permanent Lok Adalat:**
    - Under the Legal Services Authorities Act, 1987, amended in 2002.
    - Resolves disputes related to public utility services.
    - **Composition:** Chairman: A serving/retired district judge or higher judicial officer.
    - **Two members:** Experts in public utility services.

- **Jurisdiction:** Covers services like transport, postal, telegraph, electricity, sanitation, hospitals, and insurance. Pecuniary limit: Initially ₹10 lakhs, raised to ₹1 crore in 2015. No jurisdiction over non compoundable offences.
- **Application:** Once a case is filed, parties cannot approach other courts.
- **Settlement:** Tries to formulate settlement terms. If no agreement, resolves the dispute on merits.
- **Award:** The award is final and binding, with no appeal allowed.

Gram Nyayalayas:

- **Gram Nyayalayas** are **village-level courts** established to:
  - Provide **speedy, inexpensive, and accessible justice** to rural population
- They aim to **decentralise the justice delivery system** and reduce burden on regular courts

Constitutional Basis

Article 39A (DPSP)

- Mandates:
  - Equal justice
  - Free legal aid
- Gram Nyayalayas operationalise **access to justice** at grassroots

  - ❖ Though not directly mentioned in the Constitution, they derive legitimacy from **DPSPs and Article 21 (right to speedy justice)**.

Gram Nyayalayas Act, 2008

- Enacted to establish Gram Nyayalayas at **village or group of villages level**
- Came into force in **2009**

Objectives:

- Provide **justice at doorstep**
- Reduce pendency in regular courts
- Ensure affordable legal remedies
- Promote **conciliation and settlement**
- Strengthen rural justice system

Establishment:

- Established by:
  - **State Governments**
  - In consultation with respective High Courts
- For:
  - Every Panchayat at intermediate level
  - Or group of contiguous Panchayats

Presiding Officer:

- Called **Nyayadhikari**
- Must have:
  - Qualification of a Judicial Magistrate First Class (JMFC)
- Appointed by State Government in consultation with HC

Jurisdiction of Gram Nyayalayas

Criminal Jurisdiction

- Trial of **minor offences** under:
  - Indian Penal Code (IPC)
  - Other Central/State laws
- Only offences specified in **First Schedule of the Act**

Civil Jurisdiction

- Civil disputes listed in **Second Schedule**, such as:
  - Property disputes (small value)
  - Wage-related disputes
  - Rights over common resources

  ❖ **Pecuniary jurisdiction** fixed by State Governments.

Procedural Features (Special Characteristics)

- Mobile courts:
  - Can conduct proceedings at:
    - Panchayat headquarters
    - Villages
- Emphasis on:
  - Conciliation and settlement
- Simplified procedures
- Use of:
  - Local language
  - Summary trials
- Guided by principles of **natural justice**

Gram Nyayalayas and ADR

- Gram Nyayalayas encourage:
  - **Conciliation**
  - **Settlement**
- They are aligned with:
  - Alternate Dispute Resolution mechanisms
- Reduce adversarial litigation culture in villages

Appeal Provisions

- Appeals lie to:
  - **Sessions Court** (criminal matters)
  - **District Court** (civil matters)
- Appeal period is shorter → ensures speedy justice

Significance of Gram Nyayalayas

- Improves access to justice for rural poor
- Reduces litigation cost
- Decongests subordinate courts
- Enhances trust in justice system
- Strengthens rule of law at grassroots
- Supports **inclusive governance**

Performance and Status

- Poor implementation across states
- Many states have:
  - Not notified Gram Nyayalayas
  - Or established very few
- Reasons include:
  - Financial constraints
  - Lack of political will
  - Inadequate infrastructure

Challenges and Limitations

- Low awareness among rural population
- Shortage of judicial officers
- Overlap with:
  - Lok Adalats
  - Regular courts
- Poor coordination with Panchayats
- Limited jurisdiction
- Logistical and administrative hurdles

Gram Nyayalayas vs Lok Adalats

Aspect	Gram Nyayalayas	Lok Adalats
Nature	Permanent court	Periodic forum
Presiding Officer	Judicial officer	Judicial + non-judicial
Decision	Judicial decision	Settlement-based
Appeal	Allowed	Not allowed
Basis	Gram Nyayalayas Act, 2008	Legal Services Authorities Act, 1987

Role in Access to Justice

- Complements:
  - ADR
  - Legal aid services
- Supports marginalised sections
- Brings justice closer to citizens
- Reinforces Article 21 and 39A

Commercial Courts

- **Purpose:** Establish specialised courts for quick resolution of commercial disputes.
- **Commercial Courts:** Set up by State Governments at the district level for disputes above ₹3 lakh.
- **Commercial Appellate Courts:** Handle appeals from lower commercial courts, established at the District Judge level.
- **High Court:**
  - **Commercial Division:** For commercial disputes in High Courts with original jurisdiction.
  - **Commercial Appellate Division:** Hears appeals from Commercial Courts/Divisions.

TRIBUNALS IN INDIA

Tribunals are **quasi-judicial bodies** established to:

  - Adjudicate disputes in **specialised areas**
  - Reduce burden on regular courts
- They combine:
  - Judicial functions
  - Administrative expertise

  - ❖ They are part of the **justice delivery system**, but are **outside the regular court hierarchy**.

- **Constitutional Provisions:**
  42nd Amendment Act, 1976: Introduced Part XIV-A on Tribunals in the Constitution, comprising:
  - **Article 323A:** Pertains to administrative tribunals.
  - **Article 323B:** Covers tribunals for other matters like taxation.

Differences between Articles 323A and 323B

Article 323A	Article 323B
Establishes tribunals for public service.	Establishes tribunals for various matters
Created solely by Parliament.	Both Parliament and State Legislatures.
No hierarchy of tribunals.	Hierarchy may be established.

Salient Features

- Expertise: Composed of members with specialised knowledge.
- Flexible Procedures: Not bound by the Civil Procedure Code (CPC).
- Natural Justice: Adhere to fair hearing principles.
- Quasi-Judicial Powers: Can hear evidence, examine witnesses, and make binding decisions.
- Expedited Process: Faster resolution compared to traditional courts.
- Appellate Authority: Tribunal decisions can be appealed to higher courts.

- **Functions:** Resolve disputes and determine rights. Make administrative decisions and review existing ones. Must operate independently of the executive.

Types of Tribunals

- **Administrative Tribunals (Article 323A)**
  1. Central Administrative Tribunal (CAT):
  Established: 1985, under the Administrative Tribunals Act, 1985. Principal Bench in Delhi, with additional benches in various states.
  - **Jurisdiction:** Covers all-India services, Central civil services, and civilian employees of defence services.
  - **Excludes:** Members of the defence forces, officers of the Supreme Court, and Parliament's secretarial staff.
  - **Structure:** Multi-member body: 69 Hon'ble Members in various Benches of the Tribunal out of which 34 are Judicial Members and 35 are Administrative Members.
  - **Appointment:** Made by the President, based on recommendations from a Supreme Court Judge-led committee and approved by the Appointments Committee of the Cabinet.
  - **Term:** Chairman - 5 years or until 65 years of age; Members - 5 years or until 62 years of age.
  - **Procedure:** Follows natural justice principles, not bound by the Civil Procedure Code. A nominal ₹50 fee is required for application, and individuals can appear either in person or via a lawyer.
  - **Appeals:** Initially, appeals could only be made to the Supreme Court. L. Chandra Kumar Case (1997): High Courts regained jurisdiction, and appeals must first be made to the concerned High Court before approaching the Supreme Court.

  2. State Administrative Tribunals (SATs):
  Established: Based on state government requests under the Administrative Tribunals Act of 1985.
  - Jurisdiction: Recruitment and service matters of state government employees.
  - Appointment: Chairman and members are appointed by the President after consulting the state's Governor.
  - States with SATs: Andhra Pradesh, Odisha, Karnataka, Maharashtra, West Bengal, Kerala.
  - Abolished SATs: Madhya Pradesh, Tamil Nadu, Himachal Pradesh (though Tamil Nadu and Himachal Pradesh have requested re-establishment).

3. Joint Administrative Tribunals (JATs) Provision: For two or more states under the Administrative Tribunals Act, 1985. Appointment: Chairman and members appointed by the President, with consultation from Governors of the concerned states.

- **Tribunals for Other Matters (Article 323B)**
  - **Authority:** Both Parliament and State Legislatures can establish tribunals for adjudication in specific areas.
  - **Areas:** Taxation, Foreign exchange, import/export, Industrial and labour disputes, Land reforms, Urban property ceiling, Elections (to Parliament and State Legislatures), Foodstuffs & Rent and tenancy rights.
  - **Examples:** NGT, National Company Law Tribunal etc.

Tribunal Reforms Act, 2021

- **Objective:** Streamlines and rationalises the functioning of various tribunals to improve efficiency and reduce costs.
- **Finance Act 2017:** Merged several tribunals based on sectors. Empowered the Central Government to regulate search and selection committees.
- **Selection Committees:** Chairperson and members selected based on Search-cum-Selection Committee recommendations. State tribunals have separate selection panels. Government must act within 3 months on recommendations.
- **Eligibility and Tenure:** 4 years of tenure with Maximum Age 70 years for Chairperson, 67 years for members & Minimum Age 50 years for appointments.
- **Uniform Pay:** Ensures uniform compensation and rules for search and selection across tribunals.
- **Removal of Chairperson/Members:** Grounds for removal include: Insolvency, moral turpitude, incapacity, conflict of interest, or misuse of position.
- **Compensation:** Chairpersons and members of dissolved tribunals receive 3 months' pay and allowances for premature termination.

26. Judicial Review, Activism and Overreach

Judicial Review:

- **Judicial Review** is the **power of the judiciary** to:
  - Examine the **constitutionality of legislative enactments** and **executive actions**
  - Declare them **null and void** if they violate the **Constitution**
- It is a **basic feature of the Indian Constitution**.

Global Origin

- Originated in **USA**
- Landmark case: **Marbury v. Madison (1803)**
  - Established judiciary as the final interpreter of the Constitution

In India

- Borrowed mainly from:
  - **USA** – concept and judicial supremacy
  - **UK** – rule of law
- However, Indian Judicial Review is **wider than UK** but **narrower than USA**

Constitutional Basis of Judicial Review in India

Judicial Review is **not explicitly mentioned** in one article but is **implicitly provided** through several provisions:

Key Articles

- **Article 13** – Laws inconsistent with Fundamental Rights are void
- **Article 32** – Right to Constitutional Remedies (Dr. B.R. Ambedkar called it the *"heart and soul"* of the Constitution)
- **Article 226** – Power of High Courts to issue writs
- **Article 131** – Original jurisdiction of Supreme Court
- **Article 136** – Special Leave Petition (SLP)
- **Article 245 & 246** – Legislative competence (distribution of powers)
- **Article 372** – Continuance of pre-Constitution laws subject to Constitution

Judicial Activism

- **Judicial Activism** refers to the **proactive role of the judiciary** in:
  - Interpreting the Constitution expansively
  - Filling legislative and executive gaps
  - Enforcing rights and justice beyond literal interpretation
- It goes beyond traditional **Judicial Review**.

Global Origin

- Term coined by **Arthur Schlesinger Jr. (1947)** in the US
- Used to describe judges who actively shape public policy

Evolution in India

- Emerged strongly in **post-Emergency era (1977 onwards)**
- Linked to:
  - Expansion of **Article 21**
  - Growth of **Public Interest Litigation (PIL)**

Constitutional Basis of Judicial Activism

Judicial Activism has **no explicit constitutional provision**, but is derived from:

- **Article 13** – Protection of Fundamental Rights
- **Article 21** – Right to Life and Personal Liberty
- **Article 32 & 226** – Writ jurisdiction
- **Preamble** – Justice (social, economic, political)
- **Directive Principles of State Policy (DPSPs)** – Used as interpretative tools

Aspect	Judicial Review	Judicial Activism	Judicial Overreach
Definition	Process of reviewing laws to ensure they align with the Constitution.	Interpretation of the Constitution to address contemporary issues.	Judiciary encroaches into executive or legislative domains.
Goals	Ensures laws conform to Fundamental Rights and the Constitution.	Addresses societal needs and gaps left by the other branches of government.	Attempts to compensate for failures of the executive/legislature.
Intent	Validates laws based on constitutional principles.	To promote necessary societal changes, sometimes without constitutional backing.	Oversteps or intruding into executive/legislative functions.
Power	Protect and enforce FRs by invalidating unconstitutional laws.	Act when other constitutional bodies fail, often through mechanisms like PILs or suo motu actions.	Often infringing upon the domain of the executive or legislature.
Examples	Striking down Section 66A of the IT Act for violating Fundamental Rights.	Use of PILs, suo-motu cases, and creation of new doctrines without direct constitutional backing.	Liquor ban near highways, censorship of films like Jolly LLB II.
Impact	Ensures the rule of law and maintains constitutional supremacy.	Promotes social justice.	Undermines the doctrine of separation of powers.

Key Supreme Court Cases Judicial Review

- **Golaknath v. State of Punjab (1967):** Ruled Parliament cannot amend Fundamental Rights.
- **24th Amendment:** Allowed amendments to any part of the Constitution.
- **Kesavananda Bharati v. State of Kerala (1973):** Established limitations on amending power; basic structure must be preserved.
- **I.R. Coelho Case (2007):** Affirmed judicial review as a basic feature; laws added to the Ninth Schedule after April 24, 1973 can be challenged.

Public Interest Litigation (PIL)

- Also known as **Social Action Litigation (SAL)**, **Social Interest Litigation (SIL)**, and **Class Action Litigation (CAL)**. It is Legal action initiated for public interest, addressing issues that affect legal rights and liabilities of individuals.
- **Origin:** Developed in the USA in the 1960s to represent underrepresented groups; introduced in India in the 1980s through judicial activism by the Supreme Court, pioneered by Justices V.R. Krishna Iyer and P.N. Bhagwat.

- **Features:** Public interest litigation (PIL) ensures justice for the poor, focusing on public interest rather than individual rights. It addresses rights violations of disadvantaged groups, actively enforcing public duty with flexibility not found in traditional litigation.
- **Scope:** Addresses issues such as bonded labour, neglected children, police harassment, atrocities on women, environmental pollution, food adulteration, and more.
- **Exclusions:** Does not entertain matters related to:
    - Landlord-tenant disputes. Service matters (e.g., pension, gratuity).
    - Complaints against government departments.
    - Admissions to educational institutions.
    - Requests for early hearings in pending cases.
- **Principles of PIL**
    - Constitutional Basis: Can be entertained under Articles 32 and 226.
    - Relaxed Procedures: Courts may relax procedural laws and the rule of locus standi.
    - No State Objection: State cannot question maintainability of the petition.
    - Private Law Limits: Private disputes generally not permitted as PILs.
    - Investigative Bodies: Courts may appoint commissions to investigate allegations.
- **Who Can File a PIL?**
    - Any citizen can file a PIL:
        - Under Article 32 in the Supreme Court.
        - Under Article 226 in the High Court.
- **Filing Against:** Can be filed against State/Central Governments and Municipal Authorities, not private parties.

Important Judgments Related to PIL

- **Bandhua Mukti Morcha vs. Union of India (1983):** Addressed exploitation of bonded labourers; ordered their release and compensation.
- **MC Mehta vs. Union of India (1987):** First PIL on environmental pollution; established absolute liability principle.
- **People's Union for Civil Liberties vs. Union of India (1997):** Included right to legal aid and human dignity.
- **Vishaka & Others vs. State of Rajasthan (1997):** Established guidelines against sexual harassment of working women, leading to relevant legislation.

27. Panchayati Raj, Municipalities and Co-operative Societies

Rural Local Governance: Panchayats

- Panchayati Raj is a local self-governance system in rural India also known as **democratic decentralisation**, meaning **"rule by five"**, originating from the practice of five elder villagers making decisions for the community.
- It is rooted in the ancient political history of the Indian subcontinent and gained constitutional status through the **73rd Amendment (1992)**.

Constitutional Basis

- **73rd Constitutional Amendment Act, 1992**
- Added **Part IX** to the Constitution
- **Articles 243 to 243-O**
- **11th Schedule** – 29 subjects

Three-Tier Structure

- **Village level** – Gram Panchayat
- **Intermediate level** – Panchayat Samiti
- **District level** – Zila Parishad

    - ❖ Intermediate tier not mandatory for states with population < 20 lakh

Gram Sabha

- Assembly of all registered voters in a village
- Foundation of Panchayati Raj
- **Powers:**
    - Approves plans
    - Social audit
    - Accountability of Panchayat

Composition & Election

- Members directly elected
- **Chairpersons elected:**
    - Indirectly (except Gram Panchayat in some states)
- **5-year tenure**
- State Election Commission conducts elections

Reservation Provisions

- SC/ST reservation proportional to population
- **One-third reservation for women**
- Reservation for OBCs – discretionary for states

Powers & Functions

- Preparation of:
    - Plans for economic development
    - Social justice
- Subjects from **11th Schedule** (e.g., agriculture, health, education)

Finance of Panchayats

- **State Finance Commission (every 5 years)**
- **Sources:**
    - State grants
    - Central schemes
    - Local taxes, fees

Role in Governance

- Decentralisation of power
- Rural development
- Implementation of:
    - MGNREGA
    - PMAY-G
- Strengthens democracy at grassroots

Limitations

- Inadequate funds
- Limited autonomy
- Capacity constraints
- Political interference

Urban Local Governance: Municipalities

- **Municipalities** are **urban local self-government institutions**
- Aim to ensure **democratic decentralisation** in urban areas

Constitutional Basis

- **74th Constitutional Amendment Act, 1992**
- Inserted **Part IX-A** into the Constitution
- **Articles 243P to 243ZG**
- **12th Schedule** – 18 subjects

Types of Municipalities - Article 243Q

1. **Nagar Panchayat**
    - Transitional area (rural → urban)
2. **Municipal Council**
    - Smaller urban areas
3. **Municipal Corporation**
    - Larger urban areas

❖ Classification based on:

- Population
- Density
- Revenue generation
- Economic importance

Composition & Election

- Members directly elected from wards
- Chairperson/Mayor:
    - Method decided by State Legislature
- **5-year tenure**
- Elections conducted by:

- **State Election Commission**

Reservation Provisions

- Reservation for:
  - SC/ST (proportional to population)
  - **At least one-third seats for women**
- OBC reservation:
  - At discretion of states (subject to SC rulings)

Powers & Functions

- Municipalities responsible for:
  - Urban planning
  - Water supply
  - Sanitation
  - Roads
  - Public health
- Functions listed in **12th Schedule**

Municipal Finance

- **State Finance Commission** (every 5 years)
- Sources:
  - Property tax
  - User charges
  - Grants from state and centre
- Access to:
  - Municipal bonds (for large corporations)

Ward Committees (Article 243S)

- Mandatory for:
  - Municipalities with population > 3 lakh
- Promote:
  - Citizen participation
  - Decentralised governance

Planning Bodies

- **District Planning Committee (DPC)** – Article 243ZD
- **Metropolitan Planning Committee (MPC)** – Article 243ZE

Municipalities and Governance

- Implement urban schemes:
  - AMRUT
  - Swachh Bharat Mission (Urban)
  - Smart Cities Mission
- Key to:
  - Urban service delivery
  - Sustainable development

Limitations & Challenges

- Financial constraints
- Weak administrative capacity
- Political interference

- Overlapping functions with state agencies
- Poor accountability

Cooperative Societies

- **Cooperative Society** is a **voluntary association of individuals** formed to:
  - Promote **economic interests**
  - Operate on the principle of **mutual help**
- Based on values of:
  - Self-help
  - Democracy
  - Equality
  - Solidarity

Constitutional Status

97th Constitutional Amendment Act, 2011

- Gave **constitutional recognition** to cooperatives
- Inserted:
  - **Article 19(1)(c)** – Right to form cooperative societies
  - **Article 43B (DPSP)** – Promotion of cooperative societies
  - **Part IX-B (Articles 243ZH–243ZT)** – Cooperative Societies

    ❖ Marked cooperatives as **institutions of democratic governance**

Federal Aspect of Cooperatives

- **State Subject** (Entry 32, State List)
- Two types:
  - **State Cooperative Societies**
  - **Multi-State Cooperative Societies** (Entry 44, Union List)

    ❖ Parliament can legislate only on **Multi-State Cooperatives**

Features of Cooperative Societies

- Voluntary membership
- Democratic management (one member, one vote)
- Limited liability
- Service motive
- Distribution of surplus among members
- Autonomy and independence

Types of Cooperative Societies

1. Agricultural Cooperatives

- Credit societies
- Marketing societies
- Farming cooperatives

2. Industrial Cooperatives

- Production and manufacturing

3. Consumer Cooperatives

- Supply goods at fair prices

4. Housing Cooperatives

- Affordable housing

5. Credit Cooperatives

- Urban & rural credit societies

Management Structure (Part IX-B)

- **Board of Directors**:
  - Maximum **21 members**
- **Elected board tenure**:
  - **5 years**
- Mandatory:
  - Annual general meeting
  - Audits
- Reservation:
  - SC/ST
  - **At least one seat for women**

Supervision and Regulation

- Audit by:
  - Government-appointed auditors
- State governments:
  - Power of supersession limited to **6 months**
  - **1 year** for cooperative banks

Cooperative Societies vs Companies

Aspect	Cooperatives	Companies
Objective	Service	Profit
Ownership	Members	Shareholders
Control	Democratic	Capital-based
Voting	One member, one vote	Proportional to shares

Challenges Faced by Cooperatives

- Excessive government interference
- Political capture
- Lack of professionalism
- Poor financial management
- Limited awareness among members

2021 Supreme Court Judgment

Union of India v. Rajendra N. Shah (2021)

- Supreme Court held:
  - Part IX-B applicable **only to Multi-State Cooperatives**
  - Provisions relating to State cooperatives **unconstitutional**
- Reaffirmed:

- **Federal structure**
- States' legislative autonomy

Recent Developments

- **Ministry of Cooperation (2021)**
  - Strengthen cooperative movement
  - Ease of doing business for cooperatives
- Digitalisation of cooperatives
- Reforms in PACS (Primary Agricultural Credit Societies)

Cooperatives and Local Governance

- Complement Panchayats
- Empower rural communities
- Strengthen participatory democracy

28. Union Territories

Union Territory (UT):

- An administrative division directly governed by the Central Government of India.
- Unlike states, UTs have limited autonomy.

Constitutional Articles: A- **239 to 241**, Article **239A** (for Delhi and Puducherry), Article **239AA** (for Delhi).

Number of Union Territories (2026): 8 UTs: Andaman & Nicobar Islands, Chandigarh, Dadra & Nagar Haveli and Daman & Diu, Delhi, Jammu & Kashmir, Ladakh, Lakshadweep, Puducherry.

UTs with Legislative Assemblies: Delhi, Puducherry, Jammu & Kashmir.

UT with Largest Population: Delhi**.**

UT with Smallest Area: Lakshadweep.

Chief Minister in UTs: Yes, if the UT has a legislative assembly (Delhi, Puducherry, J&K).

Lieutenant Governor (LG) Role:

- Acts as the representative of the President.
- Administers the UT on behalf of the central government.
- Has discretionary powers in certain matters, especially in Delhi.

Appointment of Administrators:

- **Appointed by the President** of India.
- Sometimes called Lieutenant Governor or Administrator.

UTs Directly Governed by President: Chandigarh, Lakshadweep, Dadra & Nagar Haveli and Daman & Diu, Ladakh.

Difference between Delhi and Puducherry Administration:

- **Delhi:** Special status under Article 239AA; LG has more powers.
- **Puducherry:** Powers under Article 239A; more autonomy compared to other UTs.

Article 239: All UTs are administered by an administrator appointed by the President.

Article 239A: Allows creation of legislative assemblies and councils of ministers for certain UTs (like Puducherry).

Local Governments in UTs: Yes, UTs can have **municipal corporations, panchayats**, and local bodies.

Powers of Parliament over UTs:

- Parliament can legislate on any subject for UTs.
- For states, it can legislate only on subjects under the Concurrent List (except under special conditions).

Representation in Rajya Sabha: UTs **with legislatures** can send members to Rajya Sabha (e.g., Delhi, Puducherry).

Difference between State and UT:

- **States:** Full statehood, elected government, own constitution in some cases, share power with Centre.
- **UTs:** Directly controlled by Centre, limited autonomy, some have legislatures.

Conversion of UT into a State: Parliament can pass a law under **Article 3** to create a new state from UT.

UT with Special Legislative Provisions (Article 239AA): Delhi**.**

Delimitation Commission in UTs: Determines the boundaries of constituencies for legislative assemblies and Lok Sabha elections.

Law-making for UTs without legislatures:

- Parliament enacts laws directly.
- President can issue ordinances if Parliament is not in session.

UTs created in 2019 reorganization:

- **Jammu & Kashmir** (state → UT with legislature)
- **Ladakh** (state → UT without legislature)

President dissolving UT Legislative Assembly: Yes, the President can dissolve the assembly on recommendation of the central government.

Contribution to Lok Sabha: UTs have **elected representatives** in Lok Sabha proportional to population.

Constitutional Significance of UTs:

- Allows central government to maintain control over strategically important regions.
- Ensures uniform administration in smaller or special regions.
- Acts as a federal balancing mechanism.

Union Territories of India with Capitals

1. Andaman and Nicobar Islands — **PORT BLAIR**
2. Chandigarh — **CHANDIGARH**
3. Dadra and Nagar Haveli and Daman and Diu — **DAMAN**
4. Delhi (National Capital Territory of Delhi) — **NEW DELHI**
5. Jammu and Kashmir — **SRINAGAR (SUMMER) / JAMMU (WINTER)**
6. Ladakh — **LEH**
7. Lakshadweep — **KAVARATTI**
8. Puducherry — **PUDUCHERRY**

29. Special Provisions in Constitution

Special Provisions in the Indian Constitution (Part XXI – Articles 371 to 371J)

- Special provisions are **asymmetrical federal arrangements**.
- Aim to:
  - Protect **cultural, social, economic interests**
  - Address **historical, geographical, and administrative peculiarities**
  - Promote **balanced regional development**
- Mostly applicable to **certain states**, not Union Territories (except J&K earlier).

Article-wise Special Provisions:

Article 371 – Maharashtra & Gujarat

Applicable to:

- **Maharashtra**
- **Gujarat**

Key Provisions:

- Establishment of **separate Development Boards** for:
  - Vidarbha, Marathwada (Maharashtra)
  - Saurashtra, Kutch (Gujarat)
- Governor's responsibility to:
  - Ensure **equitable allocation of funds**
  - Provide **adequate employment opportunities**
- Governor submits **annual reports to the President**

Article 371A – Nagaland

Special Features:

- **Acts of Parliament do NOT apply** to Nagaland in matters of:
  - Religious or social practices
  - Naga customary law & procedure
  - Administration of civil & criminal justice involving customary law
  - Ownership & transfer of land and resources
- Unless **State Legislative Assembly decides so**
- Governor has **special responsibility** for law & order.

Article 371B – Assam

Provision:

- Creation of a **committee of the Assam Legislative Assembly**
- Committee consists of members from **tribal areas**

  - ❖ Objective: Protect **tribal interests**

Article 371C – Manipur

Provision:

- President may create:
  - **Hill Areas Committee** of the Legislative Assembly
- Governor submits **annual report** to President regarding hill areas

Article 371D & 371E – Andhra Pradesh

Article 371D:

- **Equitable opportunities in public employment & education**
- Creation of **local cadres**
- Establishment of **Administrative Tribunal**

Article 371E:

- Parliament can establish **Central University in Andhra Pradesh**

  ❖ Originally for unified Andhra Pradesh; still relevant post-bifurcation.

Article 371F – Sikkim

Extensive Special Provisions:

- Sikkim Legislative Assembly:
  - Minimum strength fixed
- Protection of:
  - Existing laws
  - Customary practices
- Governor's **special responsibility** for peace & social equilibrium
- Representation of different sections guaranteed

  ❖ Sikkim enjoys one of the widest special provisions

Article 371G – Mizoram

Parliament's laws do NOT apply to:

- Religious or social practices
- Mizo customary law
- Land ownership & transfer

  ❖ Unless approved by **State Legislative Assembly**

Article 371H – Arunachal Pradesh

Provision:

- Governor has **special responsibility for law & order**
- Governor acts **in his discretion**

  ❖ Emphasis on **strategic location & security**

Article 371I – Goa

Provision:

- Fixes **minimum strength of Legislative Assembly** at 30 members

Article 371J – Karnataka

Applies to:

- **Hyderabad–Karnataka region**
  - (Kalyana Karnataka)

Provisions:

- Separate **Development Board**
- Reservation in:
  - Education
  - Public employment
- Equitable fund allocation

Nagaland vs Mizoram:

Aspect	Nagaland (371A)	Mizoram (371G)
Customary laws	Protected	Protected
Land ownership	Protected	Protected
Assembly consent	Required	Required

30. Constitutional Bodies & Non – Constitutional Bodies

CONSTITUTIONAL BODIES

I. Election Commission of India (ECI)

Constitutional Provisions:

- **Article 324**:
  - Superintendence, direction, and control of elections vested in ECI.
- Applicable to elections of:
  - **President**
  - **Vice-President**
  - **Lok Sabha**
  - **Rajya Sabha**
  - **State Legislative Assemblies & Councils**

    ❖ Elections to **Panchayats & Municipalities** → State Election Commissions (Art. 243K & 243ZA)

Composition

- Originally **single-member body**
- Now a **multi-member body**:
  - **1 Chief Election Commissioner (CEC)**
  - **Other Election Commissioners (ECs)** as decided by President

    ❖ Strength decided by **President**.

Appointment

- Appointed by the **President of India**
- Appointment procedure:
  - Earlier: Executive discretion
  - **Election Commissioners Appointment Act, 2023**:
    - Selection Committee:
      - Prime Minister
      - Leader of Opposition in Lok Sabha
      - Union Cabinet Minister nominated by PM

Tenure & Service Conditions

- Tenure:
  - **6 years** OR till **65 years of age**, whichever is earlier
- Service conditions:
  - Determined by **President**
  - Cannot be varied to their disadvantage after appointment

Removal

Chief Election Commissioner:

- Removed in same manner as **Judge of Supreme Court**
  - By President
  - On recommendation of Parliament
  - **Special majority**

Election Commissioners:

- Removed by President
- **Only on recommendation of CEC**

    - ❖ Ensures **independence of ECI**

Powers & Functions

A. Administrative Functions

- Prepare & revise **electoral rolls**
- Notify **election schedules**
- Recognize **political parties**
- Allot **election symbols**
- Appoint election officials

B. Advisory Functions

- Advises President/Governor on:
    - **Disqualification of MPs/MLAs**
    - Under **Articles 103 & 192**

C. Quasi-Judicial Functions

- Settles disputes related to:
    - Party recognition
    - Allotment of symbols

Model Code of Conduct (MCC)

- Issued by ECI
- Not statutory but **binding in practice**
- Enforced during election period
- Ensures:
    - Level playing field
    - Fair conduct of elections

Independence of ECI

Safeguards:

- Secure tenure
- Difficult removal of CEC
- Service conditions protected
- Expenses charged on **Consolidated Fund of India**

    - ❖ Financial independence ensured.

Limitations of ECI

- No power to deregister political parties
- Model Code of Conduct not legally enforceable
- Dependence on executive for:
    - Staff
    - Machinery

Important Supreme Court Judgments

- **Mohinder Singh Gill Case (1978)**:
  - ECI has **plenary powers** under Article 324
- **T.N. Seshan Case (1995)**:
  - CEC is **not superior** to other ECs

II. Union Public Service Commission

Constitutional Provisions

- **Articles 315–323** (Part XIV – Services under the Union and the States)
- Establishment:
  - UPSC for the **Union**
  - SPSC for the **States**
  - Joint Public Service Commission for two or more states

Composition

- Consists of:
  - **Chairman**
  - **Other Members**
- Strength:
  - Determined by the **President of India**
- Qualification:
  - At least **half the members** must have held **government office** for **10 years or more**

Appointment

- Chairman and members appointed by the **President of India**

Tenure

- **6 years** or till **65 years of age**, whichever is earlier

Removal

Grounds for Removal:

- Misbehavior
- Incapacity

Procedure:

- President can remove after:
  - **Supreme Court inquiry and recommendation**
    - ❖ President can suspend the member during inquiry

Independence of UPSC

Constitutional Safeguards:

- Secure tenure
- Difficult removal process
- Service conditions cannot be altered to disadvantage
- Expenses charged on **Consolidated Fund of India**
- Chairman:
  - Not eligible for further employment under Government of India or State Government

Functions of UPSC

A. Recruitment Functions

- Conducts examinations for:
  - **All-India Services** (IAS, IPS, IFoS)
  - **Central Services (Group A & B)**

B. Advisory Functions

- Advises on:
  - Appointment, promotion, and transfer
  - Disciplinary matters
  - Legal expenses claims of civil servants
  - Pensions

    ❖ Advice is **not binding** on government

C. Miscellaneous Functions

- Submits **annual report** to the President
- President lays report before **Parliament**

Matters Exempted from UPSC Consultation

- President may exclude certain services by regulation
- Examples:
  - Judicial appointments
  - Certain technical posts

Role in All-India Services

- Central recruiting agency
- Ensures **uniform standards** in civil services
- Promotes **administrative neutrality**

Limitations / Criticism

- Advisory nature → recommendations can be rejected
- Delays in recruitment
- Executive influence in some appointments

III. State Public Service Commission (SPSC)

Constitutional Provisions

- **Articles 315–323** (Part XIV – Services under the Union and the States)
- Provides for:
  - A **Public Service Commission for each State**
  - Or a **Joint Public Service Commission** for two or more states

Composition

- Consists of:
  - **Chairman**
  - **Other Members**

- Strength:
  - Determined by the **Governor of the State**
- Qualification:
  - At least **half of the members** must have held **government office** for **10 years or more**

Appointment

- Chairman and members appointed by the **Governor of the State**

Tenure

- **6 years** or till **62 years of age**, whichever is earlier

Removal

Grounds:

- Misbehavior
- Incapacity

Procedure:

- Removed by the **President of India**
- Only after:
  - **Inquiry by the Supreme Court**
  - Recommendation of SC

    ❖ Governor may suspend the member during inquiry

Independence of SPSC

Safeguards:

- Secure tenure
- Difficult removal procedure
- Service conditions cannot be altered to disadvantage
- Expenses charged on **Consolidated Fund of the State**
- Chairman:
  - Eligible for appointment as **UPSC Chairman or member**
  - Not eligible for other government employment

Functions of SPSC

A. Recruitment Functions

- Conducts examinations for:
  - **State civil services**
  - **Subordinate services**

B. Advisory Functions

- Advises State Government on:
  - Appointment, promotion, and transfer
  - Disciplinary matters
  - Claims for legal expenses
  - Pension matters

- ❖ Advice is **not binding** on State Government

C. Miscellaneous Functions

- Submits **annual report** to the **Governor**
- Governor lays report before **State Legislature**
- Reasons for non-acceptance of advice must be explained

Joint State Public Service Commission

- Created by:
  - **Parliament**
- On request of:
  - Two or more **State Legislatures**
- Members appointed by **President**

Limitations / Criticism

- Advisory role limits authority
- Delays in recruitment
- Allegations of political interference in some states

IV. Finance Commission

Constitutional Provisions

- **Article 280** (Part XII – Finance, Property, Contracts & Suits)
- President shall constitute a **Finance Commission every 5 years** or earlier if necessary.

Composition

- Consists of:
  - **Chairman**
  - **Four other Members**
- Qualifications:
  - Determined by **Parliament**
  - Members chosen from:
    - Public affairs
    - Finance & economics
    - Administration
    - Judiciary

- ❖ Appointment by **President of India**

Nature of Finance Commission

- **Advisory body**
- **Quasi-judicial** in character
- Recommendations are **not binding**, but usually accepted

Functions of Finance Commission

(Article 280(3))

1. **Distribution of Tax Revenues**
   - Between **Centre and States** (vertical devolution)
   - Among **States** (horizontal devolution)

2. **Principles Governing Grants-in-Aid**
    - Under **Article 275**
3. **Augmenting State Finances**
    - To supplement resources of:
        - Panchayats (Art. 243H)
        - Municipalities (Art. 243X)
4. **Any Other Matter**
    - Referred by the President in the interest of sound finance

Tenure

- Determined by the **President**
- Members eligible for **reappointment**

Powers of Finance Commission

- Has powers of a **civil court**, such as:
    - Summoning witnesses
    - Calling for documents
- Can regulate its own procedure

Reports

- Finance Commission submits report to:
    - **President**
- President lays:
    - Report + Action Taken Memorandum
    - Before **Parliament**

Independence & Safeguards

- Constitutional status ensures autonomy
- Fixed tenure
- Technical & expert composition
- Expenses charged on **Consolidated Fund of India**

Role in Fiscal Federalism

- Acts as:
    - Balancing wheel of Indian federal system
    - Mechanism for reducing inter-state disparities
- Promotes:
    - Cooperative federalism
    - Financial equity

Limitations / Criticism

- Advisory nature
- Increasing overlap with:
    - Planning bodies (earlier Planning Commission, now NITI Aayog)

Joint State Public Service Commission (JSPSC)

- **Creation:** By Parliament on request of state legislatures.
- Status: Statutory, not constitutional.
- Appointment: Chairman and members appointed by the President.
- Term: 6 years or until age 62 years.
- Annual Reporting: Reports to concerned state governors.

SALIENT FEATURES OF GST COUNCIL AND SPECIAL OFFICER FOR LINGUISTIC MINORITIES

Category	GST Council	Special Officer for Linguistic Minorities
Article/Act	Article 279A, Part XII	Article 350B, Part XVII
Establishment	101st Constitutional Amendment Act (2016)	7th Constitutional Amendment Act (1956)
Head	Union Finance Minister	Commissioner for Linguistic Minorities
Members	State Finance Ministers & Union Minister of State for Finance	Assistant Commissioners in regional offices
Appointment	By Presidential Order	By President
Expenses	State/Central Government	Central Government
Independence	N/A	Ministry of Minority Affairs
Quorum	50% of total members	N/A
Decision - Making	3/4th majority of members present and voting	N/A
Vote Weight	Centre: 1/3rd; States: 2/3rd	N/A
Functions	**Recommendations** on taxes, cesses, and surcharges that should be merged into GST. Proposing special rates to raise additional resources during natural calamities or disasters. Making **special provisions** for certain north-eastern and hilly states, **including** Arunachal Pradesh, Assam, Jammu & Kashmir, and others.	**Safeguards the rights** of linguistic minorities.
Reporting	Recommendations to Centre and States.	Submits reports to the President through Union Minority Affairs Minister.
Limitations	N/A	Not Specified
Removal	N/A	Not Specified
Location of Headquarters	New Delhi	New Delhi, with regional offices in Belgaum, Chennai, and Kolkata
Special Provisions	Special provisions for hilly and north-eastern states.	N/A
Other Aspects	**Permanent invitee:** Chairperson of Central Board of Indirect Taxes and Customs-CBIC (non-voting).	Oversees compliance with constitutional provisions for linguistic minorities.

The **Attorney General** and the **Advocate General** both possess the **right to participate in the proceedings of the legislature, or their committees** of which they are a member. However they **do not enjoy the right to vote** in such proceedings. Also they **enjoy the privileges and immunities** available to members of legislatures.

Category	Attorney General	Advocate General
Articles/Acts	Article 76, Part – V. Part of the Union Executive. Highest law officer in the country.	Article 165, Part -VI. Part of the State Executive. Highest law officer in the state.
Head	Attorney General	Advocate General
Members	Single Member	One per State
Appointment	President	Governor
Qualification	Qualified to be Judge of SC i.e. Citizen of India, Must have been a judge of some HC for 5 years or An advocate of some HC for 10 years or An eminent jurist, in the opinion of the president.	Qualified to be Judge of HC i.e. Citizen of India, Must have been in judicial service of the State for 10 years or An advocate of HC for 10 years.
Term	Pleasure of President	Pleasure of Governor
Conditions to Resign	By President	By Governor
Renewal	Allowed	Allowed

Future Employment	Allowed	Allowed
Tenure Extension	Allowed	Allowed
Expenses	Not charged on Consolidated Fund of India (CFI)	Not charged on Consolidated Fund of the State
Independence	Cannot be varied	Cannot be varied
Functions	Chief legal advisor to the Union	Chief legal advisor to the state
Limitations	Cannot practice law	
Removal	Resignation to the President. Conventionally, he/ she resigns when the government (council of ministers) resigns or is replaced.	Resignation to the Governor. Conventionally, he/she resigns when the government (council of ministers) resigns or is replaced.

Category	National Commission for SCs (NCSC)	National Commission for STs (NCST)	National Commission for BCs (NCBC)
Articles/Acts	Article 338, Part XVI	Article 338A, Part XVI	Article 338B, Part XVI
Background	• **Originally:** Art.338 provided for Special officers for SC & ST. • 1978: Non-statutory multi-member commission for SCs and STs (through resolution). • 1987: Commission renamed as National Commission for SCs & STs (through resolution). • 65th CAA 1990: Multi-member National Commission for SCs & STs with constitutional status. • 89th CAA 2003: Single commission separated into NCSC (Art. 338) & NCST (Art. 338 A). • The separate National Commission for SCs and STs came into existence in 2004.		• Originally: NCBC was set up in 1993 as a Statutory body according to the Mandal case judgement of SC (1992). • 102nd CAA, 2018: accorded Constitutional status with the insertion of new Art.338 B.
Head/Members	Chair + Vice-Chair + 3 Members	Chair + Vice-Chair + 3 Members	Chair/Vice-Chair, 5 Members
Appointment	President	President	President
Qualification	Not specified	Not specified	Not specified
Term	3 years	3 years	3 years
Removal	By President	By President	By President
Renewal	Not allowed	Not allowed	Not allowed
Future Employment	Not allowed	Not allowed	Not allowed
Tenure Extension	Not allowed	Not allowed	Not allowed
Expenses	Consolidated Fund of India	Consolidated Fund of India	Consolidated Fund of India
Independence	Cannot be varied	Cannot be varied	Cannot be varied
Functions	Safeguards rights of SCs	Safeguards rights of STs	Safeguards rights of OBCs
Limitations	Not applicable	Not applicable	Not applicable
Other Aspects	• Power of civil court in certain matters. • The Commission is vested with the power to regulate its own procedure. • Discharges similar functions regarding the Anglo-Indian Community. • Till 2018, the commission was also required to discharge similar functions with regard to OBCs.	• Power of civil court in certain matters. • The Commission is vested with the power to regulate its own procedure. • Measures for the implementation of the PESA Act, 1996. o Reduce and eliminate the shifting cultivation practice by tribals. Improve relief and	• Power of civil court in certain matters. • The Commission is vested with the power to regulate its own procedure. • Participate and advise on the socio-economic development of Socially and Educationally Backward Classes.

	• It was relieved by the creation of NCBC (Art.338B).	rehabilitation measures. Prevent alienation of tribal people. Conferring ownership rights in respect of MFPs.	

Additional Information:

- 1st Finance Commission Chairperson (1951): K C Neogy.
- 15th Finance Commission Chairperson (2021): N K Singh.
- Criteria for devolution of the 15th Finance Commission:
  - 12.5% weightage to demographic performance,
  - 45% to income.
  - 15% each to population
  - 15% to the area. 10% to forest and ecology.
  - 2.5% to tax and fiscal efforts.

Appointment of Chief Election Commissioner (CEC) and Other Election Commissioners (ECs)

- **Previous System:** CEC and ECs appointed by the President on the Central Government's recommendation.
- **Anoop Baranwal vs Union of India (2023):** SC recommended independent Selection Committee for CEC and ECs, based on Dinesh Goswami Committee (1990) & Law Commission's 255th Report (2015): Comprising Prime Minister, Chief Justice of India, Leader of Opposition (or largest opposition party in Lok Sabha).
- **Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service, and Term of Office) Act, 2023:** Replaces Election Commission Act (1991), covering appointments, salaries, and dismissal procedures.
  - Selection Process: President appoints CEC and ECs based on a three-member Selection Committee (Prime Minister, Union Minister, Leader of Opposition).
  - Search Committee: Headed by Cabinet Secretary, suggests five candidates to the Selection Committee, which can consider other names.

NON – CONSTITUTIONAL BODIES

Non-constitutional bodies are **not mentioned in the Constitution of India**.
They are created by:

- **Acts of Parliament**
- **Executive resolutions**
- **Government orders**

They perform **advisory, regulatory, investigative, or developmental functions**.

Classification of Non-Constitutional Bodies

A. Statutory Bodies

- Created by an **Act of Parliament**
- Have **legal backing**
- Can sue and be sued

B. Non-Statutory Bodies

- Created by **executive resolution / government order**

- **Advisory or recommendatory** in nature
- No legal enforcement powers

Important Statutory Bodies

1. National Human Rights Commission (NHRC)

Establishment

- Protection of Human Rights Act, **1993**

Composition

- Chairperson: Former CJI
- Members:
  - One former Supreme Court judge
  - One former Chief Justice of a High Court
  - Three members with knowledge of human rights
- Ex-officio members:
  - Chairpersons of National Commissions for SCs, STs, Women, Minorities

Functions

- Inquiry into human rights violations
- Review safeguards under the Constitution/laws
- Visit jails and detention centers
- Promote human rights awareness

Limitations

- Recommendations are **not binding**
- Cannot investigate matters older than **1 year**
- Limited role in armed forces cases

2. Central Vigilance Commission (CVC)

Establishment

- Statutory status: **CVC Act, 2003**
- Originally set up in **1964** by executive resolution

Composition

- Central Vigilance Commissioner
- Not more than 2 Vigilance Commissioners

Functions

- Superintendence over CBI (anti-corruption cases)
- Advises government on vigilance matters
- Oversees corruption cases in central government

3. Central Information Commission (CIC)

Establishment

- Right to Information Act, **2005**

Composition

- Chief Information Commissioner
- Up to 10 Information Commissioners

Functions

- Adjudicates RTI appeals and complaints
- Ensures transparency in public authorities

4. National Commission for Backward Classes (NCBC)

- Now a Constitutional Body (102nd Amendment, 2018)
- Originally statutory

Important Non-Statutory Bodies

1. NITI Aayog: Extra Constitutional Body, replaced Planning Commission in 2015 via a resolution of the Union Cabinet.

- **Head:** Prime Minister of India
- **Member:** Governing Council: Chief Ministers of States and UTs with legislatures, and Lt. Governors of UTs. Salary: Consolidated Fund of India (CFI)
- **Regional Councils:** Address region-specific issues.
- **Special Invitees:** Experts nominated by the Prime Minister.
- **Vice Chairperson:** Appointed by the Prime Minister, with the rank of Cabinet Minister.
- **Full-time Members:** Rank of Minister of State.
- **Part-time Members:** Max 2, from universities/research organisations.
- **Ex-Officio Members:** Max 4, from the Union Council of Ministers.
- **CEO:** Appointed by the Prime Minister.
- **Functions:** Designs policy frameworks, monitors progress, fosters cooperative federalism and a bottom-up approach, acts as a think tank. Policy and programme design and framework. Monitoring and evaluation of schemes and policies. A hub for knowledge and innovation.
- **Governance Based on 7 Pillars:** Pro-people, Pro activity, Participation, Empowering: Inclusion of all, Equality & Transparency
- **NITI Aayog Hubs:** Team India Hub: Interface between Centre and States & Knowledge and Innovation Hub: Think-tank focus.
- **Initiatives by NITI Aayog:** 15-year roadmap and 7-year strategy, India@75 vision, Digital India, Atal Innovation Mission, SDG India Index, Composite Water Management Index, SATH Programme, Aspirational Districts Programme, Health Index.
- **Guiding Principles:** Antyodaya, Inclusion, Village Integration, Demographic Dividend, People's Participation, Governance, & Sustainability.

2. National Development Council (NDC)

Establishment

- 1952 by executive resolution

Composition

- PM, Union Ministers, Chief Ministers

Functions

- Approving Five-Year Plans
- Policy coordination between Centre & States
  (Now largely defunct after Planning Commission's abolition)

3. Central Bureau of Investigation (CBI)

Establishment

- 1963 by executive resolution
- Operates under **Delhi Special Police Establishment Act, 1946**

Functions

- Investigation of corruption
- Special crimes
- Requires **state consent** for jurisdiction

Status

- Not a constitutional body
- Not even statutory (only derives powers from DSPE Act)

4. Lokpal and Lokayuktas

- Recommended by First Administrative Reforms Commission (1966-1970). Maharashtra appointed first Lokayukta (1971).
- **Lokpal = Central**, **Lokayukta = State**.
- Appointment involves **consultation to ensure bipartisan selection**.
- Lokpal has more **uniform powers**, Lokayukta powers **vary across states**.

Feature	Lokpal	Lokayukta
Level	Central	State
Jurisdiction	Prime Minister, Union Ministers, MPs, Group A-C central officials	Chief Minister, State Ministers, state government officials
Establishment	Statutory: **Lokpal and Lokayuktas Act, 2013**	Statutory: Created under **State Lokayukta Acts**; encouraged by Lokpal Act 2013
Constitutional Status	Non-Constitutional, statutory body	Non-Constitutional, statutory body
Head	Lokpal	Lokayukta
Deputy	Up to 8 members (Judicial and Non-Judicial)	Uplokayukta (optional, varies by state)
Appointment	President, in consultation with PM, Lok Sabha Speaker, Leader of Opposition, Chief Justice or Supreme Court judge	Governor, in consultation with CM, Speaker, Leader of Opposition, and Chairman of Legislative Council (if applicable)

Feature	Lokpal	Lokayukta
Functions	Investigates corruption and abuse of power of central public servants	Investigates corruption and maladministration by state officials
Powers	Investigative and prosecutorial powers; can recommend prosecution	Investigative powers; recommends action to state government; cannot prosecute directly in most states
Scope of Investigation	Central government, MPs, PM (with restrictions)	State government officials, CM, Ministers (varies by state)
Limitations	PM can be investigated only after approval by committee	Powers vary by state; recommendations often **not binding**

National Investigation Agency (NIA):

Founded: 2009, under National Investigation Agency Act, 2008

Nodal Ministry: Ministry of Home Affairs.

Head: Director-General powers similar to the Director General of Police,

Appointed by the central government; 5 years or as prescribed; officers' powers extend beyond India for scheduled offences.

Function: Collects and analyses counter-terrorism data. Investigates offences listed in the NIA Act. Works with other intelligence agencies. Ensures effective enforcement of the NIA Act. TFFC (Terror Funding and Fake Currency) for dealing with fake currency and terror funding Conduct professional investigations using scientific methods. Ensure speedy trials. Covers terror attacks, human trafficking, counterfeit currency, and cyber-terrorism. NIA (Amendment) Act, 2019, Extends jurisdiction to offences committed outside India against Indian citizens. Allows designation of Special Courts for NIA-related trials.

Comparison between SHRC & SIC:

Feature	State Human Rights Commission (SHRC)	State Information Commission (SIC)
Type / Status	Statutory, non-constitutional	Statutory, non-constitutional
Establishment Act / Year	Protection of Human Rights Act, 1993	Right to Information Act, 2005
Level	State	State
Jurisdiction / Domain	Protection and promotion of human rights of citizens within the state	Ensuring transparency and access to information under RTI Act
Chairperson	Retired Chief Justice of High Court	State Chief Information Commissioner (appointed by Governor)
Members	1–2 members with human rights experience	Up to 10 Information Commissioners
Functions	- Investigate human rights violations- Review safeguards under law- Visit jails and detention centers- Promote awareness	- Hear RTI appeals and complaints- Direct public authorities to provide information- Ensure compliance with RTI Act
Powers	Can summon officials, call documents, conduct inquiries; recommendations sent to state govt	Can summon public authorities, require production of records; can direct disclosure of information
Limitations	Recommendations **not binding**; cannot investigate cases older than 1 year; limited role in armed forces	Decisions are binding regarding disclosure, but no criminal enforcement; can be challenged in High Court

Feature	State Human Rights Commission (SHRC)	State Information Commission (SIC)
Focus / Domain	Human rights protection and awareness	Transparency, accountability, citizen access to information

Salient Features of Disaster Management Authorities:

Attribute	National Disaster Management Authority	State Disaster Management Authority	District Disaster Management Authority
Acts	**History:** • 1999: High Powered Committee formed. • 2001: National Committee post-Gujarat Earthquake. • 2005: **Disaster Management Act** enacted after the 2004 Tsunami. **Formation:** NDMA constituted in 2005 via executive order; notified in 2006. **Nodal Ministry: Ministry of Home Affairs**.		
Head	Prime Minister (ex-officio chairperson)	Chief Minister (ex-officio chairperson)	Collector/District Magistrate (ex-officio chairperson)
Members	9 Members (not exceeding, with Chairperson and Vice-Chairperson)		Up to 7 Members (with Chairperson) include the chief executive officer, superintendent of police, chief medical officer, and up to two district-level officers.
Appointment	Nominated by the Prime Minister	Nominated by the Chief Minister	Appointed by the state government
Term	Not specified	Not specified	Not specified
Salary	CFI	CFS	Consolidated Fund of State
Functions	Approve National Plan and departmental plans. Establish guidelines for State Disaster Management Authorities (SDMAs). Coordinate policy enforcement and recommend funding for mitigation. Provide international disaster relief and establish minimum standards for disaster relief.		Prepare district disaster management and response plans. Monitor implementation of policies and plans. Identify vulnerable areas and preventive measures. Identify buildings for use as relief centres.
Additional Points	Enhance prevention, preparedness, and resilience at all levels. Identify and monitor disaster risks. Utilise technology and traditional wisdom for mitigation. Integrate disaster management into planning processes. Foster collaboration with the media.		

31. Elections in India

Elections: Elections are the **process of selecting representatives** through **voting**. In India, elections are **universal, free, and fair**. The Indian Constitution's **Part XV (Articles 324-329)** lays down the provisions for conducting elections and establishes the Election Commission for this purpose.

- Basis: **Representative democracy** under the **Constitution of India**.

Types of Elections

A. Direct Elections

- Citizens directly vote for their **representatives**.
- Examples:
  - Lok Sabha members
  - State Legislative Assembly members
  - President of India (indirectly via electoral college, so partially direct)

B. Indirect Elections

- Representatives are elected by **elected members of another body**.
- Examples:
  - Rajya Sabha (by MLAs)
  - President of India (by Electoral College)
  - Vice-President of India (by MPs)

Features of Indian Elections

1. **Universal Adult Franchise**: All citizens above 18 years can vote (Article 326).
2. **Free and Fair Elections**: Ensured by **Election Commission**.
3. **Regular Elections**: Held at **fixed intervals** (5 years for Lok Sabha and Assemblies).
4. **Secret Ballot**: Voting is **confidential**.
5. **Representation**: Elections reflect **people's mandate**.
6. **Periodic & Direct/Indirect**: Ensures continuity of democracy.

Election Commission of India (ECI)

- **Constitutional Status**: Article 324
- **Composition**:
  - Chief Election Commissioner (CEC)
  - 2 Election Commissioners (may vary)
- **Tenure**: 6 years or 65 years of age, whichever is earlier
- **Functions**:

1. Conduct elections for **Parliament, State Assemblies, President, Vice-President**
2. Supervise **political parties and candidates**
3. Prepare and update **electoral rolls**
4. Ensure **free and fair elections**
5. Recognize/unrecognize political parties
6. Monitor **poll expenditure of candidates**

- **Powers**:
  - Can order **re-poll or countermand election** in case of malpractice
  - Can **disqualify candidates**
- **Independence**: CEC cannot be removed except like a **Supreme Court judge** (impeachment)

Electoral System in India

1. **First-Past-The-Post (FPTP)**:
    - Used for **Lok Sabha and State Assemblies**
    - Candidate with **highest votes wins**, even if <50%
2. **Proportional Representation / Single Transferable Vote (STV)**:
    - Used for **Rajya Sabha and Presidential elections**
    - Seats distributed **proportionally based on votes received**

Political Parties in India

- **Recognized Parties** (by ECI):
    - **National Parties**: Contest elections in multiple states, e.g., BJP, INC
    - **State Parties**: Recognized only in one state
- **Unrecognized Parties**: Smaller parties, not officially recognized

Functions of Parties:

- Contest elections
- Form government
- Represent interests
- Provide leadership and policy alternatives

Electoral Reforms

Key Reforms suggested/implemented:

1. **Anti-defection law (52nd Amendment, 1985)** → prevent party-hopping
2. **Voter ID (EPIC)** → reduce bogus voting
3. **Ceiling on poll expenditure** → curb money power
4. **Election Symbols** → ensure identity
5. **NOTA (None of the Above)** → right to reject
6. **Electronic Voting Machines (EVMs)** → ensure fast & fair voting
7. **Monitoring of campaign finance & transparency**

Challenges in Indian Elections

- Criminalization of politics
- Money power & corruption
- Paid news / media bias
- Low voter turnout in some areas
- Use of muscle power / intimidation

Important Articles Related to Elections

Article	Subject
324	Election Commission
326	Adult franchise (18+)
325	No discrimination in voting rights
327	Power to regulate elections by Parliament
328	Power to regulate elections by State Legislature
329	Bar on interference of courts in elections